



PARLIAMENTARY DEBATES

OFFICIAL REPORT

CONTENTS

COMMUNICATION FROM THE PRESIDENT

Absence from Ghana— [Col. 7]

VOTES AND PROCEEDINGS AND THE OFFICIAL REPORT— [Col. 1]

PAPERS—

- (a) Budget Performance Report of the Commission on Human Right and Administrative Justice (CHRAJ) for the period January to December, 2024— [Col. 11]
- (b) Annual Statement by the Audit Committee of the Tamale Teaching Hospital for the year 2024— [Col. 12]
- (c) Report of the Finance Committee on the Agreement on Privileges and Immunities of the Global Fund to Fight AIDS, Tuberculosis and Malaria (2011) — [Col. 12]
- (d) Report of the Committee on Energy on the GNPC Work Programme and Budget for the year 2026— [Col. 13]
- (e) Report of the Committee on Road and Transportation on the Road Traffic (Amendment) Bill, 2025— [Col. 13]

ANNUAL ESTIMATES, 2026—

- (a) Office of the Head of Civil Service— [Col. 15]
- (b) Public Service Commission— [Col. 45]
- (c) Parliament and Parliamentary Service— [Col. 64]

BILLS — FIRST READING

Ghana Sports Fund Bill, 2025— [Col. 41]

BILLS — SECOND READING

- (a) Road Traffic (Amendment) Bill, 2025— [Col. 100]
- (b) Ghana Education Trust Fund (Amendment) Bill, 2025— [Col. 248]

BILLS — CONSIDERATION STAGE

- (a) Road Traffic (Amendment) Bill, 2025— [Col. 128]
- (b) Virtual Assets Service Providers Bill, 2025— [Col. 153]
- (c) Ghana Education Trust Fund (Amendment) Bill, 2025— [Col. 274]

BILLS — THIRD READING

- (a) Road Traffic (Amendment) Bill, 2025— [Col. 151]
- (b) Ghana Education Trust Fund (Amendment) Bill, 2025— [Col. 284]

MOTION—

- (a) Waiver of Visa Requirement Agreement between Ghana and Angola— [Col. 188]
- (b) Agreement between Ghana and Serbia on the Abolition of Visa Requirement for Diplomatic and Official (Service) Passport Holders— [Col. 196]
- (c) Agreement Between Ghana and Algeria on the Waiver of Visa Requirements for Diplomatic and Service Passport Holders— [Col. 205]
- (d) Headquarters Agreement between Ghana and Afrobarometer— [Col. 213]
- (e) Agreement under the United Nations Convention on the Law of the Sea (UNCLOS) on the Conservation and Sustainable Use of Marine Biological Diversity— [Col. 233]

RESOLUTION—

- (a) Waiver of Visa Requirement Agreement between Ghana and Angola— [Col. 194]
- (b) Agreement between Ghana and Serbia on the Abolition of Visa Requirement for Diplomatic and Official (Service) Passport Holders— [Col. 202]
- (c) Agreement Between Ghana and Algeria on the Waiver of Visa Requirements for Diplomatic and Service Passport Holders— [Col. 211]
- (d) Headquarters Agreement between Ghana and Afrobarometer— [Col. 231]
- (e) Agreement under the United Nations Convention on the Law of the Sea (UNCLOS) on the Conservation and Sustainable Use of Marine Biological Diversity— [Col. 247]

STATEMENTS—

Tribute to His Royal Highness Naa Prof. John Sebiyam Nabila, Wulugunaba (1940 - 2025)— [Col. 285]

ADJOURNMENT— [Col. 298]

Correction of errors of substance may be made only on the floor of the House with the permission of the Speaker. However, correction of typographical or grammatical errors which Members suggest for the Bound Volumes which will be compiled at the end of the Meeting may be clearly marked in the Daily Report, and the copy containing the corrections submitted at the Editor's Office, Parliament House, not later than four clear days after the publication of the Daily Report.

BOUND VOLUMES of the Official Report (each with a comprehensive Index) are issued periodically during the Session. There is no fixed subscription rate, but prices will be quoted on each publication.

*Published by Office of Chamber Reporting,
Parliament House, Accra.*

*Designed and Printed by Publishing Department,
Parliament House, Accra.*

©2025 Parliament of Ghana.

THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

THIRD MEETING, 2025

Thursday, 11th December, 2025

*The House met at the Chamber,
Parliament House, at 1:04 p.m.*

[HON FIRST DEPUTY SPEAKER,
MR BERNARD AHIAFOR, IN THE
CHAIR]

[PRAYERS]

Mr First Deputy Speaker: Hon Members, we take the item numbered 5, *Correction of Votes and Proceedings and Official Report*, even in the absence of an *Official Report*.

**VOTES AND PROCEEDINGS AND
THE OFFICIAL REPORT**

Mr First Deputy Speaker: In my hand is the *Votes and Proceedings* of Wednesday, 10th December, 2025 for correction.

Page 1...14—

Yes, Hon Member?

Mr Frank Afriyie: Mr Speaker, thank you so much. May I respectfully recommend that on the page numbered 14, the item numbered 3(i), beyond recognising Hon Abla Gomashie as the Member of Parliament, if we could kindly add her Ministerial portfolio as well. I think that is standard practice, as done on the page numbered 16, to the Hon Minister for Sports and Recreation.

Mr First Deputy Speaker: Table, take note.

Page 15—

Mr Afriyie: Again, this is just a minor one. On the item numbered 1, the very last line, I recommend that we delete the title “Mr” after the word “Chairman” and insert the title “Dr”. Hon Ernest Henry Norgbey is now a doctorate degree holder.

Mr First Deputy Speaker: Hon Member, we repeatedly indicated in this House that, when the person wants such a title to be used, he or she must write to the Table Office. So, in the absence of that, I think it is about time we stopped making these kinds of corrections.

Mr Afriyie: Mr Speaker, I do not intend to challenge your powers, but if you could kindly indulge me, may you turn to the page numbered 23. Here, he has been acknowledged as “Dr Ernest Henry Norgbey”. So, I am only seeking consistency.

Mr First Deputy Speaker: So, Table, cross-check and be consistent.

Page 16...28—

Mr Afriyie: I was up when you got to the page numbered 27. The item numbered 1, line one, it states that: “The Committee met on Wednesday, 4th December...”. Per the calendar we have for 2025, Wednesday is rather 3rd December. So, if the Committee really met on Wednesday, then it should be 3rd December. But if they met on 4th December, then that should be a Thursday.

Mr First Deputy Speaker: Table, cross-check. Yes, Hon Member?

Dr Ernest Henry Norgbey: Mr Speaker, thank you very much.

Kindly permit me to take you back to the page numbered 7, item number 33. I was present in the House yesterday.

Mr First Deputy Speaker: Very well, Table, take note.

Page 28?

Yes, Hon Member?

Mr Afriyie: The item numbered 2(iv), the title “Mr” should be deleted and replaced with the title “Dr” in relation to Hon Albert Tettey Nyakotey.

Again, on the item numbered 3(iii), Dr Bossman Asare is the Deputy Chair, Corporate Affairs. But in the *Votes and Proceedings* only the word “Corporate” is captured. So, that should be written in full.

Again, on the item numbered 3(v), may we delete the name “Diuodu” from the names stated as “Mr Kofi Kye-Diuodu” and insert the name “Duodu”.

Thank you.

Mr First Deputy Speaker: What, again, is the basis of saying that he should be Dr Nyakotey?

Mr Afriyie: Mr Speaker, rightly, the document I hold recognises him as a holder of a doctorate degree.

Mr First Deputy Speaker: How come you are seeing him as a holder of a Doctorate Degree and I am not seeing same?

Mr Afriyie: Mr Speaker, if you refer to the list of Members present and absent, you would see it there.

Mr First Deputy Speaker: Very well, you are referring to the attendance.

Mr Afriyie: Yes, thank you, Mr Speaker.

Mr First Deputy Speaker: Very well. But sometimes we need not blame the Table Office, in the sense that this is a Committee attendance. If this is how the attendance was brought to their notice, they are not supposed to add anything to it. So, I do not think it is an error that will call for correction. Because, basically, they do not write the attendance list of the Members present or absent in a meeting. So, I do not think we should bother ourselves correcting titles regarding attendance at meetings.

Hon Members, is that alright? If it is attendance in Parliament, then we can urge upon the Table Office to use the correct designation. But if it is attendance at a meeting, then we have to task the clerks of the Committees to make sure they furnish the Table Office with the correct titles. Other than that, we cannot blame our *Votes and Proceedings* for it.

Page 29?

Yes, Hon Richard Acheampong?

1:14 p.m.

Mr Richard Acheampong: Mr Speaker, sorry to take you back to page 6. I have been on my feet but you were looking at — yesterday, Dr Dominic Akuritinga Ayine was present in the House. He stayed here for more than four hours, but he has been marked absent, so if the Table Office can correct that.

Mr First Deputy Speaker: Table Office, take note, but Hon Richard Acheampong, when we were on page 6, you were not on your feet. So, it is therefore very misleading to say you were on your feet. Table Office, take note accordingly.

Hon Members, the *Votes and Proceedings* of Wednesday, 10th December, 2025, as corrected is hereby adopted as the true record of proceedings.

COMMUNICATION FROM THE PRESIDENT

Absence from Ghana

Mr First Deputy Speaker: Hon Members, there is a message from His Excellency, the President of the Republic of Ghana, dated 10th December, 2025, from the Jubilee House.



REPUBLIC OF GHANA

Jubilee House



The President

10th December, 2025

Rt. Hon. Speaker,

ABSENCE FROM GHANA

In accordance with Article 59 of the 1992 Constitution of the Republic of Ghana, I write to formally notify you of my intention to travel outside the country tomorrow, 11th December 2025, to Nairobi, Kenya, to attend the Jamhuri Day celebrations at the invitation of H.E. William Ruto, President of the Republic of Kenya, scheduled for 12th December, 2025.

Following this engagement, I will proceed to Abuja, Nigeria, to participate in the 68th Ordinary Summit of the Authority of Heads of State and Government of ECOWAS on 14th December, 2025. I am expected to return to Ghana on 15th December, 2025.

In my absence, the Vice President, Professor Naana Jane Opoku-Agyemang, shall perform my functions in accordance with Article 60(8) of the Constitution.

JOHN DRAMANI MAHAMA

**THE RT. HON. SPEAKER
OFFICE OF PARLIAMENT
PARLIAMENT HOUSE
ACCRA**

cc: The Vice President
Jubilee House
Accra

The Chief of Staff
Jubilee House
Accra

Hon Members, this is the communication from His Excellency, the President of the Republic of Ghana. Before proceeding with the other items on the *Order Paper*, permit me to introduce students from Compassion International, Ghana, led by Mercy Mawusi Koukayi, a youth development specialist. They are from Okaikwei North Constituency and they are 73 in number.

[Students of Compassion International, Ghana, were acknowledged.]

We also have students from Ashaiman Technical and Vocational School, led by Salvation Mawulom Koku, the Municipal Director. They are from Ashaiman and they are 70 in number. Hon Norgbey, your students are here.

Dr Ernest Henry Norgbey: You are welcome.

[Students of Ashaiman Technical and Vocational School were acknowledged.]

We also have students from Wesley Grammar Senior High School, led by Victoria Akuyo Sedegah, Assistant Director for National Commission for Civic Education (NCCE), Ablekuma North. They are from Ablekuma North and they are 58 in number.

[Students of Wesley Grammar Senior High School were acknowledged.]

We also have Ahwerase M/A Junior High School, led by Juliet Asiedu, the Headteacher. They are from Akuapem

South Constituency. They are 70 in number.

[Students of Ahwerase M/A Junior High School were acknowledged.]

Hon Members, on your behalf, I welcome our dear students to Parliament of Ghana and hope you would have a very fruitful visit to Parliament. Once again, you are welcome. May you all kindly resume your seats.

Yes, Deputy Majority Leader?

Deputy Majority Leader (Mr George Kweku Ricketts-Hagan): Thank you, Mr Speaker. I would crave your indulgence to alter the order of Business today by going to the item numbered 8 on page 10 of the *Order Paper* to lay a few Papers and a Bill. That is at the commencement of public Business.

Mr Speaker, so we would look at 8(a).

Mr First Deputy Speaker: Hon Members, at the commencement of Public Business, Presentation of Papers. Item numbered 8(a) by the Majority Leader and Leader of Government Business.

Mr Ricketts-Hagan: Mr Speaker, the Leader is not available at the moment, so I am asking your permission to do that on his behalf.

Mr First Deputy Speaker: Deputy Minority Leader, you may then have the floor to lay the item numbered 8(a).

PAPERS

By the Deputy Majority Leader (Mr George Kweku Ricketts-Hagan) on behalf of the Majority Leader —

Budget Performance Report of the Commission on Human Right and Administrative Justice (CHRAJ) for the period January to December, 2024.

Referred to the Committee on Independent Constitutional Bodies.

Mr First Deputy Speaker: Item number 8(b).

Mr Ricketts-Hagan: Mr Speaker, the Minister for Health is not available at the moment, so again, we ask your permission for the Minister to lay that on his behalf.

Mr First Deputy Speaker: Which Minister?

Mr Ricketts-Hagan: Ms Lydia Lamisi Akanvariba, the Minister of State for Public Sector Reforms.

Mr First Deputy Speaker: Very well. Yes, Hon First Deputy Minority Whip?

First Deputy Minority Whip (Alhaji Habib Iddrisu): Mr Speaker, the Deputy Majority Leader is not giving us reasons why the Minister is not here, and the Minister has a deputy, so where is the Deputy Minister for Health? If the Minister is not here, where is his Deputy? They should tell us, not to just say the Minister is not here so they want the Minister of State to do — Where is

the Minister? Why is he not here to carry his Business?

Majority Chief Whip (Mr Rockson Nelson Etse Kwami Dafeamekpor): Mr Speaker, the Ministry has a very important function this morning, so they will be here in about 30 minutes. You would notice that we varied the order of Business, which is why we are praying — But the Hon First Deputy Minority Whip knows this, and he should not litigate this matter.

1:12 p.m.

Mr First Deputy Speaker: Yes, Hon First Deputy Minority Whip?

Alhaji Habib Iddrisu: Mr Speaker, we do not have any difficulty.

Mr First Deputy Speaker: Hon Minister, you have the floor.

By Minister of State, Public Sector Reforms (Ms Lydia Lamisi Akanvariba) on behalf of the Minister for Health —

Annual Statement by the Audit Committee of the Tamale Teaching Hospital for the year, 2024.

Referred to the Committee on Health.

Mr First Deputy Speaker: Hon Members, we proceed to take the item numbered 8(c).

By the Chairman of the Committee —

Report of the Finance Committee on the Agreement on Privileges and

Immunities of the Global Fund to Fight AIDS, Tuberculosis and Malaria (2011).

Mr First Deputy Speaker: Hon Members, the item numbered 8(d), by the Chairman of the Committee.

Mr George Kweku Ricketts-Hagan: Mr Speaker, the Chairman of the Committee is not here, so I would ask Hon Nyakotey, who is a member of the Committee, to do that on his behalf.

Mr First Deputy Speaker: Yes, Hon First Deputy Minority Whip?

Alhaji Habib Iddrisu: Mr Speaker, we do not have any difficulty.

Mr First Deputy Speaker: Yes, Hon Member of the Committee, you have the floor.

By Dr Albert Tetteh Nyakotey on behalf of the Chairman of the Committee —

Report of the Committee on Energy on the GNPC Work Programme and Budget for the year, 2026.

Mr First Deputy Speaker: Hon Members, the item numbered 8(e), by the Chairman of the Committee.

By the Chairman of the Committee —

Report of the Committee on Road and Transportation on the Road Traffic (Amendment) Bill, 2025.

Mr First Deputy Speaker: Yes, Hon Majority Leader?

Mr Ricketts-Hagan: Mr Speaker, we can take the item numbered 9(b).

Mr First Deputy Speaker: Hon Members, the item numbered 9(b), Presentation and First Reading of Bills.

Yes, Hon Majority Leader? Hon Minister for Sports and Recreation?

The presentation of the item numbered 9(b) is deferred.

Yes, Hon Majority Leader.

Mr Ricketts-Hagan: Mr Speaker, the Hon Minister is not here. So, I will indulge you that we ask the Hon Minister for Transport to do that on his behalf.

Mr Speaker, we are just laying the Paper.

Mr First Deputy Speaker: Hon Majority Leader, the presentation of this item is accordingly deferred.

Any other Business?

Mr Dafeamekpor: Mr Speaker, indeed, we have other Businesses to conduct.

Mr Speaker, may we turn to the Motions and take the Motion numbered 12.

Mr First Deputy Speaker: The Motion numbered 12, by the Chairman of the Committee —

Alhaji Habib Iddrisu: Mr Speaker, I wanted to draw the attention of the Hon

Majority Chief Whip. Can we rather take the Motions numbered 10 and 11 since the Chairpersons of those Committees are here? With the Motion numbered 12, which is the Committee on Parliamentary Affairs, the Chairperson of the Committee is not here yet, so we can get him to come, unless he is also opposed to Government Business, then that is fine.

Mr Dafeamekpor: Mr Speaker, I am not opposed at all, but why is their Chairperson not here? They should produce their Chairperson. *[Laughter]*

Mr Speaker, we will take—

Mr First Deputy Speaker: Hon Majority Chief Whip, that is an opposition language. *[Laughter]*

Mr Dafeamekpor: Mr Speaker, in that event, we will take the Motions numbered 10 and 11 accordingly.

Mr First Deputy Speaker: Very well. The item numbered 10 on page 11 of today's *Order Paper*, by the Chairman of the Committee.

ANNUAL ESTIMATES, 2026

OFFICE OF THE HEAD OF CIVIL SERVICE

Chairman of the Committee (Mr Kwaku Asante-Boateng): Mr Speaker, I beg to *move*:

That this honourable House adopts the Report of the Committee on Public Administration and State

Interest on the allocation of the sum of GH¢97,170,976.00 for the services of the Office of the Head of Civil Service for the year ending 31st December, 2026.

Alhaji Habib Iddrisu: Mr Speaker, I rise to second the Motion.

Mr First Deputy Speaker: So, Hon Chairman of the Committee, in moving the Motion, kindly present the Committee's Report.

Mr Asante Boateng: Mr Speaker, in presenting the Report, I want the *Hansard* to capture the entire Report as having been read.

Introduction

On Thursday, 12th November, 2025, the Minister for Finance, Dr Cassiel Ato Baah Forson, presented to Parliament, the Budget Statement and Economic Policy for the Government of Ghana for the 2026 Fiscal Year in accordance with Article 179 of the 1992 Constitution and Standing Order 195(2) of Parliament.

Following the presentation, the 2026 Budget Estimates of the Office of the Head of Civil Service was referred to the Committee on Public Administration and State Interest for consideration and report in accordance with Standing Orders 195(4) and 260 of Parliament.

Deliberations

In the consideration of the Estimates, the Committee was assisted by the Chairman and officials from the Ministry

of Finance, the Office of the Head of Civil Service (OHCS), and the Civil and Local Government Staff Association, Ghana (CLOGSAG).

The Committee expressed its gratitude to the Officials for the assistance.

Reference Documents

The Committee made references to the following documents during its deliberations:

- i. The 1192 Constitution of the Republic of Ghana.
- ii. The Standing Orders of the Parliament of Ghana.
- iii. The Budget Statement and Economic Policy of the Government of Ghana for the 2024 Fiscal Year.
- iv. The Budget Statement and Economic Policy of the Government of Ghana for the 2025 Fiscal Year.
- v. The Budget Estimates for the Office of the Head of Civil Service for the year 2025.

Background

The Office of the Head of Civil Service (OHCS) is a Central Management System mandated to provide leadership, manage the human resources, and facilitate the work of the

Civil Service to enable it respond positively to the Government's expectations as well as the aspirations of stakeholders and the general public.

The Office exists to assist the Government in the formulation and implementation of Government policies for the development of the country, through the management of human and other resources, promotion of efficient information management, organisational development, and value for money. It also helps in the procurement of human resources for the delivery of results-oriented and knowledge-driven services.

Goal of the OHCS

To have the human resources and institutional capacity to formulate, implement, monitor, and evaluate policies for national development, as well as the ability to effectively and efficiently provide timely and satisfactory services to all of its stakeholders.

Core Functions of the OHCS

The core functions of OHCS are as follows:

- i. Formulate or review the HRM related policies, guidelines, standards and programmes for the Service, and facilitate their implementation;
- ii. Monitor and coordinate all Human Resource Management related programmes at the Ministries and Departments to ensure uniformity in the application of rules and adherence to standards;

- iii. Develop and ensure the implementation of a robust performance management system for the Civil Service;
- iv. Develop and facilitate the conduct of systematic, competency-based training for the acquisition of skills consistent with the needs of the Service;
- v. Exercise oversight responsibility for the management of Civil Service Training Institutions;
- vi. Develop records management policies and standards for records keeping in public institutions;
- vii. Monitor and restructure the records management system and train staff in line with international best practices;
- viii. Provide requisite environment for the storage, retrieval and use of archival materials;
- ix. Design and institutionalise structures and systems to facilitate effective and efficient delivery of public procurement and supply chain management processes in the Civil Service;
- x. Develop and review the standard operating procedures to guide procurement and supply chain managers; and
- xi. Develop and monitor a composite annual procurement plan for the Civil Service.

Performance/key Achievements for 2025

For the year 2025, the Office held the following activities:

- Organised the 2025 Civil Service Week and 2024 Awards Ceremony on the theme “*Adapting to Automation, Artificial Intelligence, and E-Governance: The Civil Service in Contemporary Ghana*”. As part of the celebrations, 118 Officers were honoured for their dedication, professionalism and exemplary service.
- Organised a sensitisation workshop for Officers from Three (3) of its Training Institutions and Four (4) of its departments on the topic “Understanding the Whistle Blower (Amendment) Act, 2023 (Act 1103)” as part of its efforts to implement the National Anti-Corruption Action Plan (NACAP).
- Organised an orientation workshop for the eight (8) members of the Civil Service Council, which was constituted and inaugurated on 19th August 2025.
- Prepared and submitted to the Presidency the 2024 Civil Service Annual Performance Report (CSAPR) in line with Section 85 of the Civil Service Act, 1993 (Act 327).
- Held a Training Workshop for Gender Desk Officers (GDOs) from all Ministries and

Departments on Action Plan and Reporting on Gender Mainstreaming.

- Developed a Standard Operating Procedure (SOP) for mainstreaming gender within the Civil Service and issued circulars to guide the development of Gender Action Plans.
- Produced ten (10) Institutional and structural plans for the newly established and restructured Ministries.
- Organised the 2025 National Procurement and Supply Chain Conference. A total of 400 procurement professionals participated in the Conference.
- Vetted a total of 5,324 documents of Officers due for Promotion for the year 2025. A total of 3,962 Officers has been interviewed to date (1,918 virtual interviews and 2,044 documents vetted).
- Organised an HR Directors forum for 145 HR Directors. Additionally, a two-day training session was held for 131 panel members in preparation for the promotion interviews.
- Developed and operationalised an HRM promotion and facilities tracker. Currently, efforts are being put in place to host the tracker on the internet to facilitate real time reporting.

- Digitised personnel records of 2,307 Civil Service staff. A total of 18,186 index cards has also been converted from manual to Microsoft Excel.
- Established and launched the Civil Service Employee Assistance Programme (CSEAP) on 31st July, 2025 to support the mental health and well-being of Civil Service staff.
- Conducted recruitment interviews for one hundred and fifty-six (156) graduate interns for the Ministry of Finance based on the 2025 Financial Clearance.
- Facilitated the recruitment Interviews of eight (8) applicants for the Ministry of Foreign Affairs based on the 2024 financial clearance which expired on 31st March, 2025. Appointment letters have been issued to the selected candidates.
- Facilitated the recruitment of eight (8) staff for the Information Services Department based on financial clearance obtained this year. Appointment letters have again been issued to the selected candidates.
- Trained a total of 7,063 Civil Service staff in the Scheme of Service (SOS) and Competency-Based Training programmes, which was aimed at enhancing core skills, improving job performance, and aligning staff

capabilities with the strategic goals of the Civil Service. In all, 1,114 of these Officers accessed the training through the Learning Management System (LMS).

- Conducted an assessment to evaluate the performance of Directors, Analogous Grades, and Heads of Departments (HoDs) for the 2024 reporting year. A total of 281 Officers were evaluated, comprising 20 Heads of Departments (HoDs) and 261 Directors/Analogous Grades.
- Updated the Civil Service Database for 3,815 Officers,

ensuring more accurate and reliable personnel records to support data-driven decision-making and workforce planning

2025 Budget Performance

In the 2025 financial year, the OHCS was allocated an amount of seventy-six million, three hundred and four thousand, seven hundred and ninety-seven Ghana cedis (GH¢76,304,797.00). Out of this amount, a total amount of GH¢59,394,956.41 was utilised as at October 2025, leaving an outstanding balance of GH¢16,909,840.59. The breakdown and analysis of the budgetary allocation is presented in table 1 below:

Table 1: Budgetary Allocation – GOG and IGF (Jan. to Oct, 2025)

Funding Sources	Approved Budget (GH¢) (A)	RELEASED	Expenditure as at Dec. (GH¢) (C)	Variance (GH¢) (A-C)
Compensation of Employees	56,157,436.00	48,677,703.55	48,677,703.55	7,479,732.45
Goods and Services	14,618,999.94	9,056,555.25	7,969,297.51	6,649,702.43
CAPEX	5,528,361.06	4,248,339.06	2,747,955.35	2,780,405.71
Grand Total	76,304,797.00	61,982,597.86	59,394,956.41	16,909,840.59

IGF Allocation and Outturn

During the period under review, an amount of GH¢8,837,490.00 was approved as budget for IGF for the

Office. Details of the allocation and actual received by the Office is captured in Table 2 below:

Table 2: Summary of Budgetary Allocation for IGF and Donor Returns (Jan-Nov, 2025)

	Item	Approved Budget	Collections	Actual	Variance
1	IGF	8,837,490.00	5,293,074.89	3,885,395.75	4,952,094.25
2	DONOR	-	-	-	-
	TOTAL	8,837,490.00	5,293,074.89	3,885,395.75	4,952,094.25

2026 Budget Estimates of the OHCS

For the year 2026, the OHCS has been allocated a sum of ninety-seven million, one hundred and seventy thousand, nine hundred and seventy –six

Ghana cedis (GH¢97,170,976.00) to implement its stated programmes and activities. The breakdown of the budgetary allocation is presented in table 2 below:

Table 2: 2026 Estimates for OHCS

	GoG (GH¢)	IGF (GH¢)	Total (GH¢)	% of Total (GH¢)
Compensation	65,884,801.00	0.00	65,884,801.00	67.8
Goods and Services	12,339,871.00	7,156,068	19,495,939.00	20.1
CAPEX	7,000,000.00	4,790,236	11,790,236.00	12.1
Grand Total	85,224,672.00	11,946,304.00	97,170,976.00	100.0

Outlook for 2026

In 2026, the Office will:

- Continue the review of the Civil Service Act 1993 (Act 327) and Regulations 1960.
- Establish the Service-Wide Creche facility for the office.
- Strengthen the Counselling Unit of the Office.
- Produce the 2025 Civil Service Annual Performance Report.
- Establish and operationalise the OHCS change management programme.
- Organise the 2026 Civil Service Week Celebration and 2025 Awards Ceremony.
- Restructure dysfunctional records management systems across the Civil Service.

- Train and sensitise officers on records management.
- Monitor/assess records management systems of 30 public institutions.
- Transfer Semi Current Records to the National Records Centre for further retention.
- Conduct Management Reviews and review of Client Service Charters.
- Initiate discussions with relevant stakeholders to review the Stores Regulations.
- Collaborate with PIAD and other relevant stakeholders in organising Regional Roadshows on Public Private Partnerships (PPP).
- Organise the National Procurement and Supply Chain Conference (Summit).
- Collaborate with PPP to improve the infrastructure capacity of OHCS-HQ and its Departments.
- Organise sensitisation workshops on the reviewed Schemes of Service and other HR facilities for HRM Directors and monitor the implementation of same at the Ministries and Departments.
- Assess and promote 5,500 eligible Officers due for promotion for the year 2026.

- Develop additional training programmes (include ADIIA and ADI and additional courses) for the LMS to strengthen e-learning capacity.
- Monitor Service-Wide Client Service Operations and strengthen compliance reporting on Client Service Charters.
- Conduct the assessment of the 2025 Chief Directors, Heads of Departments, Directors/Analogous Grades Performance Agreements.
- Undertake monitoring of Chief Directors and Heads of Departments Performance Agreements.
- Complete and operationalise the expansion of the E-SPAR system to cover Directors/Heads of Departments.

Observations and recommendations

Reforming the Government Secretariat School

The office informed the Committee that as part of measures to improve service delivery at its Government Secretariat Schools, the Office is reviewing the training framework of the institution. The school is being restructured, and steps are being taken to review the curricula to ensure that they are consistent with the needs of the public sector.

Database Centre

In a response to whether the Public Records and Archives Department (PRAAD) had a data centre, and how secure it was, Management indicated that the Department had one and was safely situated within the premises of the Department.

The Committee was, however, of the opinion that the Ghana National Data Center/NITA was the most appropriate place to establish the data centre. The Ghana National Data Centre was established to create an enabling environment for the effective deployment and use of ICT by all sectors in the country. The Committee opined that NITA's data centre is home to the computational power, storage, and applications necessary to support any IT service, including data centres. The Centre had adequate safety measures to protect the integrity of data. Therefore, establishing the Data centre at NITA would go a long way to secure and protect the valuable data of PRAAD.

The Committee therefore urged management to link up with NITA to establish the data centre.

Civil Servants Training Centre

Management informed the Committee that the training centre was established to provide training for middle and lower level civil and public servants. The Centre aims at improving the effectiveness and efficiency of public and civil servants through adult learning approaches and activities. The Centre

provides the training through its learning management systems and the Zoom app to train the public servants across the country. Currently, the certificate given at the Centre had no substitute for any other training requirement of an MDA.

Management indicated that there was the need to expand the Centre's activities. Unfortunately, due to funding challenges, the Centre is unable to expand to address the training needs of the public sector. Management appealed to Parliament to urge Government to provide much more funding to the Centre to help it realise its goals.

Appointments to the Office of Chief Directors

The Deputy Executive Secretary of CLOSAG commented on how current appointments are made to the position of Chief Directors in the Civil Service. He stated that in recent times, persons being appointed to the position of Chief Directors were personnel who have been seconded to the Ministries over a period from other agencies/organisations. These seconded staff are selected and given preference over the core civil servants.

He intimated that the current trend was counter-productive and may lead to workers' agitation. He called on the Office of the Head of Civil Service and Parliament to help stop the practice.

The Committee expressed the view that appointing outsiders to positions of Chief Director would certainly serve as a disincentive to the permanent staff and may adversely affect productivity in the

Service. The Committee therefore urged the Executive, as a matter of urgency, to promote and use core civil servants to the position of Chief Directors.

Recruitment into the Civil Service

The Deputy Executive Secretary of CLOSAG informed the Committee that the Office has a number of training institutions. Most of the graduates from the institutions are expected to be recruited into the Civil Service. Unfortunately, after obtaining the requisite skills, they are not recruited, but rather, persons who never attended the training schools are recruited. He argued that, when recruited, these persons would have to be trained again at these same schools at a cost to the State.

He called on the Committee to urge the OHCS to recruit graduates from these schools to fill vacancies in the civil service. This, in his opinion, would make the schools more attractive and ensure that persons recruited are fit for the job.

Poor State of Office Infrastructure

Management informed the Committee that the office infrastructure of OHCS was in a bad state and requires urgent rehabilitation. The premises of the Headquarters, the Internal Audit, MSD and PRAAD were in a deplorable state. The ICT infrastructure was faulty and in a bad state. Computers, furniture and other office equipment were woefully inadequate. The situation was adversely affecting work output and the efficient delivery of Services.

Management indicated that the present allocation was not enough, and that it would require additional financing to enable it rehabilitate and replace all defective equipment. It therefore pleaded with Parliament to urge the Ministry of Finance to make an additional allocation to the Office.

In view of the importance of the role of the OHCS, the Committee recommends that the Ministry of Finance make further allocation during the Mid-year review to assist the Office in undertaking the necessary rehabilitation.

Need to Digitalise Records at PRAAD

The Committee was informed that there was an urgent need to digitalise and adequately store the records at PRAAD in order to preserve them for future reference. Currently, the records were decaying, and documents were withering. Without the needed preservation, these valuable records would be lost. Unfortunately, the budgetary allocation made was not enough to enable PRAAD to undertake the preservation. It therefore pleaded with Parliament to urge the Ministry of Finance to make an additional allocation to the Office.

Improving the Quality of Services at the Training Institutions

Management informed the Committee that steps were being taken to improve the quality of training at its institutions. To do this, the OHCS was improving upon its Learning Management System. Other innovations, including the use of virtual learning tools like Zoom, were

being deployed to expand and ensure easy access to training by deserving persons.

Unfortunately, inadequate funding was hampering the efforts of the Office to provide adequate training to Civil Servants for quality and efficient service delivery. It therefore called on the Government to make a special allocation to the Office to support its efforts to train public servants to optimise Service Delivery.

The Committee urged the Ministry of Finance to work with the OHCS to ensure that adequate provision is made to the Office to help train the public servants.

Conclusion

The Committee, after careful examination of the estimates, finds the programmes for which the sums have been allocated to be necessary for the proper and effective functioning of the Office of the Head of the Civil Service and its Agencies.

The Committee therefore recommends to the House to adopt its Report and approve a sum of ninety-seven million, one hundred and seventy thousand, nine hundred and seventy-six, Ghana cedis (GH¢97,170,976.00) for the implementation of the programmes and activities of the Office of the Head of Civil Service (OHCS) for the financial year ending 31st December, 2026.

Respectfully submitted.

1:34 p.m.

Alhaji Habib Iddrisu: Mr Speaker, I rise to second the Motion numbered 10 on page 11 of today's *Order Paper* that the Committee recommends the approval of GH¢97,170,976.00 for the implementation of the programmes and activities of the Office of the Head of Civil Service.

Thank you, Mr Speaker.

Mr Acheampong: Mr Speaker, I want to make a very quick observation about the Report so that the Ministry will take action. Mr Speaker, if you turn to page 12 of the Report, officers reported to the Committee — I was a Member of that Committee; they just sacked me from that Committee without informing me.

Mr First Deputy Speaker: Hon Member, we know how Committees are composed. You know how membership in Committees is removed.

Mr Acheampong: Just by the way but the point remains that I have been sacked from that Committee—

Mr First Deputy Speaker: Hon Member, let me substitute a correct word; you have been “removed” from that Committee.

Mr Acheampong: All right, I have been removed.

Mr First Deputy Speaker: Very well, continue.

Mr Acheampong: Mr Speaker, they have a school that trains their staff and other people. But when it comes to recruitment, they do not engage those whom they have trained; instead, they go outside the people they have trained and engage different people. They then bring the people they have engaged to be trained again. This is a cost to the state.

This is something we need to fashion out and make sure that the people that they have trained are migrated into the system, rather than to train and leave them, and go and engage different people for the institution to train. So, the people that they have trained, what is their use? These are some of the things the institution must take up and make sure that they engage the people that we spend resources to train, rather than bringing new people to train again. It does not make any economic sense to the institution.

These are some of the things the Ministry must take up and find a lasting solution. I support the Committee's Report to approve the sum of GH¢97,170,976.00 for the operations of the institution for the year 2026.

Thank you very much, Mr Speaker.

Mr Patrick Yaw Boamah: Just to add my voice to the Motion on the Floor of the House and to draw attention to Paragraph 7.0, it states:

“That the Civil Service organised a sensitisation workshop for Officers from Three (3) of its Training Institutions and Four (4) of its

Departments on the topic “Understanding the Whistle Blower (Amendment) Act, 2023 (Act 1103)” as part of its efforts to implement the National Anti-Corruption Action Plan (NACAP)”

Mr Speaker, why do I want to dwell on this? Very often, corruption issues, politicians are the ones that the whole country or the world looks at. It is very important that the Civil Service structure is taking this necessary step to encourage the training of our civil servants. A lot of things happen in the Civil Service structure with regard to corruption, and every government must be very serious about the efficiency of the Civil Service that it inherits. This is because if we do not have a strong, competent Civil Service structure, all policies and programmes will suffer. So, it is very important that the Government invests more in the training of our civil servants to adhere to clear guidelines and principles against corruption.

Mr Speaker, secondly, if you look at paragraph 11.2, which talks about the Public Records and Archival Department (PRAAD), which is supposed to store valuable information and data across the country. The agency lacks the requisite financing to be able to house some important national data, and I am requesting that the National Information Technology Agency, (NITA) be responsible in the storage of vital information. However, I think PRAAD, as set out, must be given the necessary resources to be able to have its own database, because in this world, data is gold, and if we have all our public

records that we require as a country, and PRAAD is not being resourced, there will come a time that we will need some vital information that will be missing.

Mr Speaker, I say this on record, that during the maritime disputes, Ghana had to go back to PRAAD for some important documents to enable us to litigate with our brothers on the west coast, Cote d'Ivoire. So, such an institution ought to be given the requisite resources, the database has to be modern, and the right personnel recruited to house the information that I am talking about.

With these few words, I support the Motion.

Nana Asafo-Adjei Ayeh: Mr Speaker, I rise to support the Report of the Committee. In doing so, I want to add a few things. Mr Speaker, I take the House to paragraph 11.4 titled, "Appointments to the Office of Chief Director". Mr Speaker, with your leave I want to read.

Mr First Deputy Speaker: Hon Member, make your comment without necessarily reading.

Mr Ayeh: The Deputy Executive Secretary of Civil and Local Government Staff Association, Ghana (CLOGSAG) —

Mr First Deputy Speaker: Hon Member, the *Hansard* has captured it so make your point.

Mr Ayeh: Mr Speaker, it is for emphasis.

Mr First Deputy Speaker: Make your point.

Mr Ayeh: Mr Speaker, it is for emphasis.

Mr First Deputy Speaker: Hon Member, make your point because it is already in the *Hansard*.

Mr Ayeh: Mr Speaker, I am making my point. I am saying that for emphasis, you would notice that all the chief directors that have been appointed in the Office are directors or members that have been seconded from other Ministries, which the Civil and Local Government Staff Association, Ghana (CLOGSAG) feels and thinks it is counterproductive and it is not building the morale of members of CLOGSAG and members who have been serving and duly recognised to grow within their stages.

Mr Speaker, I had wanted to raise the issue of PRAAD, but my Senior Hon Patrick Boamah has raised it. Just to add that, when we even look at the charges of PRAAD per space for storage, it is woefully inadequate. I would ask that if the House or the Ministry will look at something very substantial, that can help them also raise some funds to support their operations. That would be great for me.

Mr Speaker, I want to recommend that I support that GH¢97,170,976.00 be adopted for the Office of the Head of Civil Service. Thank you, Mr Speaker.

1:44 p.m.

Mr Adongo: Mr Speaker, I rise to support the Report of the Committee, but to re-emphasise the need for the State to pay particular attention to the preservation of very important records and data. The issue of Public Records and Archives Administration Department (PRAAD) has been a perennial problem. We have always complained that PRAAD is not being resourced enough to be able to keep our records. In these contemporary times, data should be digitalised. We should not have data sitting on files in people's offices and any time we have leakages; we basically lose everything. I agree with my Colleague that PRAAD must have a database, but that database can sit at the National Data Centre, and it is the very reason why we constructed the Data Centre to house all our national data. So, PRAAD should work towards getting a space within the National Data Centre, and be resourced enough to develop a database that can help us to store this data.

On the issue of the Government Secretarial Schools, Mr Speaker, today typewriters are no more in use. And those schools are basically secretarial schools that train people in the use of typewriters that we do not have anymore. Stenographer secretaries are no more available, which means that we need to reform that institution to become a better institution for building capacity of the Civil Service. There are several courses that can be provided in those institutions across the country so that the state can

benefit from the productivity that it generates.

Mr Speaker, with these few words, I would like to support the approval and adoption of the Report of the Committee.

Mr First Deputy Speaker: Yes, Minority Leadership?

Alhaji Habib Iddrisu: Mr Speaker, you can put the Question.

Mr First Deputy Speaker: Yes, Majority Leadership?

Mr Ricketts-Hagan: Mr Speaker, you may put the Question.

Question put and the Motion agreed to.

Resolved:

That this honourable House adopted the Report of the Committee on Public Administration and State Interest on the allocation of the sum of GH¢97,170,976.00 for the services of the Office of the Head of Civil Service for the year ending 31st December, 2026.

Mr First Deputy Speaker: Hon Members, I have been prevailed upon to wear a reverse gear to take the item numbered 9(b) once the Minister is in our midst, before we move to the item numbered 11.

Yes, Minister for Sports and Recreation, the item numbered 9(b)?

BILL — FIRST READING

GHANA SPORTS FUND BILL, 2025

AN ACT to establish a Ghana sports fund to provide sustainable funding for sports development in the country and sports for development to provide for the management of the Fund and for related matters.

Presented by the Minister for Sports and Recreation (Mr Kofi Iddie Adams). Read the First time; referred to the Committee on Youth and Sports.

Mr First Deputy Speaker: Yes, First Deputy Minority Whip?

Alhaji Habib Iddrisu: Mr Speaker, I rise on Order 97(3) to request the Minister to give us more—

Mr First Deputy Speaker: Hon Minister, in one minute, provide an explanation to the Bill.

Alhaji Habib Iddrisu: Mr Speaker, I do not think we have time allocation for this. He can explain as much as he can, and we do not even have copies of the Bill.

Mr Ayariga — *rose* —

Mr First Deputy Speaker: Well, in these matters, I am the manager of the time.

Yes, Hon Majority Leader?

Mr Mahama Ayariga: Mr Speaker, which Order did the Hon Deputy

Minority Whip say he is coming under? May I refresh our memories on what Order 97 says—

Mr First Deputy Speaker: Hon Majority Leader, what he means is Order 97(3).

Mr Ayariga: Yes, Mr Speaker, this is what 97 says. *[Interruption]* Do not worry, I will get to (3). All right. Let me read 97(3). It says:

“A short explanatory statement shall be made by the person presenting a Paper where requested by the House or a Member upon the presentation.”

I repeat “a Paper”.

Mr Speaker, is it a Paper that is being presented? *[Interruption]* No, read the interpretation provisions of the Standing Orders. A Bill is not a Paper. A Bill is a distinct document. It is not a Paper.

Mr Speaker, let us go to the Interpretation Clause and see if a Bill is ever defined as a Paper. Paper includes reports and things in that category. A Bill is a specific type of instrument that is introduced in this Parliament. So, one cannot say that when a Bill is introduced there should be an explanation. A Bill already has the characteristics which makes provision for what he is requesting for. A Bill must have an Explanatory Memorandum which explains—So Mr Speaker, he will not be able to obstruct the Minister today. He is out of order and he should be ruled as such.

Mr First Deputy Speaker: Hon Member, I strongly believe this is not a matter for us to debate. If you go to page 2 of our Standing Orders, Bill means “a draft of an act of Parliament”. If we move to page 7, Paper means “a document other than a Bill, Constitutional or Statutory Instrument, or a petition presented to Parliament”. Hon Members, if we then move to the relevant Order, Order 97(3), it states clearly, and if I may read:

“A short explanatory statement shall be made by the person presenting a Paper, where requested by the House or a Member upon the presentation”.

Hon Members, having looked at the definition of a Bill at page 2 of the Standing Order, Order 6, and having looked at the same Order 6 at page 7, the definition of a Paper, the conclusion is that a Bill is not a Paper for which a short explanation should be given at its presentation. I would accordingly sustain the objection by not asking the Minister so to do.

1:54 p.m.

Alhaji Habib Iddrisu: Mr Speaker, if the Majority Leader is saying that Order 97(3) does not apply here, then I come under Order 163(3). Mr Speaker, with your permission, I read:

“After the presentation of a Bill, a Member may ask the Sponsor to offer a short explanatory statement on the Bill and the Sponsor shall comply.”

Mr Speaker, I so submit.

Mr First Deputy Speaker: Very well. Having come under the appropriate Order, I will then proceed to ask the Minister to give a short explanation of the Bill being introduced.

So, Minister, you have the floor.

Minister for Sports and Recreation (Mr Kofi Iddie Adams) (MP): Mr Speaker, thank you very much.

Mr Speaker, it has been quite clear that over the years, this House has faced many challenges in addressing issues affecting funding for our sports in general. We have had instances where the Ministry I oversee has been described as a “football ministry” because funding is mostly secured to support just football. Indeed, when we talk about sports, it goes beyond football. There have been many attempts to put together a funding system that will enable the Ministry to execute its programme by bringing on board many more sporting disciplines and supporting them. Cabinet, in its wisdom, gave approval for this Bill to be submitted to Parliament for consideration, so that for the first time, the country will have a Sports Development Fund.

A fund that will draw from many sources, as indicated in the Bill that has been laid before this House, which, when approved, will not have the challenge of funding our sports, and sports will grow to bring about development and support other progressive activities in this country.

Mr Speaker, with these short words, I believe that this will suffice — the request of the Deputy Minority Whip and the rules of the House. Thank you.

Mr First Deputy Speaker: Thank you very much, Hon Minister. We then move to item numbered 11 on page 11 of today's *Order Paper*.

Chairperson of the Committee?

ANNUAL ESTIMATES, 2026

PUBLIC SERVICES COMMISSION

Chairperson of the Committee (Mr Kwaku Asante-Boateng): Mr Speaker, I beg to *move*:

That this honourable House adopts the Report of the Committee on Public Administration and State Interest on the allocation of the sum of GH¢28,636,743.00 for the services of the Public Services Commission for the year ending 31st December 2026.

Mr Speaker, in so doing, I present the Committee's Report and ask the *Hansard* Department to capture the entire report as having been read. Just a few comments, then I will go to the actual figures.

Introduction

The Hon Minister for Finance, Dr Cassiel Ato Baah Forson, presented to Parliament the Budget Statement and Economic Policy for the Government of Ghana for the 2026 Financial Year to the

House on Thursday, 13th November, 2025, in accordance with Article 179 of the 1992 Constitution and Section 21(3) of the Public Financial Management Act, 2016 (Act 921).

The Rt Hon Speaker referred the Estimates of the Public Services Commission (PSC) to the Committee on Public Administration and State Interests for consideration and report in accordance with Order 140(4) of the Standing Orders of the House.

Deliberation

In the consideration of the Estimates, the Committee was assisted by the Chairperson of the Public Services Commission, Prof Victor Kwame Agyeman and officials from the Ministry of Finance and the Public Services Commission (PSC).

The Committee expressed its gratitude to the officials for their assistance in the deliberations.

Reference Documents

The Committee made references to the following documents during its deliberations:

- a) The 1992 Constitution of the Republic of Ghana;
- b) Public Financial Management Act; 2016 (Act 921);
- c) The Public Services Commission Act, 1994 (Act 482);

- d) The Standing Orders of the Parliament of Ghana;
- e) The Budget Statement and Economic Policy of the Government of Ghana for the 2026 Financial Year; and
- f) The 2026-2029 Medium Term Expenditure Framework (MTEF) of the Public Services Commission.

Vision and Mission

The Public Services Commission (PSC) was established in 1994 by an Act of Parliament (Act 482) to formulate, monitor and implement Government policies and guidelines for the efficient management and development of the human resource base of the Public Service. The Vision of the Commission is to be a Leading and Dependable partner in Human Resource Management and Organisational Development in the Public Services of Ghana.

The Public Services Commission, therefore, exists to advise the Government on the criteria for appointment to public offices as well as persons to hold or act in Public Services. It is also to promote efficiency, accountability and integrity in the Public Service and prescribe appropriate measures including procedures for the management of personnel records within the Service.

The Commission is also mandated to explore, identify and promote the recruitment of suitable personnel into the Public Service and undertake the

planning of manpower requirements of the Public Service.

Additionally, the Commission is responsible for the conduct of examinations and interviews for appointments to posts and for promotions in the Public Services. This is to ensure a uniform standard of selection and qualification into the Public Service of Ghana.

Goals and Policy Objectives

The goal of Public Services Commission (PSC) for the medium term is to promote a well-managed public workforce capable of and committed to delivering high quality services for accelerated growth and achievement of the Sustainable Development Goals. The policy objective of the Commission is to build an efficient and effective government machinery.

In pursuit of its goals, the PSC has put in place the following key strategies:

- Improve leadership capability and delivery in the Public Service;
- Implement comprehensive Human Resource payroll system and database;
- Modernise Public Service institutions; and
- Improve work ethics in the Public Services.

Core Functions

The core functions of the Commission are to:

- i. Advise Government on the criteria for appointment to public offices as well as persons to hold or act in Public Service;
- ii. Promote efficiency, accountability, and integrity in the Public Service;
- iii. Prescribe appropriate systems and procedures for the management of personnel records within the Public Service;
- iv. Identify, explore and promote the recruitment of suitable personnel into the Public Service acting in collaboration with educational authorities;
- v. Undertake planning of manpower requirements of the Public Services; using data from the educational institutions and other sources;
- vi. Improve recruitment policies and techniques by introducing modern methods of judging suitability of officers;
- vii. Conduct examinations and interviews for appointment to post and for promotion in the Public Service or within public corporation to ensure uniformity of standards of selection and qualifications;
- viii. Review the organisations; structure and manpower requirements of agencies and bodies in the Public Service and advise Government on such manpower rationalisation as may be necessary for maximum utilisation of human resources in the Public Services;
- ix. Oversee the human responses development activities of the Public Service organisations to ensure career planning and career development in the Public Services; and
- x. Conduct, in collaboration with training institutions, personnel research into human resources management in the Public Services in order to improve personnel practices and their utilisation in the Public Service.

Key Achievements in 2025

In pursuit of its mandate, the Public Services Commission during the year under review:

- Organised the 12th Annual Conference of Governing Boards/ Councils, Chief Directors and Chief Executives of the Ghana Public Service;
- Trained 16 staff of the Commission in human resources and its related courses;

- Migrated 131 PSOs onto the HRMIS and deployed all the seven modules on the HRMIS;
- Continued support for End Users using the HRMIS to reduce system challenges;
- Submitted the revised Public Services Commission's Bill to the Attorney-General for onward submission to Cabinet;
- Processed a number of requests for recruitment and promotion;
- Conducted promotional examination for over candidates;
- Reviewed and approved Scheme of Services, Organograms and conditions of service of a number of institutions;
- Constituted the National Performance Management Committee to develop

a strategy to link pay to performance and productivity; and

- Conducted three performance workshops for 92 participants from various Ministries, Departments and Agencies.

2025 Budget Performance

GOG Allocation and Outturn

To undertake its planned programme of activities for the 2025 Financial Year, the sum of nineteen million, nine hundred and fifteen thousand, five hundred and fifteen Ghana cedis (GH¢19,915,515) was appropriated to the Public Services Commission. Out of this amount, GH¢17,074,034.00 was released and GH¢16,037,801.00 was spent, giving a variance of GH¢3,877,714.00. Details of the approved budget and actual expenditure as at November, 2024 is presented in Table 1 below:

Table 1: Summary of Budget Allocation and Expenditure Returns (Jan-Nov, 2025)

Cost Centre	Approved Budget (GH¢) (A)	Amount Released (GH¢) (B)	Actual Expenditure (GH¢) (C)	Variance (A-C)
Compensation	11,760,357.00	13,724,512.00	13,724,512.00	1,964,155.00
Goods & Services	3,155,158.00	2,313,677.00	2,313,677.00	841,841.00
CAPEX	5,000,000.00	3,000,000.00	-	-
TOTAL	19,915,515.00	17,074,034.00	16,037,801.00	3,877,714.00

IGF and Donor Allocations and Outturn

During the period under review, an amount of GH¢82,000.00 was approved as budget for IGF for the Commission

and GH¢1,630,000.00 was approved as Donor. Details of the allocation and actual received by the Commission is captured in Table 2 below:

Table 2: Summary of Budgetary Allocation for IGF and Donor Returns (Jan-Nov, 2025)

	Item	Approved Budget	Actual	Variance
1	IGF	82,000.00	70,661.00	11,339.00
2	DONOR	1,630,000.00	0	1,630,000.00

Outlook for 2026

In furtherance of its mandate and stated objectives, the Commission intends to undertake the following activities, among others, in 2026 Financial Year;

- Facilitate the conduct of promotion and recruitment interviews;
- Process petitions, grievances and complaints from public servants;
- Train Human Resource Directors and Managers on the HRMPF&M;
- Build Capacity of Human Resource Managers and Directors in the Public Service on procedures and practices in the appointment and recruitment processes;
- Professionalise Human Resource practices in the public service;
- Enhance corporate governance in the public service;
- Organise the Women in Leadership workshop;
- Review and approve organograms and scheme of services;
- Review performance management systems;
- Institutionalise personal budgets;
- Review guidelines on schemes of service, conditions of service and job description;
- Conduct and evaluate the re-implementation of the retooled Human Resource Management Information System (HRMIS);
- Purchase office vehicles;

- Renovate the office premises and purchase office equipment; and
- Support staff development.

2026 Budget Allocation

For the year 2026, the Public Services Commission has been allocated a total amount of twenty-eight million, six hundred and thirty-six thousand, seven hundred and forty-three Ghana cedis (GH¢28,636,743.00). The break-down is captured in the Table 3 below:

Table 3: 2026 Budget Allocation of the Public Services Commission

ITEM	GOG (GH¢)	IGF(GH¢)	TOTAL(GH¢)	%
COMPENSATION OF EMPLOYEES	16,457,734.00	-	16,457,734.00	57.47
GOODS AND SERVICES	6,155,150.00	23,859.00	6,179,009.00	21.57
CAPEX	6,000,000.00	-	6,000,000.00	20.96
TOTAL	28,612,884.00	23,859.00	28,636,743.00	100

Observations and Recommendations

Implementation of HRMIS

The Committee observed that the Commission had been implementing the Human Resource Management Information Systems (HRMIS) during the year.

Management informed the Committee that it had deployed all the seven (7) modules on the HRMIS for four agencies namely the Ghana education Service, Local Government Service, Ghana Health Service and the Office of the Head of Civil Service. It indicated that it had organised end-user training for over one thousand, two hundred and thirty-five officers from Public Service organisations on the HRMIS.

The Commission admitted that the systems had greatly improved on the human resource service delivery in the public service.

The Committee urged the Commission to deploy the systems across all Public Services organisations to improve efficiency.

Delays in the Confirmation of Nominees of the President for Appointment

In a response to delays in the confirmation of appointees to established posts, the Commission indicated that the delays were mostly due to the delay in constituting the Governing Boards for the various agencies.

The Committee was informed that the Governing Boards of the agencies were the only bodies authorised by law to submit names of appointees to the Commission for the necessary regularisation. The delays adversely affected the ability of the Commission to confirm these nominees. As at November 2025, most of the Boards were in place and had submitted the names of the nominees to the Commission. The Committee was assured by the Commission that they would expeditiously deal with the issue and get the nominees confirmed by His Excellency the President.

Disparities in Remunerations in the Public Sector

The Committee observed that there were major disparities in the remunerations within the public sector which was adversely affecting the morale of public sector workers.

The Commission explained that Salaries of Ministries, Departments and Agencies were governed by the Single Spine Pay Policy. However, entities described as subverted agencies were not under the Single Spine Pay Policy. It was this classification that had given rise to these discrepancies in salaries within the Sector.

The Commission informed the Committee that the President intends to establish a Committee known as the Emoluments Committee to resolve all issues relating to salary disparities in the public sector. The Minister for Finance had also established a Committee to

come out with recommendations on how to streamline salaries in the public sector. The Commission expressed optimism that these initiatives would address discrepancies in the salary structure.

Conducting an Audit after Migration onto Mechanised Payroll

In a response to the need to conduct an audit after migrating personnel to the mechanised payroll, the Commission affirmed that there was the need for a payroll audit.

The Commission explained that some discrepancies were observed during the migration and that there was the need to confirm the total number of staff in an establishment and their corresponding positions with the data on the mechanised payroll. The exercise would help reduce the incidence of ghost names and other discrepancies in order to ensure that workers are paid for work done.

The Commission indicated that the current budgetary allocation may not be adequate and called on Parliament to make more allocation to the Commission to enable it undertake the exercise.

Reducing Delays in Promotions in the Public Service

The Committee noted that public workers have been complaining about delays in their promotions and enquired from the Commission on how the Commission intends to address the issue.

The Commission indicated that it was also concerned about the delay in promoting the public workers. It indicated that the introduction of the HRMIS would go a long way to address the issue. So far it captured over 95 per cent of the public workers staff onto the HRMIS. The Commission was implementing the personnel budget framework to enable public sector organisations plan for promotions and appointments, among others. When the enrolment onto the system is complete, the HRMIS would timeously indicate when a worker is due for promotion.

The Commission is also looking at linking financial clearance and recruitments to the HRMIS and the possibility of the system generating appointment letters. They were of the view that when done successfully, the issues surrounding promotions and appointment of staff would be reduced significantly.

Appointment of Non-Staff to Senior Staff Positions

The Deputy Chairperson of the Civil and Local Government Staff Association, Ghana (CLOSAG), informed the Committee that most workers are peeved about an emerging trend where non-staff are appointed to senior management positions. This tendency was demoralising and negatively affecting service delivery in the public sector. He urged Parliament to direct the Government to take the necessary steps to address the issue in order to avert any possible adverse action of the Union.

The Committee assured the Union and urge Parliament to persuade Government to take the appropriate steps to stop the practice.

Conclusion

The Committee, having carefully examined the Annual Estimates of the Public Services Commission (PSC) and having regards to the strategic role of Public Service Commission in improving public service delivery, recommends to the House to adopt its report and approve the sum of a total amount of Twenty-Eight Million, Six Hundred and Thirty-Six Thousand, Seven Hundred and Forty-Three Ghana Cedis (GH¢28,636,743.00) to enable the Public Services Commission implement its programmes and activities for the 2026 Financial Year.

Mr Speaker, we have a situation where CLOSAG attended and is still complaining about the single-spine salary pay policy, where non-subventive entities are not on. In response, the Service told us that the President has proposed establishing a Monument Committee to address this issue. We just want to assure the House that we will follow up on that. Besides that, on this issue of appointing people to go on secondments at their respective Ministries, and after doing that in no time, they are appointed Chief Directors of the Ministry.

It was an issue the Deputy Chairperson of CLOSAG raised and said it often demoralises many people who are due for promotion to the Chief

Directorship of their respective Ministries. When this continues, we have the opinion that if we are not careful, in no time, the Service will be politicised. They urged Parliament to step in to address this issue.

Thank you very much.

Mr Richard Acheampong: Mr Speaker, I beg to second the Motion, and make a short comment on the Report presented to the House. I turn the attention of the House to page 10 of the Report, items numbered 11.5 and 11.6

Mr Speaker, every employer wants to maximise profits, and every employee wants better conditions of service. So, there is a thin line that we need to strike a balance. If productivity and profitability are achieved, the employee will receive what is due them. But the point is that when it is time for people to get promoted, they do not get the promotion. They also complained that the institution engages people outside of the system and puts them at the top of the institution. Meanwhile, people progress through the ladder for which they are due for promotion and nobody attends to them. New people are then brought from outside to be made directors, chief directors and the rest.

So, as a nation, these are some of the things we need to avert to and ensure that those who have gone through the ladder are promoted, and what is due them is given so that they will give their best. When there is productivity, there is profitability. But we cannot sideline the existing staff and bring people from

outside the institution and promote them. The workers will agitate among themselves and never give up their best. So, these are some of the things we need to advert to so that at the end of the day, the employees will give their best. Productivity and profitability will increase and they can get what is due them.

We should not think of them as just government workers who have security of tenure, so we do not care about their worth. No. They sign a performance contract every year; they give their Key Performance Indicators (KPIs), and at the end of the day, they do not perform. We have some institutions which are making losses, but are being paid bonuses. Why do we pay bonuses to an institution which is making a loss? We pay bonuses when there is profitability. So, we need to ensure that institutions perform and we get the right returns from them.

Mr Speaker, I do not want us to meet here next year and repeat ourselves in the same manner. Let us make changes. Let us reset our institutions. Let us make sure that there is value for money, and people who are working for the state are also taken care of. So that at the end of the day, they go on pension with good packages and also give out their best.

With these few observations, I thank you very much for the opportunity.

Question proposed.

Mr First Deputy Speaker: Hon Asafo-Adjei.

Nana Asafo-Adjei Ayeh (NPP — Bosome Freho): Mr Speaker, I rise to also support the report, and in doing so, I will only add a few points that were discussed at the committee level.

Mr Speaker, paragraph 11.2—Delay in the Confirmation of Nominees of the President for Appointments. They raised the issue of delays because these are statutory bodies formed by the government, and, most often, the delays affect the performance of their duties.

Mr Speaker, they also raised in paragraph 11.3—Disparities in Remuneration for Public Sector Workers. When we look at some of the agencies and departments, because of the Single Spine Salary Structure, some of them do not have their remuneration commensurate with their positions and their titles. I think if the House would look at this, while we are approving the sum of GH¢28,636,743 for the ensuing year for them, it would be helpful and grateful.

Mr Speaker, I thank you for the opportunity.

2:04 p.m.

Question put and Motion agreed to.

Resolved:

That this honourable House adopted the Report of the Committee on Public Administration and State Interest on the allocation of the sum of GH¢28,636,743.00 for the services of the Public Services

Commission for the year ending 31st December, 2026.

Mr First Deputy Speaker: Hon Members, we then move to Motion 12 at page 11 of today's *Order Paper*. Chairman of the Committee?

PARLIAMENT AND PARLIAMENTARY SERVICE

Vice Chairperson of the Committee (Alhaji Nurideen Muhammed Mumuni) on behalf of the Chairperson: Mr Speaker, I beg to move:

That this honourable House adopts the Report of the Committee on Parliamentary Affairs on the allocation of the sum of GH¢1,619,643,682.00 for the services of the Parliament and Parliamentary Service for the year ending 31st December, 2026.

In so doing, I present the Committee's Report, and ask the *Hansard* captures it as read in its entirety.

Introduction

Pursuant to Article 179 of the 1992 Constitution of the Republic of Ghana and Section 21(3) of the Public Financial Management Act, 2016 (Act 921), the Minister for Finance, Dr Cassiel Ato Baah Forson, presented the Budget Statement and Economic Policy of the Government of Ghana for the 2026 Financial Year to Parliament on Thursday, 13th November, 2025.

Subsequently, the Estimates of the Parliament of Ghana was referred to the Committee on Parliamentary Affairs in accordance with Order 255(2) of the Standing Orders of Parliament for consideration and report.

Deliberations

The Committee met on Wednesday, 3rd December, 2025, and considered the 2026 Annual Budget Estimates of Parliament. Present to assist the Committee in its deliberations were the Clerk to Parliament, Mr Ebenezer Ahumah Djietror, and other officials of the Parliamentary Service. The Committee expresses its gratitude to the Clerk and his officials for the assistance.

Reference Documents

The Committee referred to the following documents during its deliberations on the Estimates:

- i. The 1992 Constitution of the Republic of Ghana;
- ii. The Public Financial Management Act, 2016 (Act 921);
- iii. The Parliamentary Service Act, 1993 (Act 460);
- iv. The Parliamentary Service (Amendment) Act, 2008, (Act 763);
- v. The Standing Orders of the Parliament of Ghana;

- vi. Report of the Committee on Parliamentary Affairs on the 2025 Budget Estimates of the Parliament of Ghana;
- vii. Budget Statement and Economic Policy of the Government of the Republic of Ghana for the 2026 Financial Year; and
- viii. Medium-Term Expenditure Framework (MTEF) for 2024 –2027.

National Policy Objectives

The policy objectives relevant to the Parliament of Ghana are:

- a. reducing hardships;
- b. restoring good governance and fighting corruption;
- c. implementing bold and ambitious structural reforms;
- d. implementing revolutionary and transformational policies to create sustainable/decent and well-paying jobs; and
- e. building strong foundation for inclusive and sustainable economic growth whilst protecting people with low income and the vulnerable.

Vision of the Parliament of Ghana

The Parliament of Ghana aspires to be a model legislature that is people centred, upholds democratic values, secures liberty, equal opportunity and promotes inclusive prosperity for all citizens within the comity of nations.

Mission Statement

The mission of the Parliament of Ghana is to undertake representational, deliberative, legislative, financial control, oversight, information dissemination and problem resolution functions supported by efficient, non-partisan, innovative and professional Parliamentary Service.

2025 Performance Overview

2025 Financial Performance

For the 2025 financial year, an amount of one billion, one hundred and sixteen million, one hundred and ninety-nine thousand, five hundred and eleven Ghana cedis (GH¢1,116,199,511.00) was allocated to Parliament to undertake its programmes and activities. Out of this, the sum of eight hundred and

sixteen million, eighty-six thousand, seven hundred and forty-four Ghana cedis seventy-seven pesewas (GH¢816,086,744.77), representing 73 per cent of the total allocation, had been released as at September, 2025.

The unreleased balance, therefore, stood at three hundred million, one hundred and twelve thousand, seven hundred and sixty-six Ghana cedis twenty-three pesewas (GH¢300,112,766.23). The actual payment for the period under review stood at seven hundred and eighty-two million, four hundred and thirty-one thousand, eight hundred and twenty-five Ghana cedis and two pesewas (GH¢782,431,825.02). These are captured in Table 1 below:

Table 1: 2025 Budget Summary

Expenditure Item	Budget Appropriation (A)	Releases (B)	Actual Payments (D)	% of Utilisation
Compensation	584,569,511	429,043,539	429,043,539	73.4
Goods and Services	450,000,000	334,458,100	302,507,997.21	74.3
Capital Expenditure	80,000,000	50,880,288.81	50,880,288.81	63.6
Donor Funds	1,630,000,000	-	-	
IGF	-	1,704,816.96	-	-
Total	1,116,199,511	816,086,744.77	782,431,825.02	73.0

Source: The PBB Estimates for the Parliament of Ghana for the year 2026

Operational Performance

In the period under review, Parliament held 111 plenary sittings during which it undertook the following key activities towards the realisation of its core mandate of legislation, oversight, financial scrutiny and representation:

Legislative Business

In 2025, 33 Bills were introduced, of which 27 were passed into law. Some of these Bills include the following:

- i. The Electronic Transfer Levy (Repeal) Bill, 2025;
- ii. The Ghana Gold Board Bill, 2025; and
- iii. The Ghana Infrastructure Investment Fund (Amendment) Bill, 2025.

As at the end of September 2025, the House had adopted 27 Business Statements; convened 266 Committee Sittings; submitted 265 Reports; and debated 155 Motions. Parliament also ratified 26 international agreements and adopted 16 Resolutions, strengthening Ghana's multilateral engagements and development cooperation efforts.

Oversight and Accountability

Parliament laid 88 Papers, including key budget performance and Auditor-General's Reports. It examined 13 Legislative Instruments, with eight (8) taking effect, to support ongoing national reforms. Out of 497 Questions filed by

Members, 222 were answered, reflecting improved response rate by Hon Ministers.

The Appointments Committee upheld high standards of integrity and competence in the scrutiny of public appointments, submitting 15 Reports that facilitated the approval of 27 Ministers, 13 Deputy Ministers, 16 Regional Ministers, and the seven Supreme Court Justices after thorough vetting.

Parliament also endorsed the disbursement formula for the District Assemblies Common Fund (DACF), the Ghana Education Trust Fund (GETFund), and the National Health Insurance Fund (NHIF), ensuring fair and timely allocation of resources for local development, education, and healthcare.

A major institutional reform saw the implementation of the new Standing Orders, increasing parliamentary Committees from 31 to 43, to enhance specialisation and strengthen oversight. Additionally, under the Open Parliament Initiative, Ghana's Parliament was recognised by Ghana Parliamentary Monitoring Organisation Network (GPMON) as the most transparent and inclusive legislature in West Africa, reflecting its commitment to openness and citizen participation.

Management and Administration

During the period under review, Parliament undertook a number of initiatives aimed at strengthening institutional capacity and improving service delivery. Notably, several capacity-building programmes, both

local and international, were organised for Members of Parliament and staff to enhance legislative effectiveness, deepen subject-matter expertise, and promote higher standards of professionalism within the Parliamentary Service.

In addition, the Museum of Parliament was inaugurated on 6th January, 2025 by the Rt Hon Speaker, A. S. K. Bagbin, marking an important milestone in the preservation and promotion of Ghana's parliamentary heritage. Furthermore, Parliament TV was launched to enhance citizen engagement, improve transparency, and facilitate broader public access to parliamentary proceedings, including Committee meetings.

The period also recorded significant improvements in Parliament's ICT infrastructure. These included the upgrading of 17 ICT facilities, and advancements in key digital systems such as the Chamber Electronic System and the Enterprise Wi-Fi Solution Project.

Budgetary Allocation for the 2026 Fiscal Year

For the implementation of the above programmes and activities, the Parliament of Ghana has been allocated the sum of one billion, six hundred and nineteen million, six hundred and forty-three thousand, six hundred and eighty-two Ghana cedis (GH¢1,619,643,682.00) for the 2026 financial year. The breakdown of the allocation is provided in Table 2 below:

Table 2: Budgetary Allocation by Economic Classifications for 2026

Economic Classifications	GH¢
Compensation of Employees	619,643,682.00
Goods and Services	700,000,000.00
Capital Expenditure	300,000,000.00
Grand Total	1,619,643,682.00

Source: Budget Statement and Economic Policy of the Government for 2026

Outlook for 2026

Operational Outlook

In 2026, Parliament will deepen its legislative and oversight functions through evidence-based law making, automation of legislative processes and the expansion of Private Member's Bills. The next phase of institutional strengthening will focus on:

- enhancing research and policy analysis capacity;
- scaling up public education on the role of Parliament; and
- accelerating the deployment of the e-Parliament system.

Investments in ICT infrastructure and financial management systems will ensure that Ghana's Parliament remains a model of modern legislative governance, transparent, data-driven, and responsive to the needs of the people.

Observations and Recommendation

Inadequate and Late Release of Budgetary Allocations

The Committee observed that the 2025 budgetary allocation to Parliament was significantly inadequate, resulting in substantial operational challenges during the period under review. Noteworthy among these were the frequent breakdown of elevators within the parliamentary precinct, the absence of budgetary provision for the construction of constituency offices for Members of Parliament, and several other financial constraints that hindered the effective discharge of parliamentary duty.

The Committee further noted that while Parliament submitted a budget proposal of GH¢4,626,812,367 for 2026, this amount was revised to GH¢1,619,643,682 by the Ministry of Finance due to limited fiscal space. This substantial reduction raises concerns about Parliament's ability to effectively discharge its constitutional mandate. The Committee observed that over the years, the budgetary allocation of Parliament has been an insignificant fraction as compared to the total government revenue. The Committee, therefore, recommends that the Ministry of Finance consider enhancing Parliament's allocation during the Mid-Year Budget Review, as improved funding is critical to addressing the pressing operational challenges currently confronting the institution.

The Committee noted with concern the persistent delays in the release of funds allocated to Parliament. These

delays have adversely affected the timely execution of planned activities and impeded the smooth functioning of the House. The Committee consequently urges the Ministry of Finance to take immediate steps to resolve bottlenecks associated with release of funds to Parliament to ensure uninterrupted parliamentary operations.

Constituency Offices for Members of Parliament

The Committee observed with concern that the 2026 budget made no provision for the construction of constituency offices for Members of Parliament. In addressing this omission, the Clerk to Parliament explained that the limitation stems from the significant reduction of Parliament's proposed capital expenditure from GH¢2,100,812,367.00 to GH¢300,000,000.00. Given the constraint, Parliament was compelled to prioritise within a very restricted fiscal environment.

Despite these challenges, the Committee underscored the importance of providing functional constituency offices for Hon Members to strengthen parliamentary representation and facilitate effective engagement with constituents. The Committee, therefore, recommends that the Ministry of Finance make additional funds available for the projects to commence. It also appealed to Management of the Parliamentary Service to construct the offices in phases in subsequent years as Government was not likely to allocate the full contract sum in one financial year for the purpose of constructing constituency offices for MPs.

Enhancement of Security Protocol

The Committee noted Parliament's plan to reconstruct its ceremonial gate in 2026 and sought clarification on the rationale for undertaking this project. Management explained that the primary objective of the reconstruction project is to significantly strengthen security at the entry points to the parliamentary precinct. The proposed structure will be designed to ensure that all vehicular and pedestrian access is routed through a single, well-controlled entry point equipped with advanced security features to prevent unauthorised access and to detect and seize dangerous and offensive weapons that may be in the possession of users of the precinct of Parliament. Management bemoaned the large number of guests who patronise Parliament and expressed worry that uncontrolled access posed security threat to MPs and staff alike.

The Committee commends Management for this proactive initiative, recognising that improved access control is essential for safeguarding the Parliament and enhancing the overall security of Members, staff, and visitors.

Museum of Parliament

The Committee observed that Management has opened a Museum of Parliament, situated on the second floor of the Chamber Block, with the objective of preserving and showcasing Ghana's legislative evolution from the pre-colonial era to present-day democratic

governance. The Museum is intended to serve as a valuable educational resource for citizens and to enhance Members' appreciation of Ghana's parliamentary heritage.

The Committee, however, expressed concern regarding the Museum's current location, particularly its limited accessibility to the general public. Management explained that Parliament is constrained by the limited physical space available within the State Protocol Precinct. The Committee, therefore, recommends that Management engage with the State Protocol Department to explore viable options for securing additional space that would allow for a more accessible and appropriately situated Museum, and also be used to generate revenue.

Augmenting ICT Security Through Cyber Hawk (MSSP)

The Committee observed a budgetary provision for the Cyber Hawk Managed Security Service Provider (MSSP) under ICT infrastructure. Upon seeking clarification, Management explained that Cyber Hawk is an enhanced cyber-security feature designed to safeguard Parliament's digital environment by monitoring, detecting, and preventing attempts by hackers to infiltrate the system or extract data belonging to Members of Parliament and staff.

The Committee commends Management for this foresightedness. Given Parliament's increasing reliance on digital technologies and its ongoing

digital transformation efforts, strengthening cybersecurity safeguards is essential to protecting institutional data, ensuring operational integrity, and mitigating evolving threats within the global cyber ecosystem.

Conclusion

The Committee carefully examined the Programme-Based Budget Estimates for Parliament and the Parliamentary Service and found the programmes and policies planned for the 2026 financial year to be necessary towards achieving the goals and objectives of the Parliament of Ghana. However, in light of the limited fiscal space, the Committee strongly recommends that the Ministry of Finance conducts a thorough review of Parliament's budget during its mid-year review. The Committee believes that a reassessment of the figure is necessary to ensure that Parliament is adequately funded to carry out its key functions, including the execution of proposed projects and statutory obligations.

The Committee accordingly recommends to the House to adopt this Report and approve the sum of one billion, six hundred and nineteen million, six hundred and forty-three thousand, six hundred and eighty-two Ghana cedis (GH¢1,619,643,682.00) for the services of Parliament and the Parliamentary Service for the 2026 financial year.

Deputy Ranking Member of the Committee (Mr Oscar Ofori Larbi): I come under Order 195 (4) to second the Motion. I pray that the House adopts the

Report of the Committee on Parliamentary Affairs for the allocation of the sum of GH¢1,619,643,682.00 for the Parliament and Parliamentary Service for the year ending 31st December, 2026. Mr Speaker, your Committee met, and looking at the Report, since time immemorial, Parliament has not always gotten its entire budgetary allocations. We observed that sympathy without relief is like beef without mustard. We are the chefs preparing the food to be put on the table, yet people are crying more than they bereaved. We do not get what is due us. Our elevators and washrooms, are nothing to write home about. Parliament proposed GH¢4,626,812,367 for the ensuing year, but it was given only GH¢1,619,643,682.00 which should tell you that it is woefully inadequate. The Committee is of the view that we must have a dedicated fund. If not a total revenue, it should be tax revenue. We should get a component, be it 0.5 per cent or 1 per cent or whatever. This House has to come together without any partisanship and make sure that we get what is due Parliament, for Parliament to work, and also have a conducive environment.

Mr Speaker, without much ado, I pray this House to support the Committee to approve the sum of GH¢1,619,643,682.

I so submit.

Question proposed.

Mr Kojo Oppong Nkrumah (NPP — Ofoase Ayirebi): Mr Speaker, Thank you for the opportunity. I have just a few comments as I comment in support of the adoption of this Report.

First of all, I think the subject of allocations to Parliament should be taken a lot more seriously by the Executive than is being done now. There is a reason for which priority areas of this Republic get a percentage of some revenue lines. The District Assemblies get about 5 per cent. Sectors that are important get a certain percentage. GETFund gets a percentage of sales revenue as other sectors. The National Health Insurance Fund gets a percentage of sales revenue. Unfortunately, when it comes to Parliament, it is still at the discretion of the Executive. If we look at the amounts that are, first of all, appropriated year by year, it is woefully inadequate. For an arm of Government that is responsible for legislation and, more importantly, oversight, the attention that is given to making budgetary allocations to Parliament should be taken a lot more seriously than it is being done now. We would like to urge strongly the Executive to consider the proposal that a percentage of expenditure should be benchmarked to Parliament as an arm of Government.

The second point is about strengthening the oversight function. We have made some progress in providing offices for MPs in Accra, here in the Job 600 precincts. As has been mentioned, MPs have to be meeting constituents in their living rooms, bedrooms, courtyards, churches and mosques because MPs still do not have the basic tools of an office and minimum staff in their constituencies to attend to constituents. A lot of constituents complain that, “I am looking for my MP, I cannot find him; I am calling him but I cannot reach him.”

2:14 p.m.

It is because we have not provided a structured channel through which constituents can engage with their Members of Parliament (MP). Which is an office for the Member of Parliament and at least some basic staff in the constituency to enable the Member of Parliament’s office function and serve constituents, whether he is outside the country or here in the Chamber or some other place. So, Mr Speaker, it is a matter of priority that the Executive once again is urged to consider as we head towards the Mid-Year Budget Review.

Allocations are made for various things. We have been approving billions and billions for several Ministries under the Executive, but when it comes to the whole of Parliament, even to provide offices and basic staff in the constituencies so that we can serve our constituents, is not being attended to. It is something that needs to be taken a lot more seriously than it is done now.

Mr Speaker, my last point. Even for this allocation that has been made, the persons in charge of the Parliamentary Service must ensure that they prioritise the utilisation of this about GHC1.6 billion. So, the Clerk to Parliament, who is the Chief Executive, and the persons in charge must ensure that this allocation is prioritised.

For over a year now, ventilation in the offices of Members of Parliament from 11th floor to some of the other floors is non-existent. We speak about it often here in the Chamber. The building

is now becoming, for want of a better expression, useless because MPs cannot sit in the offices and work because there is no ventilation. Basic things like printers, at least on a floor, so that if a Member of Parliament and his research officer have done some research and want to come to the Floor and do some work — sometimes we literally have to go to Osu to print, because as an institution, we have not provided basic things like printers, at least on the floors.

So, for this allocation that has been made, even while we are saying it is inadequate, we would like to urge on the Clerk to Parliament and his officers to ensure that the usage is prioritised, and that the basic things that must make that building function, and for MPs to have the capacity to stay in and function, should be done. It should not all be used for travelling, allowances and other things, but should be used for providing basic things to help us work.

I thank you, Mr Speaker, for the opportunity.

Mr Haruna Iddrisu (NDC — Tamale South): Mr Speaker, I will endeavour to be very brief, and thank you for the opportunity to speak in favour of the Motion for the approval of GH¢1.6 billion for the services of Parliament and the Parliamentary Service of Ghana.

Mr Speaker, in doing so, I refer you to page 9 of your Committee's Report, and to look at the matter raised in paragraph 9.2, "Constituency offices for Members of Parliament". This was

before the Parliamentary Board that I had the privilege to serve on. The contemplation was that when these offices are constructed, MPs will have liaison officers who will relate between the constituency and MPs who are in Parliament.

But my contribution is just on one major issue. The Parliament of Ghana must assert itself and end the funding crisis. Everywhere in the world, Parliaments are referred to as being responsible for oversight, including budget and financial oversight. The Hon Minister for Finance, Dr Ato Forson, in his Budget Statement and Economic Policy hinted about a Value for Money Office. The Parliament of Ghana must complement him with the establishment of the budget office. Ghana needs two important offices. One, the Executive is saying a Value for Money Office, Parliament must also have the budget responsibility office. That is what is best practice.

Mr Speaker, in concluding, because of our chequered past, 137, 137, 138, 106, 169, what is the role of Parliament when it comes to Budget Statement and Economic Policy approval? This House has reduced itself to making comments. When the Budget Statement and Economic Policy is presented, what we do here is that we make comments, and then after the comments, we are told to conclude on our comments. Nowhere in the world does a Parliament with the responsibility of oversight end a Budget with comments.

So, maybe the Constitutional Review Committee, if Mr Speaker himself will

guide it, must take interest in Article 179. Somewhere when it comes to supplementary estimate, we see definite words like “approve”, “Parliament must approve”. When it comes to Article 179, it kind of presents revenue and expenditure. I have not seen this anywhere in the world.

Then, Mr Speaker, finally, parliamentary diplomacy. In the whole of this report, I have not seen them dedicate a paragraph to tell us what they have been doing at the International Parliamentary Union (IPU), Commonwealth Parliament Association (CPA), ECOWAS Parliament, and others. I am sure a proper way of accounting for the money would be to do that.

Mr Speaker, we pray on you that the Parliament of Ghana needs to sit right and end its own funding crisis. We should stop holding a calabash every time begging the Minister for Finance to make adequate resources to Parliament. When we say, in all functionality, that Parliament's primary role is to exercise oversight over the Budget, this Parliament of Ghana since 1993 has been failing in that respect. I thank you.

Dr Tiah Abdul Kabiru Mahama (NPP — Walewale): Thank you very much, Mr Speaker. I want to also support that this House adopts the Report of the Committee on Parliamentary Affairs by approving an amount of GH¢1,619,643,682 for the year ending 2026.

I do not want to over-flog the horse because the respected former Leader and

Minister for Education and also the former Minister for Information, Hon Kojo Oppong Nkrumah have actually hit the nail of the head. We cannot be priding ourselves as the guardian of democracy, and say that we have oversight over all Arms of Government when we are in the pocket of the Executive.

The allocation of GH¢1.6 billion out of a total request of GH¢4.6 billion clearly is less than 40 per cent of what was asked for. If I am asking for GH¢4 billion and they are giving me GH¢1.6 billion, they are basically putting me in your pocket and directing how I should behave. That is basically what the Executive is doing to Parliament. We have sung this song for far too long that we need to take complete autonomy, we need to take be completely independent. Yet still, the Budget comes before this House, we approve it, but we do not make any provision for ourselves. Even when we make — the Minister for Finance, brings a cap to say that we cannot go beyond GH¢1.6 billion. Mr Speaker, we cannot continue this way.

If the Rt Hon Speaker comes to this House and preaches that we must ensure that we treat ourselves well, but a budget comes before this House and we cannot do anything about it, we sit and look at it, we basically cannot perform our function.

Mr Speaker, there is even more worrying development. They have talked about our ACs and our lift system. People with disabilities cannot access our offices. If I have a constituent who is

disabled, he cannot access my office in this 21st century, because in the House of Parliament the lifts are not working. That is the problem we are facing in this House. We need to talk about these issues. The problem is not Parliamentary Service; the problem is the Ministry of Finance. We should not play devil's advocates about this issue.

Fortunately, Mr Speaker, the Minister for Finance and his deputies are Members of Parliament. They experienced first-hand the difficulties Members of Parliament are going through. But there seem to be some kind of disease on the seats, that when one resumes the position of Minister for Finance, they forget all the problems that their own people are facing. We must probably do something about that. Because it is for good reasons that we are happy that Mr Ampem and Dr Cassiel Ato Forson are Members of Parliament. But when they assume their seats, they forget about their own Members.

2:24 p.m.

How do we perform our roles with such attitudes? Mid-year is not far, not to incite this House against the Executive, I would appeal that as a matter of principle, the Executive must take a second look at how they treat Parliament.

Mr Speaker, the Rt Hon Speaker mentioned compensation for Members of Parliament across the globe. Members of Parliament in other jurisdictions as in Nigeria and Kenya, where we had democracy before some of those countries; they are paid well, but

Members of Parliament are to live with a paltry amount of US\$2,000 to US\$3,000 and that is what they and the rest of their constituents are going to depend on. While in other jurisdictions, they are paid well—we would need to pay our drivers.

Mr Speaker, sometimes we will need to call the spade a spade and not a big spoon. I think that the Minister for Finance must revise the Mid-Year—However, let me probably commend them on our capital expenditure. Our CAPEX allocation has seen some improvement from GH¢80 million to some GH¢300 million. To join my Colleague and Senior, I think that these moneys should be used judiciously. So that, when we are accounting and holding the people of Ghana accountable, we must also show accountability and transparency in the use of our resources.

Mr Speaker, with these few words, I want to thank you and to support that we approve the amount so stated in the Report for the Members of Parliament and Parliamentary Service.

Mr First Deputy Speaker: Thank you, Dr Kabiru. I thought the Minister would be concluding. Yes, Alhaji Habib?

Alhaji Habib Iddrisu: Thank you, Mr Speaker, for the opportunity to also speak in support of the approval of the estimate for Parliament.

Mr Speaker, sometimes it is very disheartening in listening and seeing that Parliament has submitted a budget of GH¢4,000,626,812 and the Ministry,

upon revision or engagement, said we should rather be given GH¢1,619,643,682. That is about 35 per cent of what Parliament is asking for. Deputy Minister for Finance, this is very bad, that the institution Parliament that he belongs to has submitted a budget—100 per cent of what they requested for and he only gives 35 per cent when he knows very well that Parliament needs this money.

Mr Speaker, I am not in agreement with the fact that we should wait until Mid-Year Budget presentation, for the Government to review the allocation to Parliament. I think that within this Budget they would be able to find a fiscal space to increase the allocation to Parliament. They are buying four helicopters; we do not need four helicopters. They are buying two luxury jets; we do not need two luxury jets. They should reduce the number of helicopters that they are going to buy. They should reduce the number of presidential jets that they want to buy. So that Parliament will be able to have enough resources.

Mr Speaker, because of the inadequate releases to Parliament, the Executive wants to control Parliament. Now the President is dictating to Members of Parliament. When the Majority Chief Whip and the Majority Leader file or intend to file a Private Member's Bill, the President is telling them to reduce it. Why? Their oversight duty which is their role as Members of Parliament—Because of what? —*[Interruption]*—To withdraw? We have the official letter from the Presidency to

the Members of Parliament where he has instructed that they withdraw it.

Mr Speaker, the Executive has no authority to dictate what happens in Parliament—*[Interruption]*—

Mr First Deputy Speaker: Please continue, I would appropriately give you the floor—

Alhaji Habib Iddrisu: When we go into our offices, it is very sad that the air-conditioners in the offices of many Members are not working. When one has a visitor, one has to look for another Member's office where the air conditioner is working to be able to entertain that visitor. For more than four years, there has never been an occasion that both lifts for Members of Parliament are working. It is either one is working or it is broken down. On many occasions one would be unable to use the lift.

Mr Speaker, the Minister for Education, Hon Haruna Iddrisu, was saying that there was no space to capture international organisations like Inter-Parliamentary Union (IPU) and Commonwealth Parliamentary Association (CPA). It is sad to report that, even attending such international programmes, there is no money available for such. My Colleague, Hon Jerry Ahmed wanted to attend a programme of the Association in Barbados; he could not because Parliament could not fund it. There are no allocation of money and no resources available for that to be done. It is very sad.

Mr Speaker, it is very sad, because we are not getting releases, we are unable

to attend many programmes organised by international organisations. There are many occasions that the First Deputy Speaker, who attends Pan-African Parliament sittings has to pre-finance his trip. The Majority Chief Whip, on many occasions, has to pre-finance his trip to the Pan-African Parliament, because there are no releases to Parliament.

Mr Speaker, even sometimes, microphones at Committee offices are not working. Now, we have a Minister of Finance who is a Member of Parliament. We have a Deputy Minister of Finance who is a Member of Parliament. Yet, the Majority Leader and the Majority Chief Whip, could not prevail on Government to release funding. Now, they are dictating to us.

The Minister for Education is here. Throughout the year, they have not given him money. So, when one goes to the Ministry of Education, Hon Haruna Iddrisu does not sit in his office. Because they have not given him releases to take care of people. If they are not releasing money to their Ministers to work, how do they expect them to do so?

They make allocations to him to procure sanitary pads. When he procures, the contractors chase him because they do not release money to him to pay—*[Interruption]*—No, they have not paid them all. No releases have been done. The allocations that are done for them—our students are here. They are giving them the sanitary pads on credit. The Minister is here. He cannot pay for them. Our female students are here; they have collected the sanitary

pads. The Minister for Education cannot pay them.

Mr Speaker, with these few words, I think that before Appropriation, we need to look at Parliament's Budgets again. They cannot give us only 35 per cent while they are buying luxury jets and helicopters and allocating resources to places that they are not going to release that.

Mr Speaker, I thank you for the opportunity. *[Hear! Hear!]*

Mr First Deputy Speaker: Yes, Hon Isaac Adongo?

Mr Richard Acheampong: Mr Speaker—

Mr First Deputy Speaker: Hon Member, I have given the floor to Hon Isaac Adongo.

Is your name Hon Isaac Adongo? If your name is not Hon Isaac Adongo, kindly resume your seat. If you are not called Isaac Adongo, resume your seat.

Mr Acheampong: Mr Speaker, but you do not allow Leaders to—*[Inaudible]*—in the House—

Mr First Deputy Speaker: Hon Richard Acheampong, resume your seat.

Yes, Hon Isaac Adongo, you have the floor.

Mr Isaac Adongo: Thank you very much, Mr Speaker.

Mr Speaker, it is true that Parliament needs a lot of allocations. But we cannot solve the problem of Parliament's allocation in one year. If previous governments had incrementally improved allocation to the Parliament of Ghana, we would not be having this conversation.

Mr Speaker, our Colleagues were here, in 2024, the Minister who presented the Budget at the time was a Member of Parliament. But they were quiet. They never understood that Parliament needed money. Today, they know that Parliament needs money.

Mr Speaker, what is interesting is that, there is a clear misleading information provided to this House. The helicopters that they are talking about are not being paid 100 per cent from the 2025 Budget. As a matter of fact, the first tranche is being paid in 2025. In 2026, 2027, up to 2028, those payments are going to be made. So, they cannot be the reason they are complaining about 2026.

Mr Speaker, it appears they have a debate that they have missed. Anytime anything comes here, they are on their feet to talk about private jet. That is not what we are discussing here. We are not discussing helicopters; that is gone.

2:34 p.m.

Mr Speaker, I even heard somebody say that we are borrowing to go and buy a private jet. Meanwhile, nobody is borrowing a penny to buy a private jet. The people of Ghana are paying from their resources. If we were living in the

period where we were borrowing US\$3 billion every year in this House, I am sure we would have had a better allocation to the Parliament of this country. But those who were borrowing US\$3 billion a year never resourced Parliament and they cannot seem to now love Parliament than those who are now trying to improve it.

Mr Speaker, we cannot allow people who decide to reopen debate and discuss allocations to the Ministry of Education — Is that what we are discussing? What is the relevance of that allocation to the debate that we are having now?

Mr Speaker, I would like to urge that even though we all agree that Parliament needs to be properly resourced, we cannot sit here and allow people to use this debate to fight their own battles. Parliament of Ghana must be resourced over time and we have already missed eight years of inadequate resourcing of Parliament. That cannot be cured in one year and we do believe that our own Minister for Finance, who is a Member of this House and was once a Leader of this house, would ensure the improvement that we are seeing this year will reflect in subsequent years. By the time we leave office, I am sure he will now be hailed as the one who took steps to properly resource the Parliament of Ghana.

Mr Speaker, I support the Committee's Report.

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Majority Chief Whip (Mr Rockson-Nelson Etse Kwami Dafeamekpor):

Mr Speaker, let me thank you for the opportunity to add my voice to the call that the House adopts the Report and approve GHC1,619,643,682.00 for the work of Parliament for next year.

Mr Speaker, we have some form of crisis in Parliament. As an organ of state, we do not have a medical centre. We have a clinic. Members of Parliament and Parliamentary Service staff are over 1,000 yet, we only have a small clinic taking care of Members. We work and work over time. So, I expected that the Committee would have looked into matters such as that and it is a bother for us in Leadership.

Mr Speaker, it is serious. There has to be a proper provision for us to have a proper medical centre. You know how these issues come up and Members have serious medical issues.

Mr First Deputy Speaker: Hon Member, I will plead with you that certain issues are for housekeeping.

Mr Dafeamekpor: Mr Speaker, I agree that it is for housekeeping but I believe that the Committee ought to have made provision for matters such as this. I am happy that in pursuance of the House Committee's recommendation, we are making a provision for a robust cyber security apparatus. Our data is so exposed and if you go to other sister parliaments, their cyber security issues are well protected. They have a proper

framework for it so I am happy that some provision has been made for it.

Mr Speaker, as a House, we do not have an eating place and I am sad that the Committee again did not — last year, I raised it.

Part of the problems we have as Whips is that, the day Parliament does not make provision for lunch, some Members after some time want to go and find lunch or supper. So, the House must, as a matter of necessity, begin to make provision for a facility where Members can have an eatery. They can go in, pay for food, and come back to the House and participate. It is completely missing from the matters that we are considering for next year and it is a bother for me as part of Leadership.

Mr Speaker, the other matter I want to raise which has not been captured is that, for a couple of years now, we have been trying to rehabilitate our Police post. When we are entering Parliament from the western flank, that is the Police post that we have. I was hoping that this year, we would have finished and given it some ambience. It is one of the first structures we see when entering Parliament. There is no provision for it. So that structure, again, will remain like it is and the policemen have been moved to a facility that is not supposed to serve as a police station. So, Chairman of the Committee, it is a bother that, again, we have not made provision for the completion of that facility. It is not good enough.

Mr Speaker, let me again commend the Committee in this regard for making provision for the completion of the museum, which is very good. Also, finally, the issue of the MP's constituency office. I want to urge the Ministry of Finance to treat this matter as a matter of some serious concern for Parliament. That some provision is made for Members to have an office to operate from.

Mr Speaker, I am aware of your situation. When you visit home and on other occasions when you go, the way people besiege your house is not the best. You need a facility to be able to meet your constituents and transact some business.

Mr Speaker, finally, let me add that the issues as raised by other Members concerning the approval for Parliament is very important. So, Deputy Minister for Finance, you are one of us. We want to encourage you to do what we call timely releases. Once the releases come timely, I am sure Parliament will be able to undertake some of these critical projects so that Members can be more effective to operate from their offices and to also perform the functions of the office.

Mr Speaker, with these words, I urge the House to adopt the Report presently before us.

I thank you for the opportunity.

Mr First Deputy Speaker: Yes, Deputy Minister for Finance?

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) (MP): Thank you, Mr Speaker. I have listened to —

Mr First Deputy Speaker: In your concluding comments, take into consideration, the concerns expressed by Hon Members regarding all the issues under consideration.

Mr Ampem: That is exactly what I am doing and I want to say something for the record. I have sat here and have listened to Hon Members debate on estimates for many of the MDAs and consistently, Members have made a case for us to increase allocation to many MDAs. So, it is not as though it is a new thing and that Members are advocating only for Parliament. I want that important statement made. I also want to place on record that it is quite impossible to allocate in accordance to the wish list of any of the MDAs.

So, for Members to compare that Parliament requested for GH¢4 billion and we have given GH¢1.6 billion is not entirely the right comparison. The right comparison I want us to do— and I say it is not entirely right because it cuts across all MDAs. Almost everybody requested huge amounts. But looking at what is available in the basket, we have tried to allocate equitably to support every agency. We have not been able to meet the request from the Executive and the Judiciary. It is the same for —

Mr First Deputy Speaker: So, Hon Deputy Minister for Finance, what was the request of Parliament and what was the proposed release?

Mr Ampem: Members mentioned over GH¢4 billion.

Mr First Deputy Speaker: You are saying that is not right?

2:44 p.m.

Mr Ampem: No, that is not something that can be met.

Mr Speaker, I want to draw your attention to this. That in 2023, Government allocated GH¢639 million to Parliament.

That amount went to GH¢1,022,000,000 in 2024. In 2025, it was increased to more than GH¢1.1 billion. In 2026, we have increased the allocation by over 45 per cent from GH¢1.1 billion to GH¢1.6 billion.

Mr Speaker, no other Ministries, Departments and Agencies (MDAs) have received this quantum increase in their allocations for 2026. So, when they say that Hon Minister for Finance and his Deputy are both Hon Members of Parliament, and so they should look favourably on Parliament, I am telling them, we have looked more favourably on Parliament than they could have done during their era.

Mr Speaker, another important thing to note is that with the allocation in 2025 being GH¢1.1 billion by September this year, we have actually released GH¢816 million to Parliament. So, it is not only the allocation, but also the releases to Parliament has improved significantly.

What is remaining is just about GH¢200 million, and that has also been released. I am telling them that we have released the full allocation to Parliament, something that has never happened. What I want us to support is the call that was made by Mr Kojo Oppong Nkrumah; let us all be prudent in the utilisation of the meagre resources to all of us.

I have heard all of us, and I have also experienced the difficulties we have in our offices. I am also an Hon Member of Parliament. I sit there, and I also bear those difficulties. The commitment I want to make to the House is that in 2026, we will also be prompt in our releases to Parliament, just as we have done this year. Our appeal, and the Clerk to Parliament, keeps mentioning CAPEX; CAPEX allocation has increased from GH¢80 million to GH¢300 million in 2026. We will make sure we release them to him so that he can fix all the problems that Hon Members are talking about.

Mr Speaker, I want to assure you on behalf of Dr Cassiel Ato Forson that we will make sure that we release funds to Parliament so that Parliament will continue to do the good things that it does for Mother Ghana

Thank you, Mr Speaker.

[Hear! Hear!]

Mr First Deputy Speaker: Hon Members, can we have some order in the House? All Hon Members standing should kindly resume their seats, particularly those who are turning their backs to the Mace.

Hon Members, kindly resume your seats.

Question put and Motion agreed to

Resolved:

That this honourable House approved the sum of GH¢1,619,643,682.00 for the services of Parliament and Parliamentary Service for the year ending 31st December, 2026.

Mr First Deputy Speaker: Yes, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, may I pray that we take the Motion numbered 49 on the *Order Paper*. [Pause] Mr Speaker, may I pray that instead of the Motion numbered 49, may I pray that we go to the *Order Paper Addendum* to take the Motion Numbered 2, which will be the Report from the Committee on the Road Traffic (Amendment) Bill, 2025.

Mr First Deputy Speaker: Hon Members, the Motion numbered 2 on the *Order Paper Addendum*, page 1, by the Minister for Transport.

Ms Appiagyei: Mr Speaker, I do not have anything against that proposal, but the Majority Chief Whip must seek consent. We are both here trying to ensure the smooth running of Government Business.

Mr First Deputy Speaker: Your point is well noted. The application is to take the Motion numbered 2 on the

Order Paper Addendum. Let me hear from the Hon Deputy Minority Leader.

Ms Appiagyei: I mentioned that I do not have anything against the proposal.

Mr First Deputy Speaker: Very well.

Yes, Minister for Transport, you have the floor.

BILLS — SECOND READING

Road Traffic Amendment Bill, 2025

Minister for Transport (Mr Joseph Nikpe Bukari) (MP): Mr Speaker, I beg to move:

That the Road Traffic (Amendment) Bill, 2025 be now read a Second time.

Mr First Deputy Speaker: Hon Members, the Motion for the Second reading of the Road Traffic (Amendment) Bill 2025 is *moved*. May I call on the Chairperson of the Committee to present your Committee's Report?

Chairperson of the Committee (Mr Isaac Adjei Mensah): Mr Speaker, I beg to support the Motion moved by the Hon Minister and in so doing, I present your Committee's Report. I request that the *Hansard* captures the entirety of the Report.

Introduction

The Road Traffic (Amendment) Bill, 2025, was presented to Parliament by the Hon Minister for Transport, Mr Joseph Nikpe Bukari and was read for the first

time on Wednesday, 10th December, 2025, in accordance with Article 103(3) of the 1992 Constitution.

Pursuant to Orders 165 and 253 of the Standing Orders of the House, the Bill was subsequently referred to the Committee on Roads and Transportation for consideration and report.

After the referral, the Committee met with the Hon Minister for Transport, Mr Joseph Bukari Nikpe, and officials from the Ministry of Transport, Office of the Attorney-General and Ministry of Justice, Driver and Vehicle Licensing Authority, and National Road Safety Authority and considered the referral. The Committee is grateful to the Hon Minister and the officials for the assistance.

The Committee hereby presents this report pursuant to Order 166 of the Standing Orders of the Parliament of Ghana.

Reference Documents

The Committee referred to and was guided by the following documents during its deliberations:

- i. The 1992 Constitution of Ghana;
- ii. The Standing Orders of Parliament of Ghana (2024);
- iii. The Road Traffic Act, 2004 (Act 683);
- iv. Road Traffic Regulations, 2012 (L. I. 2180); and

- v. Ghana Standards Authority Act, 2022 (Act 1078).

Background

The Road Traffic Act, 2004 (Act 683) was enacted to replace the Road Traffic Ordinance, 1952 (no. 55). The Act consolidated and revised the Road Traffic Ordinance, 1952 (No. 55) and provided for a more comprehensive legislation on road traffic and road use to ensure safety on roads. Act 683 was amended in 2008 and further amended in 2020, through a Private Members Bill, to provide for stricter sanctions for traffic offenders whose actions result in the death of an unborn child.

The emerging practice in the road transport industry, including the use of motorcycles, tricycles, and quadricycles for fare-paying passenger services and ride-hailing services, among others, has made it necessary to further amend Act 683 to legalise the operation of motorcycles, tricycles and quadricycles for fare-paying passenger services. Over the years, Act 683 has faced various challenges in implementation, including a rising level of indiscipline among road users, speeding, distracted driving, drunk driving and driving fatigued.

In 2023, the World Health Organisation estimated that one million, one hundred and ninety thousand persons around the world were killed in road traffic crashes, with an additional fifty million persons sustaining various degrees of injury or disability. The report indicated that more than half of these

occurrences involved vulnerable road users, including pedestrians, cyclists and motorcyclists.

In 2024, Ghana recorded 13,489 incidents of road crashes resulting in 2,494 fatalities and causing serious injuries to 6,243 persons. The majority of the victims of these road crashes were children and young adults aged five to twenty-nine years. These statistics pose a worrying phenomenon due to the severe implications for households, communities and the country.

Consequently, there is consensus among stakeholders that the underlying issues of speeding, distracted driving, drunk driving, driving while fatigued and the emergence of new practices in the road transport sector among others, should be addressed through legislation. There is also the need for legislative review to regulate the new developments in the transport sector, including the use of motorcycles and tricycles for fare-paying passenger services, to improve safety and discipline on our roads.

The Bill, therefore, sets a higher limit for the determination of alcohol concentration to reduce the incidents of drunk driving and the accidents which occur as a result of drunk driving, and provides a framework to regulate commercial motorcycle and tricycle operators in the road transport sector.

Purpose of the Bill

The purpose of the Road Traffic (Amendment) Bill, 2025 is to amend the Road Traffic Act, 2004 (Act 683) to

provide for the limit for the determination of alcohol concentration in drivers, the use of motorcycles, tricycles and quadricycles for commercial purposes, the development of standards for seat belts and other safety equipment, to reduce the age restriction on commercial drivers and to provide for motor vehicle emission testing.

The amendment to Act 683 is therefore intended to create the necessary momentum for improved road safety, create employment opportunities for the youth in the country, and pave the way for a comprehensive regulation of the road transport industry.

Additionally, the amendment seeks to provide a regulatory framework for the use of motorcycles, tricycles and quadricycles for fare-paying passenger services and ride-hailing services in Ghana.

Provisions of the Bill

The Road Traffic (Amendment) Bill, 2025, is divided into fourteen (14) Clauses.

Clause 1 amends section 4 of Act 683 to decrease the percentage for the determination of alcohol concentration in a person driving or attempting to drive a motor vehicle under the influence of alcohol, from 0.08 per cent to 0.05 per cent.

Clause 2 amends section 10 of Act 683 to revise the prescribed limits for alcohol concentration in hundred millilitres of breath, blood and urine to 21.87 microgrammes of alcohol, 50

microgrammes of alcohol and 66.875 microgrammes of alcohol, respectively. This amendment is consequential to the amendment in *clause 1*.

Clauses 3 amends section 13 of Act 683 to provide for the development of standards for seat belts.

Clauses 4 amends section 14 of Act 683 to prohibit a person who drives a motor vehicle from carrying a child below the age of twelve years or a child who is less than one hundred and forty-five centimetres tall and weighs less than thirty-six kilogrammes, in the front seat of the motor vehicle. Additionally, where the child is in the rear seat of the motor vehicle, the child is required to be properly restrained in an appropriate safety seat designed for children to ensure that the child is seated, positioned and restrained to withstand the force and impact of a road crash in order to reduce the risk of injury and death. Furthermore, the *clause* prohibits the driver of a motor vehicle from driving a child under eighteen years in a motor vehicle without the child wearing a seat belt.

Sections 15, 16 and 17 of Act 683 are amended in clauses 5, 6 and 7, respectively, to provide for the development of standards for safety equipment for children in motor vehicles, protective crash helmets and protective equipment, respectively. The standards to be developed include prescriptions on the shape, construction and other quality of the equipment conducive for the protection from injury of a person riding or being ridden on a motorcycle, in the event of a road

accident, the use of the equipment by a child being ridden on a motorcycle and the correct usage of the type of equipment.

Clause 8 amends section 23 of Act 683 to prohibit a person from carrying a fare paying passenger on a motorcycle or using the motorcycle for any other commercial purpose unless the motorcycle is licensed under the Act and meets the requirements specified by the Licensing Authority, the Regulatory Authority and Regulations made under the Act.

Clause 9 amends section 40 of Act 683 to reflect the policy change from the assignment of registration numbers to a motor vehicle or trailer, to the owner of the motor vehicle or trailer instead. The clause also empowers the Licensing Authority to determine whether or not to withdraw a registration number assigned to the owner of a motor vehicle or a trailer, and the circumstances under which the Licensing Authority may withdraw an assigned number.

Clause 10 introduces the definition of Trade Licence Plate under section 52 of Act 683 to include a plate, a sticker, a form, a certificate or any other format that the Licensing Authority prescribes with the approval of the Minister.

Clause 11 amends section 65 of Act 683 to reduce the age at which a person can drive a commercial vehicle from twenty-five years to twenty-one years.

Clause 12 amends section 92 of Act 683 to provide for the examination of

motor vehicles to ensure that the motor vehicle emission levels do not exceed the national standards specified for motor vehicle emissions.

Clause 13 amends section 99 of Act 683 to enable a vehicle examiner to test a motor vehicle on a road for the purpose of ascertaining whether the emission levels prescribed for the motor vehicle are complied with in respect of the motor vehicle.

Clause 14 amends section 134 of Act 683 to revise the definitions of "commercial vehicle" and "spot fine" and incorporate new definitions of phrases used under the Bill.

Justification for the Bill

The justification for the Road Traffic (Amendment) Bill, 2025, is grounded in the persistent challenges facing road safety in Ghana and the changing dynamics of the road transport sector. Over the years, Act 683 has faced various challenges in implementation, including a rising level of indiscipline among road users, speeding, distracted driving, drunk driving and driving while fatigued. These unsafe practices have contributed to a worrying increase in road traffic crashes nationwide.

The amendment to the Road Traffic Act, 2004 (Act 683) and the Road Traffic Regulations, 2012 (L.I. 2180) is therefore necessary to enhance road safety, modernise transport operations, and align national standards with emerging global practices.

The proposed amendment seeks to reduce the permissible blood alcohol concentration for drivers from 0.08 per cent to 0.05 per cent to minimise alcohol-related accidents by strictly limiting alcohol intake among drivers.

The proposed amendment also seeks to formally introduce and regulate the operations of motorcycles, tricycles, quadricycles, and regulate the operation of motor and similar emerging transport modes, ensuring their safe and lawful integration into the transport system.

The amendment also includes adjusting the minimum driving age from 25 to 21 years to widen opportunities for the youth to participate in commercial driving, thereby promoting employment and economic inclusion.

Furthermore, the amendment aims to strengthen and improve standards for protective gears, including seat belts, helmets, fire extinguishers, and improve the overall safety conditions for both drivers and passengers through clearer standards and enhanced enforcement provisions.

Finally, the amendment also seeks to support national commitments to climate-change mitigation by encouraging the use of vehicles that meet acceptable environmental and emissions standards.

Interministerial/Agency Consultation

Stakeholder consultations were carried out extensively to enhance the content of the Bill. The Stakeholders consulted include the Ministry of Transport,

the National Road Safety Authority, the Driver and Vehicle Licensing Authority (DVLA), transport unions and the Parliamentary Select Committee on Roads and Transportation.

Observations

The Committee, having carefully examined the Bill, made the following observations:

Urgency of the Bill

The Hon Minister informed the Committee that the passage of the Bill is necessary to allow the Driver and Vehicle Licensing Authority (DVLA) and other road safety institutions to roll out the new policy of assignment of number plates to the owners of motor vehicles or trailers instead of the vehicle in January 2026.

The Committee has thoroughly examined the Bill and is convinced that the passage of the Bill would allow for the necessary preparation to integrate and regulate the use of tricycles and tricycles for commercial fare-paying service to reduce accidents, especially during the upcoming Christmas festivities. The passage of the Bill is also necessary to allow DVLA to roll out the implementation of its new number plate system by 1st January, 2026.

The Committee therefore considered the Bill to be of an urgent nature and should be taken through all the stages in one day in accordance with Article 106(13) of the Constitution and Order

160(3&4) of the Standing Orders of the House.

Importance of the Bill

The Committee observed that the Road Traffic (Amendment) Bill, 2025 is critical for strengthening the legal and regulatory framework governing road transport and safety in the country. The Committee noted that the Bill responds to the persistent increase in road traffic crashes, injuries and fatalities, particularly among vulnerable road users such as pedestrians, cyclists and motorcyclists. The Committee noted that by introducing clearer limits for determining alcohol concentration in drivers, the Bill seeks to curb the growing incidence of drunk driving, distracted driving and fatigued driving, which remain major contributors to road crashes nationwide.

Integration of the Motorcycles Urban Transport System

The Committee observed that the increasing use of motor cycles, tricycles, quadricycles and similar motor vehicles on major roads has created a safety risk for both riders and other road users. These vehicles usually operate at lower speeds and have limited stability compared to conventional vehicles, making them vulnerable in mixed traffic conditions. The lack of designated lanes or structured integration within the current road network has contributed to congestion, frequent conflicts between road users, and a higher risk of accidents.

The Committee therefore recommends the integration of cycle lanes into new road designs in major cities and urban areas to minimise congestion. This will ensure safe and orderly movement, reduce the risk of collisions, and improve overall traffic flow.

Age Limit for Commercial Motorcycle Operators

The Committee observed that the amended Act sets 21 years as the minimum age for persons engaged in commercial motorcycle operations. The Ministry explained that this threshold was informed by stakeholder consultations, during which concerns were raised that individuals between 18 and 20 years are within a formative period where they are expected to remain in school or under apprenticeship rather than pursue commercial activity. This consideration guided the final age limit adopted in the Act.

The Committee commended the Ministry for its consultative approach and emphasised the need for broader and continuous stakeholder engagement to facilitate smooth implementation and ensure that the objectives of the Act are fully achieved.

Uniforms for Commercial Motorcycle Users

The Committee expressed concerns about the absence of a clear and enforceable uniform requirement for commercial motorcycle and tricycle operators in the current regulatory framework. The Committee again noted

that without standardised uniforms, it is difficult for enforcement officers to distinguish licensed riders from unregulated operators. The Committee also proposed the need to align uniform provisions with Section 40 of Act 683 to ensure uniformity across all categories of commercial riders, and strengthen overall accountability and safety. The requirement for uniforms would ensure proper identification, and enhance public confidence in motorcycle and tricycle transport services.

The Committee further observed that the introduction of standardized uniforms in Ghana would align the country with best practices already adopted in other African nations such as Benin, Rwanda, and Togo, where commercial motorcycle operators are easily identifiable through regulated attire. In these countries, uniforms have contributed to improved enforcement, reduced impersonation, enhanced passenger safety, and strengthened the professional image of the sector. Adopting a similar model in Ghana would not only bring consistency and order to the growing motorcycle and tricycle transport industry but also support broader national efforts to improve road safety, regulate informal transport, and ensure operators meet minimum identification and safety standards.

Proposed Amendments

The Committee having carefully examined the Bill proposed the following amendment for the consideration of the House:

1. Clause 2 - Amendment proposed - paragraph (c), line 2, *delete* “and” and *insert* “or”
2. Clause 4 - Amendment proposed - sub-clause (5), line 7, *delete* “and” and *insert* “or”
3. Clause 8 - Amendment proposed - sub-clause (2), *delete* paragraph (a), and *insert* “is registered in accordance with section 38 of this Act;”
4. Clause 11 - Amendment proposed - Opening phrase, line 1, *delete* “of” and *insert* “for”.
5. Clause 12 - Amendment proposed - Opening phrase, *delete* all words after “substitution” and *insert* “for section 92, of”.

Conclusion and Recommendation

The Committee has thoroughly examined the Bill and is convinced that the proposed Bill aims at creating the necessary momentum for improved road safety, creating employment opportunities for the youth in the country and paving the way for a comprehensive regulation of the road transport industry.

The Committee therefore recommends to the House to adopt this Report and pass the Road Traffic (Amendment) Bill, 2025 into law in accordance with article 106(13) of the 1992 Constitution of the Republic of Ghana.

Respectfully submitted.

2:54 p.m.

Mr Kennedy Nyarko Osei (NPP — Akim Swedru): Mr Speaker, I beg to support the Motion. Mr Speaker, the Road Traffic (Amendment) Bill, 2025, has been on the drawing board for a

while now. I remember in the Eighth Parliament, we tried to work on it, but we could not. Finally, it has come to the House for us to work on it and pass it so that it becomes a law to assist the Driver and Vehicle Licensing Authority (DVLA) to carry out its mandate.

Mr Speaker, these amendments, if passed by the House, will address critical lapses in the existing law. As we speak, there are some activities that the law does not cater for, and we believe that this law, when passed by the House, will help address those issues. Mr Speaker, currently, there are lapses in the safety regulatory framework, and when this Bill is passed, it will help the National Road Safety Authority (NRSA) to address road transport and safety issues in the country. I believe it is within our remit to ensure that this is done so that the DVLA will carry out its mandate without any restraint.

Mr Speaker, with these few words, I want to thank you for the opportunity.

Mr Acheampong: Mr Speaker, I want to speak to the Report on the floor of the House. This is the right time for this amendment, and I call on the Ministry to ensure that the agencies that we are helping to enact this law would make sure that the right things are done. Mr Speaker, we need discipline on our roads; going forward, there must be a dedicated lane for motorcycles, buses, and other users.

During rush hours, we see buses trying to use their lane, but other users are also trying to cross that same lane to create unnecessary traffic on our roads. This occurs especially when the red light is on. The motor riders do not care about the red light, and it does not affect them. We see them riding. If we are not careful, we may crash into them. Minister, please pay attention to this, deploy your security officers, and make sure that there is sanity on our roads. At the end of the day, a car worth millions of cedis or dollars may clash with an *okada* or a motorbike. Sometimes, that motorcycle is not registered, and one cannot identify the person, and the person will ride on. These are some of the things we need to address. We need them; *okada* is not the problem that I am talking about.

From the year 1998 to 2000, I was in Beijing, China, where they used tricycle or a motorbike. If one wants to go to the market, one does not need to take a taxi. They have a bicycle, which can carry about two or three people. Passengers sit at the back, and women will be riding. So, this is not a new thing. The most important thing is that there are dedicated lanes for them. There are

certain places riders cannot use those motorbikes. So, let us put measures in place, regulate them and make sure whoever offends the law is punished, so that there will be sanity on our roads. When we are going to the airport, or there is a business to attend, and we are stuck in traffic, we sometimes leave our vehicles and jump onto motorbikes to attend those programmes. So, we should not pretend that they are not serving us. They are serving our interests, but let us put the laws in place and make sure they are regulated, registered, and licensed. We see people wearing sandals and riding motorbikes. How? They cannot do that. These are some of the measures we need to put in place. *Okada* has come to stay. Whether we like it or not, it has come to stay. Let us regulate them; let us make sure there is sanity, we have the laws to protect them. They must insure their motorcycles, and whoever is riding must be insured, so that when there are accidents, the insurance company can also compensate them. These are some of the things we need to put in place.

Mr Speaker, I thank you very much for the opportunity. *Okada* has come to stay. Let us work with it.

Dr T. A. K. Mahama: Mr Speaker, I appreciate that this Bill is in honour of a promise made by the President, and the principle behind it is to the effect that the President promised, and the Minister for Transport is trying to deliver on that promise to regularise the operations of motorbikes for commercial purposes —

Mr First Deputy Speaker: Hon Member, which aspect of the Report are you speaking to?

Dr T. A. K. Mahama: Mr Speaker, I am speaking to the observations. They are talking about the integration of the cycle urban transport system. If you read page 8, it captures the Government, and the essential point I am trying to convey. To the effect that the Committee observed the increasing use of motorcycles, tricycles, quadricycles, and similar motor vehicles on major roads has created safety risks for both riders and other road users.

Mr Speaker, this is what this particular Bill seeks to regularise or seeks to put in regulatory framework to guide the operations of *okadas*. So, I am on all force when I make the point that it is in fulfilment of a campaign promise. Mr Speaker, the phenomenon of *okadas* is not new in Ghana. In fact, in Kenya, there is what we call the *boda boda* operators. The system was created, but it has also devolved into a chaotic situation in Kenya. I am just worried that the Minister might have gone to Kenya and studied their system, and see whether they can prevent the fallout of such a system. As much as we want to make sure that our roads are safe, we want to make sure that *okada* operators are able to be within the legislative and legal framework. We must also be aware of the unintended consequences of such legalisation. That is the point I want the Minister to address in this Bill; how it will address the pollution issues, and how it is going to address the issue of the chaos that it is going to create.

Mr Speaker, Kenya is now having to deal with the hazards of such a system. That is the problem they are now facing.

I think that it is a noble idea that our people, our brothers and sisters who are using this to fend for themselves or livelihood issues, be regulated. But my only fear, Mr Speaker — and I want the Minister to assuage this particular fear, is that the problems we are having in Kenya will rear its ugly head in Ghana if we do a wholesale legalisation of the operation of this particular system.

Mr Speaker, the last thing I want to comment on is the age limit. The Committee is proposing that for one to even be recognised to operate a commercial motorbike, tricycle or quadricycle for the purposes of earning a living, one must be 21 years and above. Mr Speaker, this is a difficult balance. The rationale for that is that at the formative age, a person is supposed to be in school and that one will not want someone who should be in school rather going to fend for themselves.

3:04 p.m.

Mr Speaker, some people at age 20 begin to take care of themselves. They decide that at that particular age, the only time we say education is compulsory was the introduction of the Free Basic and Secondary School Education. People get to the university at age 18. What becomes of them? Does it mean if they are not going to the university, they cannot make a living for themselves? I think these are also policy issues that the Ministry and the Government will have to consider. I think that we may not have to put a feather—Once a person is of majority, once a person is actually at a particular age, he can do a meaningful

and a decent work. We should make it open for them to be able to pursue that. I think that unless, of course, there is a better argument, we may have to look at it even before we go to Consideration Stage where we will have to look at this particular proposal.

With these few words, Mr Speaker, I want to thank you for the opportunity and to wish the Government well and to say to those who have said *Okada* has come to stay that there is no opposition whatsoever from this Side on the operation of *Okada*. It is not the intention of Members of the NPP to prevent people who want to make a decent livelihood through the use of *Okada*. As a matter of fact, our constituents are also part of those involved in it. So, it is not something for which they would want to take full credit. We will support them, but we are cautioning them that they do it and do it well.

Mr Speaker, I thank you for the opportunity.

Mr First Deputy Speaker: Yes, Minority Leadership?

Second Deputy Minority Whip (Mr Jerry Ahmed Shaib): Mr Speaker, I want to thank you for this opportunity.

I have had the opportunity of serving on the Board of Korle-Bu Teaching Hospital and also as an acting board chair for a period. Mr Speaker, throughout the period, the kind of accidents that involved largely motorcycles, on a daily basis, mostly ended up being fatal. And it is not just as a result of the riding of the

motorcycle, but a combination of several factors, one of which is the disregard for traffic rules. Whether traffic lights are working or not, we see motor riders disregarding the traffic lights.

Mr Speaker, the second factor is the speed at which they ride. They ride on the very corners of the road. And so, drivers who are sometimes also not careful and have not noticed them end up knocking them down. There have also been situations that in most of the medians, the grass may have grown to the extent that a driver is unable to see the other side of the road, and may end up knocking a motor rider. Where billboards have also been fixed indiscriminately without recourse to metropolitan or municipal regulations as to how they should be managed or fixed—

Mr Speaker, as I speak, I have the statistics. And if you may respectfully permit me, I will just share with you a few, with reference to road accidents. It is more than terrible. According to a report of the National Road Safety Authority, between January to August 2025 alone, accidents that claimed lives within Accra alone, is 1,917. When we go further, it says that, and we have had 16,348 vehicular accidents, and 10,000 of them got seriously injured. And it goes on to tell us that for motorcycles alone, in Ghana generally, not Accra, is 4,186.

Mr Speaker, if we go to Korle-Bu Teaching Hospital, I have been a witness, and the way and manner their legs are being amputated, it is terrible. We can have a conversation with the

head of emergency, Dr Kwarteng, and he will tell us. Most of the time, they are unable to pay for their surgeries, because it is very expensive. They end up putting all manner of bolts and nuts in their legs and knees. This is what is happening. Drunk driving —*[Interruption]*— The brighter side is that we can just not sit and think that because we have made a promise, we must push it. Let us be holistic. Let us be comprehensive. Let us think about the people. How do we do so? Let us think of how to train and educate them so that when they are on the motorbikes, they will know that there are lanes for motorbikes. Also, that when police officers arrest these motorcycle users, in our intervention as Members of Parliament or politicians, we be careful.

Mr Speaker, if care is not taken, and we only look at the issue of drunk driving, and not prepare the people on the use helmets; the speed limits; where they should ride; where they should not ride; respect for traffic regulation that when it is red, they need to stop, and we do the usual politics, we will have ourselves to blame.

Mr First Deputy Speaker: Hon Members, let me indicate that at Second Reading, we debate the principle. If we look at the Bill comprehensively, all that we are talking about is the very essence to which they are making the law. There is even the prescription of the kind of helmet that they are supposed to use. There are protective mechanisms in the Bill.

Hon Member, you may continue. I just wanted to draw your attention to the memorandum and the body of the Bill.

Mr Shaib: Mr Speaker, thank you very much.

Fortunately, I have perused the Bill and seen all of that, but Mr Speaker, you know the problem here. It is not just a matter of what we are providing; it is a matter of the implementation. Mr Speaker, there are several motor riders who are keeping their helmets behind their seats, and why do we think that that is going to change, because we are now putting in new mechanisms? It is the implementation. That is my view.

Mr First Deputy Speaker: I am not taking part in the debate, but I feel strongly that because there is no legal regime regulating that particular sector, things are flexible. That is the reason for which, if this law is put in place, there will be a legal regime to regulate, which will lead to a reduction in the issue that you are stating.

Mr Shaib: Mr Speaker, I agree with you 100 per cent.

To round up, the statistics I have from the Motor Transport and Traffic Department (MTTD), indicates that 10,734 accident cases were recorded across all 25 police regions between January and September 2025, that is 9.31 per cent increase compared to 9,820 cases over the same period last year. That is humongous; that is huge. So, it is up to us as lawmakers to think about the fact that we are not here just to ensure that a promise made during an electioneering campaign is carried out, but we should carry it out to the levels of thinking of the welfare of our people. So that if they are

voting for us, they will still be alive to vote for us.

Mr Speaker, with this, I thank you very much for giving me this opportunity.

Mr First Deputy Speaker: I will give the floor to Hajia Ayamba, then I will come to Leaders.

Hajia Laadi Ayii Ayamba (NDC — Pusiga): Thank you, Mr Speaker, for the opportunity.

I have listened carefully to my Colleagues, especially, Hon Jerry Ahmed Shaib, and just as Mr Speaker have rightly stated, basically, all that they have mentioned have been discussed in the Bill. And we all understand that if there is a law regulating people, definitely, each and every one of us, including the authorities, will ensure these people adhere to the law.

3:14 p.m.

Mr Speaker, earlier, it was mentioned that maybe the Minister had looked at the issue of Kenya—It is not only in Kenya; when you go to Rwanda, they use a lot of motorbikes. They do not have specific rules, but they obey the law; they listen and do what is expected of them. We do not find anything like accidents or the like. Yes, even with vehicles that we use, we have accidents, and we understand that every human institution has at least some lapses; every organisation has some lapses. So, it does not mean that, if we put the law in place, there will be no lapses. The training we have spoken about is part of the discussions that we

had. Trackers will be put on these motor vehicles. We have even said in the law that they must have seatbelts to ensure that they are strapped.

Now, Mr Speaker, there was a mention of age. We discussed this yesterday during the Committee's meeting, that, after 18 years, maybe there are people who are ready to work. But we also looked at the formative ages, and then we said if we give the opportunity to someone for his or her education, maybe at 18 years to 20, that person would decide on what to do. Then the person can now go in, if he or she wishes, to do *Okada*. That is not an issue for the President or anyone taking credit for it. Whether we regulate it or not, it is something that is happening out there. So it is better we put in place a law, ensure the rules and regulations are there, and then we take it from there.

With the issue of them riding on the roads, we cannot go back to construct roads before we put the regulation in place. The way forward is that, as we implement this law and give them the opportunity, any road that is to be constructed, we will also look at which side of the roads these motorists or even pedestrians will move on. When we discuss these motor vehicles, we also consider pedestrians. So, I think that when we go into the nitty-gritties of the Bill, all that we have said will be contained in it. I believe this is not an issue of implementing a policy mentioned by the President. It is an issue we live with, and we must find a way to address it to improve the lives of all of us.

I thank you, Mr Speaker, for the opportunity.

Question put and Motion agreed to.

Road Traffic (Amendment) Bill, 2025, accordingly read a Second time.

Mr First Deputy Speaker: Hon Members, I will take a two-minute suspension, then we will come back and continue our proceedings.

3:20 p.m. — *Sitting suspended.*

3:30 p.m. — *Sitting resumed.*

Mr First Deputy Speaker: Now we take Motion number 3 on the *Order Paper Addendum*, page 1.

Minister for Transport?

MOTION

Suspension of Standing Order 169(1)

Minister for Transport (Mr Joseph Nikpe Bukari) (MP): Mr Speaker, I beg to move:

That notwithstanding the provision of Order 169(1) of the Standing Orders which requires that when a bill has been read a second time, the Bill shall pass through a consideration stage which shall not be taken until at least two sitting days have elapsed, the Consideration Stage of the Road Traffic (Amendment) Bill, 2025 may be *moved* today.

Mr John Kwabena Bless Oti (NDC — Nkwanta North): Mr Speaker, I second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

First Deputy Minority Whip (Alhaji Habib Iddrisu): Mr Speaker, with respect, we cannot go to Consideration Stage of the Road Traffic (Amendment) Bill, 2025, now. At onclave, we agreed among other things the Businesses to conduct. Mr Speaker was there at Conclave, and we were straightforward as to the Businesses that we were going to do. We agreed that we were going to take the Consideration Stage of the Virtual Asset Service Providers Bill, 2025. This one was not part of what we agreed. If we want to do this one, we should go and do that Bill before we come to the Consideration Stage.

Mr Speaker, this will offend our Rules if we just rush into doing this. So, we should come to do some part of the consideration of the Virtual Asset Service Providers Bill and then we can come back and do the Road Traffic (Amendment) Bill, 2025. Let us go by what we agreed. We start that one, and come back and do the Road Traffic (Amendment) Bill. We cannot rush it this way.

Majority Chief Whip (Mr Rockson-Nelson Etse Kwami Dafeamekpor): Mr Speaker, indeed, we had an agreement. But, the First Deputy Minority Whip knows that sometimes we can agree to add further Business, given the exigency. This Business also stands in the name of the Minister for Finance. The agreement is that we take this quickly, take the

Virtual Assets Service Providers Bill at Consideration, and then he can leave so that we can take other Businesses. We are not doing this because of any other reason.

Mr First Deputy Speaker: Well, I happened to sit with the Business Committee briefly this morning. Three Bills were discussed, namely: the Virtual Asset Service Providers Bill; the Bank of Ghana (Amendment) Bill; and the Road Traffic (Amendment) Bill. This Road Traffic (Amendment) Bill and the Virtual Asset Service Providers Bill are conclusive. However, with the Bank of Ghana (Amendment) Bill, the Committee is yet to bring their Reports to be taken. So that is the status. For Bank of Ghana, until the Reports are ready, there is nothing we can do. So, the Bills due to be taken are the Virtual Assets Service Providers Bill and Road Traffic (Amendment) Bill. Hon Deputy Minority Leader?

Mr Dafeamekpor: Mr Speaker, if I may conclude. I would want to know whether they are bothered by the sequence? Is it the sequence that bothers them that we are taking Road Traffic (Amendment) Bill before the Virtual Asset Service Providers Bill or they want to take the Virtual Asset Service Providers Bill to be taken first?

Mr First Deputy Speaker: Hon Leaders, I will suggest that we proceed, and before the Motion for the Third Reading, the Leaders must engage.

Mr Dafeamekpor: Mr Speaker, well noted.

Alhaji Habib Iddrisu: Mr Speaker, the Clerks-at-the-Table — We are not being difficult or saying that we will not do it. I am just going by what we agreed. When I asked the Clerks-at-the-Table this morning about the Road Traffic (Amendment) Bill they said that the amendments are now going to be incorporated and it will come in the form of an *Addendum*. I said, no problem. Let us do what we agreed on and will come and do it. I am not opposed to it. What I am saying is the sequence of how we will do it. I am not opposed, but let us do what we agreed, Mr Speaker.

Mr First Deputy Speaker: I even took the trouble to explain that it is the practice these days. But for this particular Bill, the proposed amendments were five—

Alhaji Habib Iddrisu: Mr Speaker, we can go ahead.

BILL — CONSIDERATION STAGE

Road Traffic (Amendment) Bill, 2025

Clause 1 — Section 4 of Act 683 amended.

Mr Isaac Boamah-Nyarko: Mr Speaker, I have been looking at what has been served us under the Road Traffic (Amendment) Bill: provisions of the Bill and the proposed amendments. I stand to be guided, but when you come to clause one, what is on the Amendment Bill, it says:

“Amends section 4 of the Act to decrease the percentage for the determination of alcohol concentration in a person driving or attempting to drive a motor vehicle under the influence of alcohol from 0.08 per cent to 0.05 per cent.”

I just need your guidance on this particular proposed clause amendment and then the non-request or non-proposal as you indicated in the *Order Paper*. I am confused as to that provision.

Mr First Deputy Speaker: Hon Member, it is not the entire section 4 that has been amended here. If you look at the section 4 four of Act 683 amended, “the Road Traffic Act 2004, act 683, referred to in this Act as the principal amendment, is amended in section 4 by the substitution for subsection 2.” So, it is subsection 2 of section 4 that is being amended by this substitution. It means that it is seeking to *delete* subsection 2 and *insert* this new clause. That is the intendment of the amendment.

Question put and amendment agreed to.

Clause 1 ordered to stand part of the Bill.

Clause 2 — Section 10 of Act 683 amended.

Chairman of the Committee (Mr Isaac Adjei Mensah): Mr Speaker, I beg to move, paragraph (c), line 2, “urine;” *delete* “and” and *insert* “or”.

Question put and amendment agreed to.

Clause 2 as amended ordered to stand part of the Bill.

3:40 p.m.

Clause 2 as amended ordered to stand part of the Bill.

Clause 3 ordered to stand part of the Bill.

Clause 4 — Section 14 of Act 683 Amended.

Mr Mensah: Amendment proposed: Subclause (5), line 7, after “injury”, *delete* “and” and *insert* “or”. Thank you.

Question put and amendment agreed to.

Clause 4 as amended ordered to stand part of the Bill.

Clause 5 — Section 15 of Act 683 Amended.

Mr Boamah-Nyarko: Mr Speaker, on clause 5, I want to make a proposed amendment in terms of the conviction and the “summary conviction to a fine of not less than five penalty units and not exceeding 2,000 penalty units”. I would like this House to amend the five penalty units to ten penalty units.

Mr First Deputy Speaker: Are you reading clause 5(4)?

Mr Boamah-Nyarko: Mr Speaker, I am on clause 5.

Mr First Deputy Speaker: Yes, clause 5(4). Clause 5 has sub clauses and the penalty is in clause 5(4). Is that what you are reading? Which penalty unit are you reading? Is it not clause 5(4)?

Mr Boamah-Nyarko: Mr Speaker, I am referencing the Road Traffic Act, 2004 (Act 683).

Mr First Deputy Speaker: Is it the original rendition you are looking at or the amended rendition?

Mr Boamah-Nyarko: It is the original rendition.

Mr First Deputy Speaker: The original rendition in the Act?

Mr Boamah-Nyarko: That is the Act.

Mr First Deputy Speaker: The Act itself or the Bill?

Mr Boamah-Nyarko: It is the Act itself that I am referencing.

Mr First Deputy Speaker: Hon Member, do you want to amend what is not before us? I will advise that you do a Private Member's Bill and then have that particular clause amended.

Mr Boamah-Nyarko: Very well, Mr Speaker. You may proceed.

Clause 5 ordered to stand part of the Bill.

Clause 6 — Section 16 of Act 683 amended.

Mr Mensah: Mr Speaker, no amendment proposed.

Mr First Deputy Speaker: It is for the consideration of the House. Hon Members, any proposed amendment? Yes, Dr Mahama?

Dr Tiah Abdul Kabiru Mahama: Mr Speaker, I want to seek from the Chairperson or the Minister the definition of a child here. They are proposing that the “use of protective head crash helmet by a child ...”, before probably I go on to propose amendments to it. So, if I get conviction on what a “child” refers to here, I think I will be guided.

Thank you.

Mr First Deputy Speaker: Hon Member, do you have the parent Act, the principal enactment?

Dr T. A. K. Mahama: Not readily before me, please.

Mr First Deputy Speaker: Check the principal enactment whether it does not have the definition of a “child”.

Dr T. A. K. Mahama: I said that I do not readily have it, so if they could guide us all.

Mr First Deputy Speaker: Very well. Chairperson of the Committee or the Minister? Repeat it for the Minister.

Dr T. A. K. Mahama: I want the definition of a “child”. Clause 6(d) is saying that “the use of protective crash

helmet by a child being ridden on a motorcycle and” – so the child is just what I want. My difficulty is that it is practically not even possible for someone below the age of one to be on a motorbike and to also wear crash helmets. That is the conundrum I want to probably go around, to get the definition of a “child” within the contemplation of the parent Act or this particular Act. That is basically what I want to know.

Mr Haruna Iddrisu: Mr Speaker, the Children’s Act, 1998 (Act 560) is there and it defines who a child should be. We do not expect babies to ride motorbikes; we expect a certain age. Normally the assumption, would be that maybe even after senior high school, even though we can find Junior High School (J.H.S.) people in some rural areas using motorbikes. But there is a definition of a child by law in Ghana. Just to help the Hon Member for Walewale.

Dr T. A. K. Mahama: It is just that my senior Brother is short of telling me what that law says of a child. That is exactly the question that —

Mr First Deputy Speaker: Well, I would advise that once you are referred to the Children’s Act, 1998 (Act 560) it is in your interest to also look at the Children’s Act, 1998 (Act 560) and the definition of a child as contained in the Act. Other than that, we would be defining a child in every law that we make.

Dr T. A. K. Mahama: Rightly so. My argument here is not that we should

define it in the Act. My point was to the effect that if I have clarity in my thought on what that law says about a child here —

Mr First Deputy Speaker: So, go and look at that particular law. That law is not before us to be amended. The meaning as ascribed to it in the Children’s Act, 1998 (Act 560) still remains, and that is the context in which we are using it. So, you are asking this House to explain to you the meaning of children under the Children’s Act, 1998 (Act 560). That is what you are making reference to, instead of picking the law and looking at the meaning of children under the Children’s Act, 1998 (Act 560).

Dr T. A. K. Mahama: Mr Speaker, I am guided. Per my understanding of what it says, I feel like the practicality of this particular provision as to a child being on a motorbike — the utility value of it is what I am actually questioning because of my understanding of what a child could be under the Children’s Act, 1998 (Act 560).

Nana Agyei Baffour Awuah: Mr Speaker, very respectfully, I pray for your indulgence and guidance. I think what my Brother is making reference to has to do with providing for a specific age which a child in this instance is covered. If we pay attention to clause 4, we notice that it prohibits a person who drives a motor vehicle from carrying a child below the age of 12 years or a child who is less than 145 centimetres tall and weighs less than 36 kilogrammes.”

3:50 p.m.

Mr Speaker, here, we notice that there is a description as to the age of the child and in fact, even the height and weight. So perhaps he is anticipating a situation where in this instance, there will be consistency. Is it going to be the same category of age or age range or different, rather than going into the Children's Act 1998 (Act 560) to check.

Mr Speaker, if it is the same age and size description which is applicable, then respectfully, the drafting language can cover same. Otherwise, if it is something else, in the absence of having to go into the Children's Act 1998 (Act 560) to make reference, why do we not state so here?

Mr First Deputy Speaker: Hon Member, I think you have answered yourself from what you are saying. Where they have decided to give specific meaning to that child, the law has given it. Other than that, wherever the word "children" is used without ascribing any specific meaning to it, the meaning ascribed to it is that of the one in the Children's Act 1998 (Act 560). That is how it works.

Mr Baffour Awuah: Mr Speaker, very respectfully, for ease of reference, law should not be that cumbersome. There should be no ambiguity. Whoever takes this law—respectfully, we should not forget we are not making the law for lawyers but also for the ordinary citizen. Would we want whoever takes this law to go and read the Children's Act 1998 (Act 560) in addition to this law to comprehend it?

Mr Speaker, we should make things easy for the people. That is all we are praying for.

Mr First Deputy Speaker: Hon Members, I do not think the word "children" having been interpreted, is a term of Acts for which we should be calling for a definition in this law. Unless they want to give it a separate meaning. Hence, no need defining a child by this particular law.

Clauses 6 and 7 ordered to stand part of the Bill.

Clause 8 — Section 23 of Act 683 amended.

Mr Adjei Mensah: Mr Speaker, I beg to move clause 8, subclause (2), paragraph (a), *delete* and *insert* the following, "is licensed in accordance with section 38 of this Act;".

Mr First Deputy Speaker: Hon Members, there is a further proposed amendment to the amendment proposed by the Chairperson of the Committee. Instead of using the word "licensed", the appropriate terminology should be "registered". It is registered in accordance with section 38 of this Act. Section 38 of the Parent Act talks about registration instead of license.

The new rendition therefore will read paragraph (a), *delete* "and *insert* the following, "is registered in accordance with section 38 of this Act;".

Question put and amendment agreed to.

Clause 8 as amended ordered to stand part of the Bill.

Clause 9 and 10 ordered to stand part of the Bill.

Mr Adjei Mensah: Mr Speaker, I beg to move, opening phrase, after “section 65”, *delete* “of” and *insert* “for”.

Dr Tiah Abdul Kabiru Mahama: Mr Speaker, I want to propose an amendment. I remember when we were discussing the policy—

Mr First Deputy Speaker: Is the proposed amendment to the amendment proposed by the Chairperson of the Committee?

Dr T. A. K Mahama: No.

Mr Chairperson: So, allow me to put a Question on the proposed amendment by the Chairperson of the Committee.

Question put and amendment agreed to.

Clause 11 as amended ordered to stand part of the Bill.

Dr T. A. K. Mahama: Mr Speaker, I am proposing an amendment to clause 65(b) which reads: “... a motorcycle, if the person is under eighteen years.” I propose that we *delete* the word “eighteen” and substitute it with the word “sixteen”. So, the new rendition should read: “... a motorcycle, if the person is under sixteen years;”

Mr Speaker, the reason for this proposal is to the effect that we are supposed to have a law that conforms with global practices. In many jurisdictions, a child of 16 years can drive or ride a motorcycle—*[Interruption]*—Can you let me make a point?

Mr Speaker, the reason is that at age 16, we consider the person, in fact even in sexual consent is at age 16. We assume that—

Mr First Deputy Speaker: Majority Chief Whip, can you let him end his submission? I would give you the floor.

Dr T. A. K. Mahama: The age 16 in my opinion would be an adequate age limit for which a person can drive. Assuming a 16-year-old, probably in the secondary school or in the university, and the fact that the person is 16—

Mr First Deputy Speaker: So, Hon Kabiru, do you want us to use this particular law to amend the Children's Act 1998 (Act 560)?

Dr T. A. K. Mahama: Mr Speaker, that is the point I was making about the Children's Act 1998 (Act 560). The Children's Act says that, someone under the age of 18 is considered as a child and that was the point I was making, that even within this particular Bill, if we are saying that someone who is a child should use a helmet—we are asking what if someone is one year? Because any age under 18 years could even be one year old.

4:00 p.m.

The definition of a child is clear, so that was the point I was making about the first instance. That is why I am just thinking that if we say we are aligning this to the Children's Act, 1998 (Act 560), then probably I would yield, but the Children's Act, 1998 (Act 560) itself, you and I will agree that there are issues with it; age 21, 18, 16—There are different ages depending on the issue at hand. So, because of that particular regime, I was thinking if we could streamline some of these laws, because there is 18, 16, and there is even 21.

Mr Speaker, for a contract, the age is 21, am I right? Age of maturity is 18. These differences in these different laws is probably why I was thinking we can use —

Mr First Deputy Speaker: So, in the context of the Children's Act, 1998 (Act 560), why are you proposing 16?

Dr T. A. K. Mahama: Mr Speaker, unless, you are saying that we should use the Children's Act, 1998 (Act 560) as a guide, which I early on raised my issues with, in the context of this particular licence or registration to drive, or to use for commercial, I raised my issues with that. But if the understanding is 18, and we are going with the Children's Act, 1998 (Act 560), I would yield but early on, I expressed my misgivings about it.

Mr First Deputy Speaker: Yes, the understanding is that we are using 18 as contained in the Children's Act. Where

the law specifically states otherwise, the law will specifically say so.

Yes, Hon Haruna Iddrisu?

Mr Haruna Iddrisu: Mr Speaker, may I persuade the Hon Member for Walewale to abandon his amendment. In fact, when he rose, I thought it evidence-based, he would have argued that he has instances in Walewale, Wulugu area, or Nalerigu, where a child below 18 is using a motorbike for commercial purposes. If that was it, we would be persuaded enough. But Hon Kabiru, if you listen to Hon Ahmed, accidents—As much as we are providing opportunity for employment, we also must be mindful of the emotional development of the child to ride a motorbike for commercial purposes.

Mr Speaker, *pari passu*, this law will not stand alone. It will operate with other legislations and other enactments already in the country. So, I would persuade him to abandon it. If he had given us evidence, which could be the case, around exceptions, and then he said he did not travel global, and local too, he has not given us evidence that — let us not encourage it. It is just that the country has an unemployment crisis and we must all deal with it head on. These are not sufficient modes to handle the country's unemployment. But like it or not, as of today, there are many people earning their living out of it.

Mr Speaker, thank you.

Dr T. A. K. Mahama: Mr Speaker, I am guided, but I would give an example of why I said global. For example, in

Ethiopia, they allow 14. I would give you an example because we are making laws that would be—When I say global, the question is whether there are examples. In Vietnam, the age is 16. In North America, they are allowed from ages 16 to 19. In Australia, it is around age 15. So that is the point I am making — that when we are making laws, unless of course we have not reviewed this globally. This Bill is not only about commercial—The relevant provision talks about riding, not even commercial. Commercial riding is age 21. But to just ride a bicycle or to drive, it is saying that the person must be 18 and that is the point I am making. It is not only the commercial bit, but there are also private people who use this particular means.

Mr Speaker, in my village of Janga in the North East Region, as young as age 15, people begin to learn how to use motorbikes to go to the farm. Per this law, they will be committing an offence if they are found riding this motorbike and their age is 16. So that is a difficulty I have. And I was just thinking that —

Mr First Deputy Speaker: We accept your difficulty, but the whole world is listening to us. There are huge issues regarding child labour. So, I do not want Ghana's Parliament to be legislating, taking into contemplation that we are talking about commercial motor riding and we are reducing the age from 18 to 16 years. I believe we will be delving into an era of child labour. Hon Kabiru Mahama, do you agree with me?

Dr T. A. K. Mahama: Mr Speaker, I withdraw; let us make progress.

Mr First Deputy Speaker: Very well. Yes, Hon Jerry Ahmed Shaib?

Mr Jerry Ahmed Shaib: Mr Speaker, since he has abandoned it, I was just going to go on the tangent of even drivers' licences. What age grants one the mental capacity to — So, if it is 18, we cannot do 16. I think I should correct him on what he was talking about with reference to sex and consent, it is not 16, it is 18. Else, that would be defilement. So, for him, it is also very important.

Mr First Deputy Speaker: On that basis, he is right. Defilement is up to the age of 16 years. With consent or without consent, you are still guilty of defilement with age 16. I do not know whether the age has been increased to 18.

Mr Shaib: No, Mr Speaker, it is 16, which is correct.

Mr First Deputy Speaker: Yes.

Mr Shaib: But it also means that we all need to be careful and also the mindset of people.

Mr Speaker, we also need to be advised that we should not go for people aged 16.

Mr First Deputy Speaker: Very well.

Yes, Hon Stephen Amoah?

Dr Stephen Amoah: Mr Speaker, I think the lawyers in the House should do us a great deal of good by helping us. Because I know that the accepted age in

our country to allow one to be in any contract or commercial activity is 21. So, I think we need to have the — I am right. So, what are we doing? Are we talking about a child's age that we accept in entering commercial activity, for that matter a contract? Or are we considering other things? This is because I hear others saying 18. I am confused. If we accept that here, I am not a lawyer, I stand to be corrected. Are we then going to change what is in the law of contract in Ghana here because Parliament has done ABCD? I think the lawyers should help some of us. Because I am not a lawyer and I want that clarity.

Mr Speaker, thank you very much.

Mr First Deputy Speaker: Get the clarity, but let me use the opportunity to correct you. If you say the lawyers here should help, and you are also here as a legislator, then what you are saying indirectly is that this House will be a House for lawyers. You are not a lawyer, but you are also here to legislate.

Dr Amoah: Thank you, Mr Speaker.

Mr First Deputy Speaker: So, we must all come together to do the lawmaking, which is the core mandate of Parliament. So, I would use the opportunity to correct you.

Yes, Hon Dafeamekpor?

Mr Dafeamekpor: Mr Speaker, the Hon Member for Nhyiaeso raised a very important point regarding the age of contracting and the age of the ability to procure a licence to engage in a

commercial activity. So, it is a perspective that he has brought to bear on the discussions and I believe that we need to have regard to it. This is because by the provisions, at age 18, one would be licensed to engage in a commercial activity. When one engages in a commercial activity, they would be contracting with passengers to transport them from point A to B. So, it is a very interesting perspective which is noted. I believe a Legislative Instrument (L. I) will be brought to fine-tune those areas.

Mr First Deputy Speaker: Hon Members, I believe when we look at the parent Act, the situation will be clear for all of us. But the contracting age is 21. At what age can one get into employment for us to say this age should be 21? Is it not 18? So, why do we want this law to say otherwise?

4:10 p.m.

Hon Members, I am taking participating too much in the debate.

So, Dr Stephen Amoah, your proposal is to make it 21 instead of 18?

Dr Stephen Amoah: Mr Speaker, actually, it is not my proposal. I think we have a very clear opportunity to deal with this ambiguity and the higgledy-piggledy.

Mr Speaker, so my point is that there is a grey area for us to streamline this law to deal with any ambiguity going forward, because you made a good point that at the age of 18, a Ghanaian child at that age can enter into any employment. However, Contract Law also gives us

something contradicting that, that before one enters into that, one has to be 21.

So, the House will have to decide whether we need to stick to 21 or 18, and then go further to correct that ambiguity in our society so that one day somebody would not be punished undeservedly or something.

So, I am not proposing; I am raising an issue to be dealt with by the House so we can actually draw the curtains on this issue once and for all.

Thank you, Mr Speaker.

Mr Dafeamekpor: Mr Speaker, I agree with you. I believe what we should do is that we should have regard to amend the Contracts Act, 1960 (Act 25) to lower the threshold from the age of contracting at 21 to 18.

Mr First Deputy Speaker: Hon Members, the Contracts Act, 1960 (Act 25) refers to a specific activity. The Children's Act refers generally to the age at which a person can engage in employment. So, if we are confusing what is contained in the Contracts Act, 1960 (Act 25) with what is contained in the Children's Act, I think we have to go by what is contained in the Children's Act rather than going into the Contracts Act, 1960 (Act 25).

Yes, Dr Kabiru?

Dr Mahama: Mr Speaker, I abandoned that proposal. We ought to make progress, but we understand the absurdity that is being created —

Mr First Deputy Speaker: Well, for me, there is no absurdity.

Dr Mahama: So, once there is no absurdity, and I have abandoned my proposed amendment, we can make progress.

Mr First Deputy Speaker: Yes, that is why I think we should make progress on this particular matter.

Dr Amoah: Mr Speaker, not to debate what you said, but when it comes to employment, it is a legal contract per our laws. So, once there is — *[Interruption]*

Mr Speaker, my own people are disturbing me. If they are not careful, I will join them. *[Laughter]*

Mr Speaker, employment under our laws is fundamentally also part of a legal contract, and that is why I am talking about this ambiguity, that we need to do something —

Mr First Deputy Speaker: Well, for me, I do not see it as an ambiguity. In engaging in an employment, is one signing a specific contract as contemplated in the Contracts Act, 1960 (Act 25)—

Dr Amoah: Mr Speaker, per the laws, yes.

Mr First Deputy Speaker: For the sake of consistency, in section 66 of the existing law, which is the Road Traffic Act 2000 (Act 683). It says:

“Disqualification of persons under age.

A person is disqualified from holding or obtaining a licence to drive an invalid carriage,

- (a) If that person is under 18 years.
- (b) A motorcycle if that person is under 18 years.
- (c) A commercial vehicle if that person is under 25 years.
- (d) an agricultural tractor if that person...”

So, already, the 18 years is part of the existing law, and that particular provision in the existing law is not being brought before us to be amended. So, how do we amend the 18 years in the existing law to now read 21 years? That is what would rather bring the ambiguity.

Dr Amoah: Mr Speaker, I think the Labour Act is also here. The Labour Act, 2003 (Act 651), also defines employment as a contract. So, I think we have the laws conflicting with each other, and that is why we need to consider this.

Mr First Deputy Speaker: Dr Amoah, I do not want to go into educating you about the Labour Act, 2003 (Act 651). We have Contracts for Service and Contracts of Service.

Do you know the difference?

You say you are a student of law.

Dr Amoah: Mr Speaker, you may educate me.

Mr First Deputy Speaker: Well, you may see me later to educate you once you claim to be a student of law—
[Laughter]

So, Hon Members, that is why I am taking the trouble to draw your attention to section 65 of the existing law. So, if part of this law is being amended and the law is putting the age at 18, we cannot do otherwise.

Hon Members, on this note, I will put a question on clause 11.

I will direct the Drafters to put the “or” and “of” in their appropriate place.

Clause 11 ordered to stand part of the Bill.

Clause 12 — Section 92 of Act 683 amended.

Mr Mensah: Mr Speaker, I beg to move that the opening phrase, after substitution, *delete* “of 92 of” and *insert* “for Section 92 of”.

Question put and amendment agreed to.

Clause 12 as amended ordered to stand part of the Bill.

Clauses 13 and 14 ordered to stand part of the Bill.

The Long Title ordered to stand part of the Bill.

4:20 p.m.

Mr Dafeamekpor: Mr Speaker, may I invoke Order 171(1) and submit that we do a second consideration in respect of clause 4. Under clause 4 —

Mr First Deputy Speaker: Hon Member, we have not finished the Consideration Stage. Why do you take us to Second Consideration? If you are seeking my leave at this Consideration Stage to go back to a certain clause, I will grant you the leave, but not the Second Consideration. I was about to say we have come to the end of Consideration, when you arrested that. So, it means that the Bill is still under Consideration. So, you can seek my leave to take me back to that clause.

Mr Dafeamekpor: Thank you for your guidance. Mr Speaker, may I seek your leave for us to revisit Consideration? Under clause 4(3), which reads:

“Subject to subsection (1), a person shall not drive a motor vehicle with a child who is under the age of 18 years in the front or rear seat of the motor vehicle without the child wearing a seat belt.”

This is very clear, but if you read clause 4(2)(b), it states:

“A person shall not drive a motor vehicle with a child who ...

(b) is less than one hundred and forty-five centimetres tall and weighs less than thirty-six kilogrammes...”

Mr Speaker, I believe that the “properly restrained” will introduce an ambiguity. So, my proposal is that the drafters should adopt the language in clause 4(3) to bring clarity. Because if we say restrained, they can use a rope or any other thing. The seat belt is very clear. The intendment is properly conveyed there.

Mr First Deputy Speaker: Yes, if you look at the Bill further, there are provisions that deal with properly restraining a child. Yes. It seems I am holding brief for the Chairperson and the Minister. Please, take us to the section that talks about how to restrain a child in the Bill. Hon Majority Chief Whip, look at clause 4(5). It states:

“For the purposes of subsection (2), a child in the rear seat of a motor vehicle is properly restrained, if, an appropriate safety equipment designed for children in accordance with section 15, is used by the child to ensure that the child is seated, positioned and restrained to withstand the force and impact of a road crash in order to reduce the risk of injury and death.”

Mr Dafeamekpor: So, they introduced appropriate.

Mr First Deputy Speaker: Yes. That is why I am saying that if you look at the Bill, it has been taken care of. Hon Members, we have come to the end of the Consideration Stage of the Road Traffic (Amendment) Bill, 2025.

The Motion numbered 5?

MOTION

Suspension of Standing Order 172(1)

Minister for Transport (Mr Joseph Nikpe Bukari): Mr Speaker, I beg to move:

That notwithstanding the provision of Order 172(1) of the Standing Orders which requires that when a Bill has passed through the Consideration Stage, the third reading thereof shall not be taken until at least one sitting day has elapsed, the Motion for the Third Reading of the Road Traffic (Amendment) Bill, 2025 may be moved today.

Chairperson of the Committee (Mr Isaac Adjei Mensah): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: The Motion numbered 6. Minister for Transport?

BILL — THIRD READING

Road Traffic (Amendment) Bill, 2025

Minister for Transport (Mr Joseph Nikpe Bukari): Mr Speaker, I beg to move:

That the Road Traffic (Amendment) Bill, 2025 be now read the Third time.

Chairperson of the Committee (Mr Isaac Adjei Mensah): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

The Road Traffic (Amendment) Bill, 2025 — *read the Third time and passed.*
[Hear! Hear!]

Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, may I pray that we go back to the original *Order Paper* and take Motion numbered 49.

Mr First Deputy Speaker: Hon Majority Chief Whip, I even asked the Clerk to whisper to you. In the meantime, if you can take the item numbered 52 on the original *Order Paper*. We will do it, but we are just waiting for some information.

4:30 p.m.

Mr Dafeamekpor: Mr Speaker, in that case, we take the Motion numbered 52. Thank you.

Mr First Deputy Speaker: Hon Members, Virtual Assets Service Providers Bill, 2025 at Consideration Stage.

Ms Appiagyei: Thank you, Mr Speaker, we are in the line.

BILL — CONSIDERATION STAGE

VIRTUAL ASSETS SERVICE PROVIDERS BILL, 2025

[Resumption of Consideration from 10/12/2025]

Mr First Deputy Speaker: Hon Members, we ended on clause 25, so, we now move to clause 26.

Clause 26 to 33 ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, it is important to vote for the purposes of the record.

Clause 34 and 35 ordered to stand part of the Bill.

Clause 36 — Cyber Security Measures.

Mr John Darko: Mr Speaker, with respect, I was thinking that the submission of report should have some timeline. If you look at 36(b), it requires the service provider to submit a report to the relevant authority in the form and frequency determined by relevant regulatory authority. I suggest that we put a timeline, say six months or a year. So, in my rendition, instead of “frequency determined by relevant regulatory authority,” we as the representative of the people will put, for instance, 12 months interval. I suggest that instead of the frequency determined by relevant regulatory authority, we put one year or 12 months.

Mr First Deputy Speaker: Very well. Your suggestion is right, but if care is not taken, we may put a particular timeline and the regulatory authority will also put another timeline, and there will be conflict, because it is been subjected to another regulatory regime. So, it is better we leave it for the regulatory regime to deal with it, regarding the form, the nature and the time.

Nana Agyei Baffour Awuah: Mr Speaker, very respectfully. Following from where my Brother left off, in this case, to avoid the regulatory authority acting in an arbitrary manner, why do we not say that it shall by a statutory instrument publish the timelines, or there shall be publication in some form of the timelines, so that they will not act arbitrarily?

Mr First Deputy Speaker: The point that I am making is that that relevant regulatory authority is working under a particular law. Let me use the example of the Auditor General. Now, the Auditor-General works under a condition where the timeline for reporting are already spelled out. So, if you are subjecting it to that of the Auditor-General, and we are by this law setting another timeline, if our timeline is in conflict with that of the regulatory authority, which one will take primacy over the other? So, once it is referring it to another regulatory authority, it is better we leave with the determination, because the rendition says that “submit a cybersecurity report to the relevant regulatory authority in the form and frequency determined by the relevant regulatory authority”, and that regulatory

authority is also a body governed by law. So, once they are going to determine the frequency, if we, in making this law are determining the frequency, then we are not asking the regulatory authority to do any other thing. We cannot give power to the regulatory authority with one hand and take it with the other hand. So they will determine the frequency of the reports.

4:40 p.m.

Mr Baffour Awuah: Mr Speaker, very respectfully, that is not in dispute. But when the frequency is determined, there should be a publication of the frequency. So that people who interact with the relevant regulatory authority will, by notice, be well aware of the time, through a determined mode, that this is the frequency. That is all we are saying.

They have the right to determine the frequency, but how do people or the general public who interact with it, become aware of it? There should be a determined mode, so that there is no conflict as to what the frequency is, because the determination of the frequency is in itself the exercise of a discretionary power. So at the very least, we leave it with you, but there should be a predetermined mode of publication.

Mr First Deputy Speaker: Yes, let me hear from the Chairperson of the Committee first.

Mr Acheampong: Mr Speaker, I understand the position of my Colleagues. This very issue was raised during the consideration of the Bill. I

know under this Bill; it is not like one agency is managing it. Even if one registers a product, they can determine that it should be registered with the Bank of Ghana (BoG), the Securities and Exchange Commission (SEC) or another institution. So, if we put a timeline in this Bill, which institution is going to deal with it?

So you are right on point to raise this very issue. Let us leave it as it is. If it is the Bank of Ghana, they will take that decision, because they have their reporting timelines. If it is SEC, it also has its own reporting timelines, so at the end of the day, if one is under SEC, SEC will determine what one is supposed to do. These are some of the issues we deliberated on during the consideration of the Bill.

Mr Kwabena Okyere Darko-Mensah: Mr Speaker, I believe that if enough consultations were done, we should settle this matter, because we cannot leave it to the discretion of people. If we allow that to happen, there will be chaos in the system, and this is supposed to play a key role in managing our cyberspace. So, I believe that they should do proper consultation with all the key stakeholders who are going to use this Bill, and then the timelines should be inserted into what we are doing. It will be fair and better for Ghanaians.

Mr First Deputy Speaker: Except that — yes, Minister, let me hear you then.

Mr Thomas Nyarko Ampem: Mr Speaker, thank you.

Mr Speaker, I understand their concerns, but when we discussed it, we came to the conclusion that such details will be catered for in a regulation, so we intend that once this is passed, we will come up with a regulation to get those details to enhance the implementation.

Thank you.

Mr First Deputy Speaker: Hon Members, I believe strongly that the regulation will provide detailed timelines for the Securities and Exchange Commission. It will also detail that of the Bank of Ghana. But if in this law, we want to put all of them together and synchronise it, what will the regulation do? I believe we should leave it to the regulatory agencies to determine the interval, and it can find expression in the regulation that the Minister has the power to bring to this House, which will come under Article 11(7).

Clause 36 to 38 ordered to stand part of the Bill.

Clause 39 — Public disclosure requirements for issuance of virtual assets.

Mr First Deputy Speaker: Chairperson of the Committee?

Mr Darko: Mr Speaker, you may just have to help me, especially with Clause 39(2), which talks about material risk. It says, “a person who issues virtual assets shall publish a risk disclosure statement, and that includes a detailed description of material risk.” I know we have not gotten to the definition section.

I am just reading this. I was wondering if “material risk” is defined. If it is not defined, then, Mr Speaker, we may have to do that because it is a very important aspect of this to get people involved in this business. Just to bring to the attention of the Drafters, if “material risk” is not defined, we really need to define it. Otherwise, people may get themselves into trouble.

I am looking through it, but I cannot find it. But it is very important that material risk is defined.

Mr First Deputy Speaker: Hon Members, let us take note. If we get to the definition, and “material risk” has not been defined, then we provide a definition for it. That is his suggestion. Suggestion well taken. Keep it, and when we get to the definition, we will do the needful. If it is not used elsewhere, we can come back and define it under this section.

Good observation. Any further?

Clause 39 ordered to stand part of the Bill.

Clause 40 — Requirements for provision of virtual asset custody services.

Mr Darko: Mr Speaker, again, I am trying to understand, and I am not a finance person, so forgive me if I ask this question. Is “fiat currency” a term of art? Can the proposers help us?

Mr First Deputy Speaker: What provision are you referring to?

Mr Darko: Mr Speaker, I am looking at 40(d), where it talks about a fiat currency. I do not understand if it is a term of art or if it is defined. If it is defined in the session, then that helps me.

Mr First Deputy Speaker: So, we will go back to look at the definition.

Mr Acheampong: Mr Speaker, fiat is defined, and it is a legal tender. So if we go to the interpretation session at page 80, we will see that fiat currency means currency that is issued exclusively by the relevant body in a country or a government, and it is designated as a legal tender in the country of issuance through, among other things, government decree or law.

So it is defined, and it is a legal tender. It is like Bitcoin and Stablecoin.

4:50 p.m.

Mr First Deputy Speaker: So, Hon Darko, I refer you to page 80 of the Bill where in the second paragraph, fiat currency is duly defined. Your concern is already addressed in the Bill. Thank you.

Question put and amendment agreed to.

Clause 40 and 41 ordered to stand part of the Bill.

Clause 41 — Requirement for issuance and transfer of shares of virtual asset service provider.

Mr Haruna Iddrisu: Mr Speaker, firstly, the head note: Requirement for issuance and transfer of shares. Why do

you want to add a virtual asset service provider? We all know that this bill is about virtual asset service provider. Why do you want to add in the headnote? Why would the headnote not just read ‘Requirements for issuance and transfer of shares?’ Delete the rest of the words in the headnote. I so submit with your indulgence.

Mr Speaker, you must guide us. We are talking about transfer of shares. Transfer of shares is regulated by the Companies Act. I am asking for a copy of mine to relate the provisions here as to whether it sits in tandem with what our Companies code are, because this is not going to be ordinary. Once you get a body corporate with shares, everything about it is regulated by the Companies Act. Why would we not say ‘a person shall not acquire, dispose or transfer 5 per cent or more— Mr Speaker, they have even given 5 per cent, why?’

Even if one wants to transfer the whole shares or part of the shares, it is not regulated by law. Clause 41(1) reads,

“A person shall not acquire, dispose of or transfer five per cent or more of the outstanding shares in a virtual asset service provider without the prior approval, in writing, of the relevant regulatory authority.”

My concern will be that the Ministry of Finance should give us what is the worth of that 5 per cent. Mathematically, when you say 5 per cent, what is the worth of the 5 per cent? We cannot say that a person cannot transfer or dispose of — Mr Speaker, maybe we should even

qualify it: not less than or not more than. But if you just say 5 per, there is a difficulty there.

Thank you.

Mr Richard Acheampong: Mr Speaker, the Bill is the Virtual Asset Service Providers Bill. We have virtual assets and virtual asset service providers. This is giving us more emphasis on requirement for issuance and transfer of shares of virtual asset service providers. Therefore, if we do not include it, we may not know what we are talking about. We have virtual assets and service providers. This is dealing with service providers, not virtual assets alone. That is why we have added requirement for issuance and transfer of shares of virtual asset service providers. They are provided services. I do not think it will create any problem if we add virtual asset service providers. I think it is in order.

Mr First Deputy Speaker: Yes, but his request is in two-fold. One is that the transfer of shares is regulated by the Companies Act. The other one is why not stop at 'requirement for issuance of transfer of shares?'

Mr Acheampong: Mr Speaker, the Hon Member is not around to defend his amendment.

Mr First Deputy Speaker: Well, what I deduce is that the law is not prohibiting the transfer of shares. But when you are going to transfer more than 5 per cent, you need the prior approval, in writing, of the relevant regulatory authority. I believe today if a person

holds a banking licence and has a share in that bank, such a person does not just get up without approval and to transfer those shares.

Hon Member, I believe strongly before a person become a service provider in this particular industry, they will do some due diligence about the service provider. If they have done a due diligence about Mr Kojo Oppong Nkrumah that he is qualified to establish a company to provide these services, and he is a shareholder, and they have not done any due diligence about Mr Dzudzorli Gapkey, then Mr Kojo Oppong Nkrumah, without the regulatory authorities, then transfer shares to Mr Gapkey, it takes away the power of the regulatory agencies to also conduct due diligence about Mr Gakpey, whether he is eligible to hold more than 5 per cent shares or not. I believe that is what this particular provision is seeking.

Mr Kojo Oppong Nkrumah: Mr Speaker, thank you. In fact, I think you are spot on, but I want to draw the Minister's attention to recent developments in this industry, so that the policy consideration is looked at again. In the industry currently, a lot of the service providers are getting listed on the markets. How will this prior approval play out in terms of making us a competitive destination for those who want to do this business in Ghana, and be listed if they require prior approval, as against maybe notification. It is for your consideration, Hon Minister?

Mr Thomas Nyarko Ampem: Mr Speaker, I think I agree with Mr Kojo

Oppong Nkrumah. The contemplation here does not take into consideration listed companies, and so if we want to have a rendition that will capture that sense in addition to this, I think that would be— If we can couch it in a way that this does not apply to listed companies, then that will make sense.

5:00 p.m.

Nana Agyei Baffour Awuah: Mr Speaker, very respectfully, I make reference to clause 42(2), where it says that “where the virtual asset service provider is a partnership, a partnership interest shall be equivalent to shares in a company”. Mr Speaker, very respectfully, it is acceptable for approval to be taken prior to transfer of shares, because that is what regulators do.

However, when you look at this particular provision, it seems to be changing the status of partnership, as far as virtual assets are concerned, to the extent that it says that it will be equivalent to shares in a company. Those things are within the purview of the Companies Act, 2019 (Act 992). The Companies Act, 2019 (Act 992) would define partnership, state its features, and so on and so forth. By this, there is the risk of a clash between this Act and the Companies Act, 2019 (Act 992). So, if the Minister could help us understand why this provision is being made, and the effect of it.

Mr First Deputy Speaker: I do not see the problem that you are indicating. We are talking about transfer of shares. So here, a company having shares can

provide virtual asset services. A partnership can also provide virtual asset services. Probably, a sole proprietor may also provide virtual asset services.

Because of the background check, they are saying that you cannot transfer five per cent of your shares without prior consent. The question, therefore, is what happens to the sole proprietorship and partnership? That is why this rendition is saying that for the purposes of transfer of shares, or transfer of interest, your interest as a partnership or as a sole proprietor, must be treated as if it is shares. So that when you are going to transfer it, you must also go through these requirements.

So, they are not saying that, by law, your interest as a sole proprietor is the same as your interest as a share, or your interest in partnership is the same. But for the purposes of this law, regarding a transfer, it must be treated as such. So, I do not see this conflicting with the Companies Act, 2019 (Act 992).

Mr Baffour Awuah: Mr Speaker, the rendition here does not say that because of the transfer, for which reason it is being treated as being equivalent to shares— Mr Speaker, partnership is partnership; shareholding is shareholding. If they think that for the purpose of transfer, it should be equivalent, then they should say so, that it is because of the purpose of the transfer. But here, it says that where the virtual assets provider is a partnership, a partnership interest shall be equivalent to shares in a company. Mr Speaker, we interpret an Act as a whole.

Mr First Deputy Speaker: Yes, so you are hitting the nail on the head. Read the provision from the marginal notes. Read clause 42(1) and (2) and see what interpretation you will put on it if you do not take clause 42(2) in isolation.

Mr Baffour Awuah: Mr Speaker, I am not taking clause 42(2) in isolation. If I have to read this Bill as a whole, then I am not looking at it within just the context of clause 42. It would look as though we are talking about partnership in terms of virtual assets. Partnership in terms of virtual assets in the context of this Bill, will be that when it comes to partnership in the context of virtual assets, it is equivalent to shares.

Mr First Deputy Speaker: No. Hon Member, let me take you through it. You have stated the principle of law rightly, that you must read the provision as a whole, which I agree with. But let us start from the marginal notes. “Requirement for issuance and transfer of shares of virtual assets service provider”. Everything under this section should be read in context of issuance and transfer of shares, but no other. Then (1) is saying that:

“A person shall not acquire, dispose of, or transfer five per cent or more of the outstanding shares in a virtual assets service provider without the prior approval, in writing, of the relevant regulatory authority.”

So still on the issuance and transfer, they are saying that “Where the virtual assets service provider is a partnership, a partnership interest shall be equivalent to shares in the company.” Meaning that for

the purposes of transferring your interest as a partner, that interest must be equivalent, not the same, for the purposes of issuance and transfer. That is the meaning that you can place on it. But if you take it in isolation, contrary to the principle that you must read the provision as a whole, you will get a meaning different from what you should be putting on it.

So, this one is for the purposes of issuance and transfer that your partnership interest must be treated as equivalent. The word used is “equivalent”.

Mr Baffour Awuah: Mr Speaker, respectfully, to assist you and for better elucidation, you would, in the circumstance, have to consider making sure that for the purpose of the records of the virtual asset regulator, the partnership interest would then have to be stated as the equivalent of shares first so that in transferring it—because it is not here.

Mr First Deputy Speaker: If you look at the rendition, it says that “Where the virtual asset service provider is a partnership, a partnership interest shall be equivalent.”. That is in the rendition.

Mr Baffour Awuah: Mr Speaker, so when we look at the title, it is about issuance and transfer. So, at what point would that interest be stated? Is it at the point of transfer of shares? Is it at the point of issuance of licence? It has to be clear to avoid ambiguity.

Mr First Deputy Speaker: You see, for me, where there is no ambiguity, we

should not try to create one. The law generally is saying that if you have a share in say, Hon Shaib's Company, you cannot transfer five per cent or more to any other person without a prior written approval of the regulatory authorities. Now, the words used is, that is the normal way, but clause 42(2) says "Where the virtual asset service provider is a partnership..." other than a company, then for the purposes of the issuance and the transfer of shares, the interest of the partner must be equivalent to shares. The interest that we are going to transfer must be equivalent. I do not see this violating the Companies Act, 2019 (Act 992). I am not getting you. If I get you, I will concede.

Mr Baffour Awuah: Mr Speaker, the partnership is registered at the Registrar General's Department, that is where it is stated. At that point, the Registrar General's Department is regulated by the Companies Act, 2019 (Act 992). It does not require it to state that the partnership will be equivalent to shares there.

Mr First Deputy Speaker: No.

Mr Baffour Awuah: Mr Speaker, if you may allow me, there will be clarity. So, a person has gone to the Registrar General's Department, which is a different agency, and registered their partnership there. There, it is not the equivalent of shares. Now, the person is coming to the regulator. At what point is the regulator going to state that the partnership is now shares, or equivalent to shares of a certain amount? At what point? This must state it, so that from the

outset, we know that the partnership is of X amount or value.

5:10 p.m.

Mr First Deputy Speaker: No. The law is making provision, generally, on how a share or interest in the company is supposed—Hon Member, if you would listen, I think we can resolve this particular problem. Let us say, a share is a pencil and interest in the company is a pen. The pen and the pencil are two different things in law.

Now, the law says, for a person to transfer a pencil to another person, one must comply with "ABCD". Then, where, for the purposes of that particular transfer, the transfer is pen, then, the pen must be transferred as if it is a pencil. That is all that the provision is talking about. So, that does not mean that they are saying the pen is a pencil.

Mr Baffour Awuah: Mr Speaker, by your own analogy, which is a very beautiful one, until the transfer has taken place, the pencil will not be transferred as if it is a pencil, right?

Mr First Deputy Speaker: Yes.

Mr Baffour Awuah: Why would we not we make provision in this Act that, upon being given the licence, one's pen will be the equivalent of pencil? Rather than we waiting for the transfer.

Mr First Deputy Speaker: No. That is why I am saying that marginal note must aid interpretation. The marginal note is talking about nothing but issuance

or transfer. So, we cannot talk about any other thing apart from any issue relating to a transfer or issuance. Do you understand? Then, the law is that, for one to transfer or issue about five per cent or more, one must comply. One must have a prior approval of the regulatory authorities.

Now, the law contemplates a situation where it is not only a shareholder or a company by shares that will be operating as a service provider. So, now they are saying that, if one is a sole proprietor or a partnership and for the purposes of transfer of that one's interest in the partnership, one must also have a prior consent of the authority as if the person is transferring shares. Yes, Hon Member?

Mr John Darko: Thank you very much, Mr Speaker.

From the arguments and in your view, let us say if a person is transferring—

Mr First Deputy Speaker: Hon Members, I urgently have to suspend to attend to something very urgent. I would be back; I would not take more than five minutes. If you knew the urgency involved, you would not be upstanding asking us to conclude. That is the reason people keep coming in and going out.

Thank you very much.

5:14 p.m. — *Sitting suspended.*

5:20 p.m. — *Sitting resumed.*

Mr First Deputy Speaker: Hon Members, welcome back.

Yes, Hon John Darko, you were on the floor.

Mr Darko: Mr Speaker, thank you very much. My difficulty was how we are going to classify the percentage of the partnership if we are going to compare 42(1) and (2), especially when at the Registrar General's Department, that division is not done. I think that, we have to look at this carefully. So, if you do not mind, if you can step it down so we look at it later, I think that it will do us a lot of good than bad.

Mr First Deputy Speaker: Hon Members, let us look at it this way; where the virtual asset service provider is a partnership, for the purposes of issuance or transfer, a partnership interest shall be equivalent to shares in a company.

Does it make it clearer?

Mr Darko: Mr Speaker, so do you have a new rendition?

Mr First Deputy Speaker: Yes. To make it clearer that for the purposes of issuance or transfer—

Mr Baffour Awuah: Mr Speaker, respectfully, we risk a protracted banter, which may not be good at this point. I am pleading with you.

Mr First Deputy Speaker: So, what will be your rendition?

Mr Baffour Awuah: Mr Speaker, respectfully, you are a better drafter than I am.

Mr First Deputy Speaker: No, you should have a rendition.

Mr Baffour Awuah: Mr Speaker, I am pleading with you. If we can stand it down to discuss this in Conclave. Perhaps, I may learn a better way of rendering it.

Mr First Deputy Speaker: Hon Member, if you do not have a rendition, then I intend to put the question. Yes, Hon Richard Acheampong?

Mr Acheampong: Mr Speaker, like you said, if my Colleague has a rendition, he can propose it, so that we will consider it. If not, then we would move forward. If he has any proposal, he may bring it up.

Mr First Deputy Speaker: My thinking is that if you link it with the headnote, then it is clear. But if you take out the headnote, there will be an ambiguity. So, we can bring whatever is in the headnote, issuance or transfer, so that it will be clear that where the virtual asset provider is a partnership, for the purposes of issuance or transfer of interest, then the partnership interest shall be equivalent to shares in a company. So, if you are not going to transfer your interest, then it stays as partnership. But so long as you want to transfer your interest, it must be treated as shares, so that you also go through the regulatory regime of getting a prior approval before you can transfer.

Mr Darko: Mr Speaker, if we look at 42, there is a requirement of 5 per cent or more, so that if it is less than 5 per cent, then the prior approval will not be necessary. So, if, in the opinion of the person transferring the partnership, he is transferring 4 per cent, does the prior approval come in?

Mr First Deputy Speaker: Yes.

Mr Darko: Mr Speaker, 42(1) only requires prior approval when you are doing 5 per cent or more. But in this particular case, when it comes to 41(2), how does one know that they are transferring more than 5 per cent to require the prior approval?

Mr First Deputy Speaker: Yes. So, if I have a partnership of 40-60, how on earth would the 5 per cent of my interest not be determined? For instance, partnership can be 2 or more. Now I have 40 per cent, and you, Mr John Darko, have 60 per cent. I have decided to give 20 per cent of my interest. Is that 20 per cent of my interest, not more than 5 per cent? So, it is about the calculation of the interest that you hold in the entity. My understanding of all this is that you need prior approval, whether it is partnership or sole proprietorship, when you are going to cede more than 5 per cent. That is the understanding that I am getting.

That is why I am not getting the ambiguity created by this particular provision. That is why if they say cedi equivalent of a dollar, I will not take it to mean that cedi is equal to a dollar. I would not take the cedi to be the same as the dollar if we are talking about

equivalence and equivalence is used in the rendition. So, the interpretation that interest in partnership is different from shares, I agree perfectly but it is only for the purposes of transfer of that particular interest that it will be treated as if it is shares.

Question put and amendment agreed to.

Clause 42 as amended ordered to stand part of the Bill.

Clause 43 — Application for Sandbox Licence

Mr First Deputy Speaker: Chairman of the Committee?

Mr Acheampong: Mr Speaker, we do not have any amendments.

Mr First Deputy Speaker: It is for the consideration of the House, Hon Members, any proposed amendments?

Mr Darko: Mr Speaker, forgive me if I keep going back to this definition. Because this is a very new area that we are venturing in. I have looked at the definition of sandbox licence and the definition says as defined in section—

Mr First Deputy Speaker: Which provision are you talking about?

Mr Darko: Mr Speaker, 43.

Mr First Deputy Speaker: We have 43(1), 43(2), 43(3), 43(4), 43(5), 43(6).

Mr Darko: The title, application for sandbox licence.

Mr First Deputy Speaker: Very well.

Mr Darko: Mr Speaker, I am saying that the sandbox licence, I needed to get the definition. If we look at it, it defines it as a licence that is granted in accordance with section 46. I know we are not there yet but if we look at section 46, it does not really define it. It just tells us what it is. If we look at it very carefully, it is just saying that a holder of sandbox licence shall ensure that senior officers and trustees are fit and proper persons and that the beneficiary owners and shareholders of licence are fit and proper persons. That really, in my view — yes, we will come there but because we are considering 43, Leader, if you do not mind, I am just saying that because this is where the whole sandbox licence begins, so, if we really want to do anything, we need to start the definition from here and we need to be very clear in our minds what exactly sandbox licence is.

Mr First Deputy Speaker: Again, Hon John Darko, I would ask you to hold it. Then when we get to the definition for the sandbox licence, then you better the definition. Do you understand? Because we are now at clause 43. We cannot go and improve upon the definition before we come back to 43. So, take note of it and when we get to the definition, then you can raise the issue. Any more on clause 43?

Clause 43 to 56 ordered to stand part of the Bill.

5:31 p.m.

Mr First Deputy Speaker: Hon Members, I must state that the committee does not have proposed amendments because after the Committee's meeting and amendments were proposed, those amendments were referred to the Attorney-General, and they integrated all into the Bill, which was withdrawn and relayed. That is why the Committee does not have any amendments, because the amendments were integrated into the Bill.

Clause 57 — Right of appeal.

Dr T. A. K. Mahama: Mr Speaker, clause 57(2), I recall we proposed that the notice period should be aligned with the provision under the State Proceedings Act. Here, it has been stated that they shall be given a 21-day prior notice, but Mr Speaker, the relevant Act says that it should be within 30 days, and the proposal of the Committee was to the effect that they should try to align the notice to that. I do not know whether the Hon Minister has an explanation for why they are keeping it at a 21-day period instead of the 30-day period. I just need an explanation, because that was the proposal at the committee level.

Mr First Deputy Speaker: Yes, Hon Chairperson of the Committee?

Mr Acheampong: Mr Speaker, I could not follow what my Colleague was trying to address. If he could repeat it.

Mr First Deputy Speaker: The long and short of it is that at the notice period of 21 days, the Committee has agreed otherwise, but it is still here as 21 days.

Hon Member, is that what you are saying?

Dr T. A. K. Mahama: Yes, Mr Speaker.

Mr Acheampong: Mr Speaker, I was with him at the Committee meeting. I do not want to argue with him, so we can flag it, and when the Hon Minister comes around, we would see if maybe it is an oversight, and then we can get back to the Drafters to do what is right.

5:40 p.m.

Mr First Deputy Speaker: Well, yes, if I am a service provider, this will be in my interest, rather than giving a long period to regulatory authorities. Because you have taken a decision against me. It is in my interest to get you to review your decision as early as possible. So, this favours the service providers more than the regulatory authorities. Why should the regulatory authorities be given a longer period to review their decision in order to avoid court action?

Dr T. A. K. Mahama: Mr Speaker, I agree that the provision is to the advantage of the service provider, and to that extent, a service provider will be happy. But we also reckon that action against the relevant authority is an action against the state, in this case, the Bank of

Ghana or Securities and Exchange Commission (SEC). Because there is a prevailing law that says that if you want to commence an action against the state, the person must serve notice to the Attorney-General or the agency concerned, and the notice period is 30 days. We just want the harmony of our laws, so that in one breath, we would not have—

Mr First Deputy Speaker: Very well. The point is well made. I would direct the drafters to cross-check the notice period in the State Proceedings Act, 1998 (Act 555) and do the needful regarding the number of days that the notice of intention to appeal should be given.

Dr T. A. K. Mahama: Mr Speaker, I remember clearly that it was about section 20 of the State Proceedings Act, 1998 (Act 555).

Mr First Deputy Speaker: Yes. So, accordingly, I direct them to do so.

Clause 57 to 61 ordered to stand part of the Bill

Clause 62 — Setting Aside Pre-receivership Transactions.

Mr Darko: Mr Speaker, if you look at clause 62(1), it gives the receiver the power to set aside some transaction within one year. But if you look clause 62(1)(d), it talks about a transaction based on forged or fraudulent documents. I believe that we should not give crime an expiry date because if we keep it this way and the receiver finds

this fraud out after one year and decides to set it aside, somebody can validly challenge this in court. So, I will propose that when it comes to this, especially clause 59, we take out the one-year period and make it open so that the receiver can, at any time, when he discovers fraud or forged transactions, set it aside.

Mr First Deputy Speaker: Hon Member, generally, forgery or fraud is a vitiating factor. So, irrespective of the period within which the decision is taken, it can always be challenged in court. This provision will not be a hindrance to anybody having access to justice. That being the case, what is the actual point about clause 62(d)?

Mr Darko: Mr Speaker, I think my point is very clear.

Mr First Deputy Speaker: Clause 62(d) and (e), states:

- “(d) a transaction based on a forged or fraudulent document which the virtual asset service provider has executed to the detriment of customers and creditors; and
- (e) any act done with the intention of all the parties involved to withhold assets from customers and creditors of the virtual asset service provider, or otherwise impair their rights.”

Mr Darko: Mr Speaker, I am saying that if you look at clause 62(1)—Because (a), (b), (c), and (d) refer to clause 62(1) which states:

“(1) A receiver appointed under section 59 may, within one year after the appointment of the receiver, set aside the following transactions...”

My point was that if we put this time limit on the receiver, it may hinder the receiver in dealing with forged or fraudulent documents. And I am saying that since these do not have an expiry date, if we put this time restraint on the receiver, somebody may successfully challenge the receiver if the receiver brings an action to set aside fraudulent activity after one year. That was the point I was making.

Mr First Deputy Speaker: So, your issue is about the one-year deadline regarding fraud?

Mr Darko: Exactly, Mr Speaker.

Mr First Deputy Speaker: So, what period do we give?

Mr Darko: Mr Speaker, I believe that it should be left open so that any time the receiver finds any fraudulent deal, the receiver may be able to bring an action against the person who caused the fraud.

Mr First Deputy Speaker: Hon Member, with the subject matter that we are talking about, I see this provision as getting the receiver to act timeously. If it is left open, by the time a decision is taken by the receiver, particularly in the case of compromise, the subject matter will no longer be there. So, the period here is imposing an obligation on the receiver to act. But it is not saying that

beyond that one year, an action, properly speaking, will become statutorily bad.

Mr Darko: Mr Speaker, if we are going by your explanation, which is very sound, then I believe that the rendition should be that “the receiver shall”, and then, even limit the time. If it takes a longer period, the person may run away, so we should limit the one-year period, and this provision should be mandatory. It should be “shall” instead of “may”. That is what I would suggest.

Mr First Deputy Speaker: Very well. The proposal is that it should be mandatory on the receiver to take steps in these areas within one year.

Mr Acheampong: Mr Speaker, I do share the concern of my Colleague, but let us take the financial sector cleanup as an example. We started by anticipating to spend some GHC15 billion, but we ended up spending GHC25 billion.

5:51 p.m.

The last report that we got from the Minister for Finance, GHC33 billion, and even in the 2026 Budget, he is proposing about GHC3 billion. The accounts of many of the financial institutions have not been validated. So almost every day new issues come up. If we do not do a proper reconciliation and it is tied to “shall” one year—What if after the one year, other proposals come? Other institutions will come with their own information that their accounts have not been validated, and that the state is owing them, so let us be flexible with this; “may”, within one year, after one

year, if there are other issues, the receiver can still deal with those issues. So, I think we should be flexible by not restricting ourselves to “shall”. If we say “shall” within one year, what are we going to do beyond that?

Mr Ampem — *rose* —

Mr First Deputy Speaker: Hon John Darko, what will be your proposal?

Mr Ampem: Mr Speaker, if I heard him right, his problem was not mainly about the “may or shall”. His challenge was the time limit of within one year, but I want him to look at it this way. A receiver appointed under Section 59 may set aside the following transactions and recover the assets from the transferee or other beneficiary of the transaction. And this must be done within one year. This is placing time constraint on the receiver to act timeously, instead of allowing him any time to do this. So, within the one-year period, is referring to the time within which the receiver must act. This is rather in the interest of the customer who may have been defrauded or any other, such that we do not wait long for the action to be taken. So that within one year is actually in the interest of the customers.

Thank you.

Mr Darko: Mr Speaker, I will abandon it.

Mr First Deputy Speaker: Very well.

Clauses 62 and 63 ordered to stand part of the Bill.

Clause 64 — Determination of Receivership.

Mr Darko: Mr Speaker, thank you very much. I am just looking at 64(3), and if the Minister may help us. After the termination of receivership, the law requires a receiver—It says:

“A receiver may abandon the sale of an asset of a virtual asset provider or donate the asset to a charitable institution that promotes public health...”

Now, I am trying to understand, if the receiver abandons the sale, what happens to the asset?

Mr Acheampong: Mr Speaker, this issue came up at the Committee meeting. We do not use good money to chase bad money. If the value of asset is not worth the investment one is making to chase the asset, they should abandon it. Why does one spend good money to chase bad money?

Mr First Deputy Speaker: Hon Members, three conditions are spelled out based on which the item could be abandoned. It is not automatic abandonment. It says:

- “(a) if the asset is of immaterial value;
- (b) the receiver is unable to sell the assets; and
- (c) the cost of sale of the assets would exceed the amount expected to be received.”

So, these are the conditions based on which the receiver is urged by law to abandon.

Yes, Hon Deputy Minister for Finance?

Mr Ampem: Mr Speaker, I just want to buttress the point that it may cost us more to dispose or to act, and so, if it is going to cost us more to do it, why do it? So, we abandon it, and that is the essence of this provision.

Mr First Deputy Speaker: Or you give it to charity.

Mr Darko: Thank you, Mr Speaker. I think that is well explained.

Clause 64 to 71 ordered to stand part of the Bill.

Clause 72 — Regulations

Dr T. A. K. Mahama: Mr Speaker, with clause 72, an issue about the use of “may” came up. We are talking about regulations, there was this proposal, it might not have been carried through, that we should change that to “shall” so that it would be mandatory. In fact, there was another proposal that we should even provide a time frame within which there would be regulations brought to this Parliament in respect of putting to effect this particular instrument. So, I would propose that, even without a timeline or a time period, we should change the word “may” to “shall” so that the Minister will be bound, because it is through the regulations that we can have the Bill effectively implemented.

6:01 p.m.

Mr First Deputy Speaker: Very well. Yes, Chairman of the Committee.

Mr Acheampong: Mr Speaker, I think you can guide us on this subject because you have raised it several times on the Floor. And after the passage of the Bill, the Ministers do not come back to the House; they do not even bring the drafters.

Mr First Deputy Speaker: Yes, so I accordingly direct the drafters to use the recent agreed rendition by this House.

Mr Darko: Mr Speaker, I do not know whether the agreed rendition also has this provision “on the advice of the relevant regulatory authority”. Must it always be the case that the Minister has to act on the advice?

Mr First Deputy Speaker: Yes, sometimes we say “in consultation with the Board” or “by the advice of”. It is always in the rendition. Where the issue is not dealing with any regulatory authority or Board, then we just say the Minister may, within one year, make regulations to cover A, B, C or D. But mostly, the Minister may, on the advice, or the Minister may, in consultation with, make the regulation. All those things are contained in the recent rendition agreed upon by this House.

Clause 72 ordered to stand part of the Bill.

Clause 73 — Interpretation.

Mr First Deputy Speaker: Hon Members, we look at the interpretation page by page. Page 77, 78, 79— Yes, Hon Jerry Ahmed.

Mr Jerry Ahmed Shaib: Mr Speaker, respectfully, I am not sure whether we still go by the Bureau of National Investigation (BNI) under (r). I thought it is now the National Intelligence Bureau (NIB).

Mr First Deputy Speaker: It is now NIB, not BNI. The draft person will be directed to use the right terminology. We have done the law. Use what is contained in the law.

Page 80, 81, 82—

Hon Members, there was an issue relating to sandbox licence. Instead of saying “sandbox licence” means a licence granted in accordance with section 46, the suggestion is to beef it up to say what a sandbox licence really means in the context of section 46.

So I will accordingly direct the drafters to provide the appropriate rendition.

Page, 83,84 —

Mr Darko: Mr Speaker, if you do not mind, I requested that we define “material risk” in the definition section.

Mr First Deputy Speaker: Very well. I will order the drafters to provide the definition, accordingly or appropriately. If it should feature in the clause, it should be there. If it should be

in the definition column, it should be there.

Mr Ampem: Mr Speaker, I have received a proposed definition for material risk.

Mr First Deputy Speaker: Yes, you can suggest it to the drafters, and they will put it there for us.

Clauses 73 and 74 ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, we shall consider the schedule page by page. I will accordingly direct the drafters to check the clause references very well.

The Schedule ordered to stand part of the Bill.

The Long Title ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, this brings us to the end of the consideration of the Virtual Asset Service Providers Bill, 2025.

Majority Leader, any indication?

Mr Mahama Ayariga: Mr Speaker, let me congratulate Members on diligently working to conclude consideration of the Bill. I know we are a bit tired, but I want to appeal for us to take the visa waiver agreements, the item numbered 14.

6:11 p.m.

Mr First Deputy Speaker: Hon Member, the item numbered 13 at page 12 of the *Order Paper*.

Yes?

MOTIONS

Suspension of Standing Order 104(1)

Vice Chairperson of the Committee (Mr Cletus Seidu Dapilah) *on behalf of Chairperson of the Committee:* Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a Motion shall not be debated until at least two sitting days have elapsed after the notice to move the motion is given, the Motion for the adoption of the Report of the Committee on Foreign Affairs and Regional Integration on the Agreement between the Government of the Republic of Ghana represented by the Ministry of Foreign Affairs) and the Government of the Republic of Angola on the Waiver of Visa Requirements for Holders of Diplomatic and Service Passports may be *moved* today.

Deputy Ranking Member of the Committee (Mr Nana Asafo-Adjei Ayeh): Mr Speaker, I rise to second the Motion. Thank you.

Question put and Motion agreed to.

Resolve accordingly.

Mr First Deputy Speaker: Now, let us move to the substantive Motion, the item numbered 14.

Waiver of Visa Requirement Agreement between Government of Ghana and Government of Angola

Vice Chairperson of the Committee (Mr Cletus Seidu Dapilah) *on behalf of Chairperson of the Committee:* Mr Speaker, I beg to *move*:

That this honourable House adopts Report of the Committee on Foreign Affairs and Regional Integration on the Agreement between the Government of the Republic of Ghana represented by the Ministry of Foreign Affairs) and the Government of the Republic of Angola on the Waiver of Visa Requirements for Holders of Diplomatic and Service Passports.

Mr Speaker, in moving the Motion, I beg to present the Committee's Report. I ask that *Hansard* captures the Report as read in its entirety.

Introduction

Pursuant to Article 75(2) of the 1992 Constitution, the Hon Minister for Foreign Affairs laid before Parliament, the under-listed Agreements on Wednesday, 3rd December, 2025:

- (i) Agreement between the Government of the Republic of Ghana and the Government of the Democratic Republic of Algeria on the Waiver of Visa;

(ii) Requirements for Holders of Diplomatic and Service Passports;

(iii) Agreement between the Government of the Republic of Ghana and the Government of the Republic of Angola on the Waiver of Visa Requirements for Holders of Diplomatic and Service Passports; and

(iv) Agreement between the Government of the Republic of Ghana and the Government of the Republic of Serbia on the Abolition of Visas for Holders of Diplomatic and Official (Services) Passports.

The Rt Hon Speaker accordingly referred the Agreement to the Committee on Foreign Affairs and Regional Integration for consideration and report, in accordance with Order 245 of the Standing Orders of the House.

Deliberations

The Committee met with the Hon Minister for Foreign Affairs, the Chief Director of the Ministry and other senior officials from the Ministry and deliberated on the Agreements. The Committee extends its appreciation to the Hon Minister and his team for availing themselves and contributing meaningfully to the deliberations.

Reference Documents

The Committee relied on the following documents in its deliberations:

- a. The 1992 Constitution of the Republic of Ghana;
- b. The Standing Orders of the Parliament of Ghana;
- c. The Agreements; and
- d. The Cabinet Memoranda with Executive Approval.

The Agreements

The Agreements have standard provisions with some variations in account of peculiar requirements of specific Parties. Key provisions of the Agreements include:

- (i) **Visa Exemption:** Diplomats and officials from either party can spend up to 90 days within a six-month period without a visa. For stays beyond 90 days, they must apply for the necessary immigration permits;
- (ii) **Border Control Compliance:** Diplomats must use approved ports of entry and adhere to the host country's border control laws;
- (iii) **Abrogation Clause:** Either party may suspend or terminate the agreement in part or entirely for reasons of national security, public safety, or public order; and
- (iv) **Refusal of Entry:** Both parties retain the right to refuse entry to any diplomat they deem unsuitable or undesirable (*persona non grata*).

Observations

The Committee made the following key observations during its deliberations:

Compliance with the 1992 Constitution of the Republic of Ghana

The Committee observed that the ratification of the Agreements is in full compliance with the 1992 Constitution, particularly Article 75, which governs the execution, approval, and ratification of international agreements. The Committee is satisfied that all constitutional procedures have been duly followed and that the Agreement aligns with Ghana's broader foreign policy objectives aimed at advancing national development through strengthened bilateral and continental cooperation.

Financial Impact

The Committee noted that visa fees represent one of the sources of internally generated funds (IGF) of the Ministry and therefore sought clarification on the impact of the implementation of the Agreements on the revenues of the Ministry. The Committee was informed that there are no immediate financial costs or revenue losses anticipated from the implementation of these Agreements, as the visa exemption applies exclusively to holders of Diplomatic and Official/Service Passports, whose numbers are limited and who do not constitute a significant source of visa revenue. Thus, there would be no direct revenue losses

associated with the implementation of the Agreements.

Duration of Stay

The Committee also noted that the Agreements allow Diplomats or Officials to enter and spend up to ninety (90) days within a six-month period (180 calendar days) from the date of first entry into the concerned country without a visa. The Committee was further informed that beyond the 90 days, affected persons are required to obtain the requisite immigration permit for their continuous stay, exit or entry.

Conclusion and Recommendation

The Committee, having thoroughly considered the Agreements, finds that the Agreements are consistent with Ghana's constitutional and legal requirements, supports Ghana's foreign policy objectives, enhances bilateral cooperation, improves official mobility and operational efficiency, carries minimal financial risk; and offers significant long-term socio-economic benefits.

The Committee therefore recommends to the House to adopt this Report and approve, by Resolution, the ratification of the Agreements pursuant to Article 75(2)(b) of the 1992 Constitution.

Deputy Ranking Member of the Committee (Mr Nana Asafo-Adjei Ayeh): Mr Speaker, I beg to second the Motion.

Mr Speaker, your Committee did a very good job by considering the very important and salient issues that need to be looked at. One, the abrogation clause was considered. At any point in time, any of the countries can abrogate it.

We also looked at the refusal of entry. Even though there is a visa waiver agreement, whenever each of the countries feels that there is a problem with any particular traveller, the country holds the right to refuse the entry to that particular traveller.

We also looked at the financial impact, which is key. Even though we are going to waive off some money, it is important that the financial impact is looked at, which would have a toll on the revenue. The benefit that these waivers are going to give us goes beyond the financial impact, and your Hon Members considered that.

We also looked at the duration of stay, which is standard, 90 days for each member.

Mr Speaker, with these few words, I want to thank you and second the Motion. Thank you.

Question proposed.

Question put and Motion agree to.

Mr First Deputy Speaker: Hon Members, consequential Resolution, item number 15.

RESOLUTION

Waiver of Visa Requirement Agreement between Government of Ghana and Government of Angola

Deputy Minister for Foreign Affairs (Mr James Gyakyé Quayson) (MP): Mr Speaker, I beg to move:

WHEREAS by the provisions of Article 75 of the Constitution any treaty, agreement, or convention executed by or under the Authority of the President in the name of Ghana is made subject to ratification either by an Act of Parliament or by a Resolution of Parliament supported by the votes of more than one-half of all the Members of Parliament.

IN ACCORDANCE with the said Article 75 of the Constitution the President has caused to be laid before Parliament through the Minister responsible for Foreign Affairs, the Agreement between the Government of the Republic of Ghana represented by the Ministry of Foreign Affairs) and the Government of the Republic of Angola on the Waiver of Visa Requirements for Holders of Diplomatic and Service Passports.

NOW THEREFORE, this honourable House hereby resolves to ratify the said Agreement between the Government of the Republic of Ghana represented by the Ministry of Foreign Affairs) and the Government of the Republic of Angola on the Waiver of Visa Requirements for

Holders of Diplomatic and Service Passports.

Vice Chairperson of the Committee (Mr Cletus Seidu Dapilah): Mr Speaker, I second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: Yes, Hon Majority Leader?

Mr Mahama Ayariga: Mr Speaker, the item numbered 16—It is not read?

Suspension of Standing Order 104(1)

Vice Chairperson of the Committee (Mr Cletus Seidu Dapilah) On behalf of the Chairperson of the Committee: Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a motion shall not be debated until at least two sitting days have elapsed after the notice to move the motion is given, the motion for the adoption of the Report of the Committee on Foreign Affairs and Regional Integration on the Agreement between the Government of the Republic of Ghana represented by the Ministry of Foreign Affairs) and the Government of the Republic of Serbia on the Abolition of Visa Requirements for Holders of Diplomatic and Official (Service) Passports may be moved today.

Ms Zuwera Mohammed Ibrahimah: Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

6:21 p.m.

Agreement between Ghana and Serbia on the Abolition of Visa Requirement for Diplomatic and Official (Service) Passport Holders

Vice Chairperson of the Committee (Mr Cletus Seidu Dapilah) on behalf of the Chairperson of the Committee: Mr Speaker, I beg to *move*:

That this honourable House adopts Report of the Committee on Foreign Affairs and Regional Integration on the Agreement between the Government of the Republic of Ghana represented by the Ministry of Foreign Affairs) and the Government of the Republic of Serbia on the Abolition of Visa Requirements for Holders of Diplomatic and Official (Service) Passports.

Mr First Deputy Speaker: Hon Member, in doing so, present your Committee's Report. *[Pause]* You moved a Motion for the adoption of the Committee's Report. Present the Report.

Mr Dapilah: Mr Speaker, in presenting the Report, I request that the *Hansard* should capture the Report as if it is fully read before the House.

Introduction

Pursuant to Article 75(2) of the 1992 Constitution, the Hon Minister for Foreign Affairs laid before Parliament the under-listed Agreements on Wednesday, 3rd December, 2025:

- (i) Agreement between the Government of the Republic of Ghana and the Government of the Democratic Republic of Algeria on the Waiver of Visa Requirements for Holders of Diplomatic and Service Passports;
- (ii) Agreement between the Government of the Republic of Ghana and the Government of the Republic of Angola on the Waiver of Visa Requirements for Holders of Diplomatic and Service Passports; and
- (iii) Agreement between the Government of the Republic of Ghana and the Government of the Republic of Serbia on the Abolition of Visas for Holders of Diplomatic and Official (Services) Passports.

The Rt Hon Speaker accordingly referred the Agreement to the Committee on Foreign Affairs and Regional Integration for consideration and report, in accordance with Order 245 of the Standing Orders of the House.

Deliberations

The Committee met with the Hon Minister for Foreign Affairs, the Chief Director of the Ministry and other senior officials from the Ministry and deliberated on the Agreements. The Committee extends its appreciation to the Hon Minister and his team for availing themselves and contributing meaningfully to the deliberations.

Reference Documents

The Committee relied on the following documents in its deliberations:

- a. The 1992 Constitution of the Republic of Ghana;
- b. The Standing Orders of the Parliament of Ghana;
- c. The Agreements; and
- d. The Cabinet Memoranda with Executive Approval.

The Agreements

The Agreements have standard provisions with some variations in account of peculiar requirements of specific Parties. Key provisions of the Agreements include:

- (i) Visa Exemption: Diplomats and officials from either party can spend up to 90 days within a six-month period without a visa. For stays beyond 90 days, they must apply for the necessary immigration permits;

- (ii) **Border Control Compliance:** Diplomats must use approved ports of entry and adhere to the host country's border control laws;
- (iii) **Abrogation Clause:** Either party may suspend or terminate the agreement in part or entirely for reasons of national security, public safety, or public order; and
- (iv) **Refusal of Entry:** Both parties retain the right to refuse entry to any diplomat they deem unsuitable or undesirable (*persona non grata*).

Observations

The Committee made the following key observations during its deliberations:

Compliance with the 1992 Constitution of the Republic of Ghana

The Committee observed that the ratification of the Agreements is in full compliance with the 1992 Constitution, particularly Article 75, which governs the execution, approval, and ratification of international agreements. The Committee is satisfied that all constitutional procedures have been duly followed and that the Agreement aligns with Ghana's broader foreign policy objectives aimed at advancing national development through strengthened bilateral and continental cooperation.

Financial Impact

The Committee noted that visa fees represent one of the sources of internally generated funds (IGF) of the Ministry

and therefore sought clarification on the impact of the implementation of the Agreements on the revenues of the Ministry. The Committee was informed that there are no immediate financial costs or revenue losses anticipated from the implementation of these Agreements, as the visa exemption applies exclusively to holders of Diplomatic and Official/Service Passports, whose numbers are limited and who do not constitute a significant source of visa revenue. Thus, there would be no direct revenue losses associated with the implementation of the Agreements.

Duration of Stay

The Committee also noted that the Agreements allow Diplomats or Officials to enter and spend up to ninety (90) days within a six-month period (180 calendar days from the date of first entry into the concerned country without a visa. The Committee was further informed that beyond the 90 days, affected persons are required to obtain the requisite immigration permit for their continuous stay, exit or entry.

Conclusion and Recommendation

The Committee, having thoroughly considered the Agreements, finds that the Agreements are consistent with Ghana's constitutional and legal requirements, supports Ghana's foreign policy objectives, enhances bilateral cooperation, improves official mobility and operational efficiency, carries minimal financial risk;

and offers significant long-term socio-economic benefits.

The Committee therefore recommends to the House to adopt this Report and approve, by resolution, the ratification of the Agreements pursuant to Article 75(2)(b) of the 1992 Constitution.

I so submit.

Deputy Ranking Member of the Committee (Nana Asafo-Adjei Ayeh): Mr Speaker, I beg to second the Motion. Just like Algeria, your Committee did a good work, due diligence and the whole purpose was to seek to take the administrative bottlenecks out. Whilst taking the administrative bottlenecks out, we were very conscious of the border control compliance. So, just like we did the abrogation clause, this one also has it. The refusal and entry clause, we also have it. We also looked at the financial impact, and the duration of stay.

Mr Speaker, with these few words, I want to support the Report.

Question proposed.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: Consequential Resolution numbered 18. Deputy Minister for Foreign Affairs?

RESOLUTION

Agreement between Ghana and Serbia on the Abolition of Visa Requirement for Diplomatic and Official (Service) Passport Holders

Deputy Minister for Foreign Affairs (Mr James Gyakyey Quayson): Thank you, Mr Speaker. I beg to move:

WHEREAS by the provisions of Article 75 of the Constitution any treaty, agreement, or convention executed by or under the Authority of the President in the name of Ghana is made subject to ratification either by an Act of Parliament or by a resolution of Parliament supported by the votes of more than one-half of all the Members of Parliament.

IN ACCORDANCE with the said Article 75 of the Constitution the President has caused to be laid before Parliament through the Minister responsible for Foreign Affairs, the Agreement between the Government of the Republic of Ghana (represented by the Ministry of Foreign Affairs) and the Government of the Republic of Serbia on the Abolition of Visa Requirements for Holders of Diplomatic and Official (Service) Passports.

NOW THEREFORE, this honourable House hereby resolves to ratify the said Agreement between the Government of the Republic of Ghana (represented by the Ministry

of Foreign Affairs) and the Government of the Republic of Serbia on the Abolition of Visa Requirements for Holders of Diplomatic and Official (Service) Passports.

Vice Chairperson of the Committee (Mr Cletus Seidu Dapilah): Mr Speaker, I beg to second the Motion.

Mr Jerry Ahmed Shaib: Mr Speaker, respectfully, I do not think we have the numbers to have this decision made on the Resolution. Mr Speaker, with your leave can we make reference to Article 75(2) (b). Mr Speaker, Article 75(1) says that “The President may execute or cause to be executed treaties, agreements or conventions in the name of Ghana.”. Article 75(2) (b) in particular, says that “a resolution of Parliament supported by the votes of more than one-half of all members of Parliament.”.

We do not have one-half of Members of Parliament; therefore, this Resolution cannot proceed. Thank you very much.

Mr First Deputy Speaker: Hon Member, how many are we?

Mr Shaib: Mr Speaker, we are 67.

Mr First Deputy Speaker: Clerk-at-the-Table, I would ask you to ring the bell for 10 minutes, and we will follow the procedure. Until then, I will put the Question.

Question put and Motion agreed to.

Resolved accordingly.

Mr John Darko: Mr Speaker, I realised that you have just moved for the adoption of the Motion. But this is a clear constitutional provision for which we cannot derogate from.

Mr First Deputy Speaker: Hon Member, I am not derogating. I asked the Clerks to do the counting for me. Let me be satisfied then.

Mr Darko: Mr Speaker, we need to count and be sure before the Question is put. What we are doing clearly derogates from the constitutional provision.

Mr First Deputy Speaker: Hon Members, the Motion numbered 19.

Mr Ayariga: Mr Speaker, we will take the item numbered 19.

MOTION

Suspension of Standing Order 104(1)

Vice Chairperson of the Committee (Mr Cletus Seidu Dapilah) on behalf of the Chairperson of the Committee: Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a Motion shall not be debated until at least two sitting days have elapsed after the notice to move the motion is given, the motion for the adoption of the Report of the Committee on Foreign Affairs and Regional Integration on the Agreement between the Government of the Republic of Ghana (represented by the Ministry of Foreign Affairs) and the Government of

the People's Democratic Republic of Algeria on the Waiver of Visa Requirements for Holders of Diplomatic and Service Passports may be *moved* today.

Ms Zuwera Mohammed Ibrahimah (NDC — Salaga South): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: Now, the substantive Motion numbered 20.

**Agreement Between Ghana and
Algeria on the Waiver of Visa
Requirements for Diplomatic and
Service Passports Holders**

Mr Dapilah: Mr Speaker, I beg to *move*:

That this honourable House adopts Report of the Committee on Foreign Affairs and Regional Integration on the Agreement between the Government of the Republic of Ghana (represented by the Ministry of Foreign Affairs) and the Government of the People's Democratic Republic of Algeria on the Waiver of Visa Requirements for Holders of Diplomatic and Service Passports.

Mr First Deputy Speaker: In doing so, present the Committee's Report. After moving this Motion, you are to present the Report of the Committee. Because the Motion is asking to adopt your

Report. So which Report are we going to adopt? You must present that Report.

Mr Dapilah: Mr Speaker, I urge *Hansard* to capture the entire Report as if it was read. The Committee, having thoroughly considered the Agreement, finds that the Agreement is consistent with Ghana's constitution and legal requirements.

Introduction

Pursuant to Article 75(2) of the 1992 Constitution, the Hon Minister for Foreign Affairs laid before Parliament the under-listed Agreements on Wednesday, 3rd December, 2025:

- i. Agreement between the Government of the Republic of Ghana and the Government of the Democratic Republic of Algeria on the Waiver of Visa Requirements for Holders of Diplomatic and Service Passports;
- ii. Agreement between the Government of the Republic of Ghana and the Government of the Republic of Angola on the Waiver of Visa Requirements for Holders of Diplomatic and Service Passports; and
- iii. Agreement between the Government of the Republic of Ghana and the Government of the Republic of Serbia on the Abolition of Visas for Holders of Diplomatic and Official (Services) Passports.

The Rt Hon Speaker accordingly referred the Agreement to the Committee

on Foreign Affairs and Regional Integration for consideration and report, in accordance with Order 245 of the Standing Orders of the House.

Deliberations

The Committee met with the Hon Minister for Foreign Affairs, the Chief Director of the Ministry and other senior officials from the Ministry and deliberated on the Agreements. The Committee extends its appreciation to the Hon Minister and his team for availing themselves and contributing meaningfully to the deliberations.

Reference Documents

The Committee relied on the following documents in its deliberations:

- i. The 1992 Constitution of the Republic of Ghana;
- ii. The Standing Orders of the Parliament of Ghana;
- iii. The Agreements; and
- iv. The Cabinet Memoranda with Executive Approval.

The Agreements

The Agreements have standard provisions with some variations in account of peculiar requirements of specific Parties. Key provisions of the Agreements include:

- i. Visa Exemption: Diplomats and officials from either party can

spend up to 90 days within a six-month period without a visa. For stays beyond 90 days, they must apply for the necessary immigration permits;

- ii. Border Control Compliance: Diplomats must use approved ports of entry and adhere to the host country's border control laws;
- iii. Abrogation Clause: Either party may suspend or terminate the agreement in part or entirely for reasons of national security, public safety, or public order; and
- iv. Refusal of Entry: Both parties retain the right to refuse entry to any diplomat they deem unsuitable or undesirable (*persona non grata*).

Observations

The Committee made the following key observations during its deliberations:

Compliance with the 1992 Constitution of the Republic of Ghana

The Committee observed that the ratification of the Agreements is in full compliance with the 1992 Constitution, particularly Article 75, which governs the execution, approval, and ratification of international agreements. The Committee is satisfied that all constitutional procedures have been duly followed and that the Agreement aligns with Ghana's broader foreign policy objectives aimed at advancing national

development through strengthened bilateral and continental cooperation.

Financial Impact

The Committee noted that visa fees represent one of the sources of internally generated funds (IGF) of the Ministry and therefore sought clarification on the impact of the implementation of the Agreements on the revenues of the Ministry. The Committee was informed that there are no immediate financial costs or revenue losses anticipated from the implementation of these Agreements, as the visa exemption applies exclusively to holders of Diplomatic and Official/Service Passports, whose numbers are limited and who do not constitute a significant source of visa revenue. Thus, there would be no direct revenue losses associated with the implementation of the Agreements.

Duration of Stay

The Committee also noted that the Agreements allow Diplomats or Officials to enter and spend up to ninety (90) days within a six-month period (180 calendar days from the date of first entry into the concerned country without a visa. The Committee was further informed that beyond the 90 days, affected persons are required to obtain the requisite immigration permit for their continuous stay, exit or entry.

Conclusion and Recommendation

The Committee, having thoroughly considered the Agreements, finds that the Agreements are consistent with Ghana's

constitutional and legal requirements, supports Ghana's foreign policy objectives, enhances bilateral cooperation, improves official mobility and operational efficiency, carries minimal financial risk; and offers significant long-term socio-economic benefits.

The Committee therefore recommends to the House to adopt this Report and approve, by resolution, the ratification of the Agreements pursuant to Article 75(2)(b) of the 1992 Constitution.

Deputy Ranking Member of the Committee (Nana Asafo-Adjei Ayeh): Mr Speaker, I beg to second the Motion. I do this in principle that your Committee ably looked at all the reference documents that are necessary. We checked the Constitution of the Republic of Ghana, we referred to your Standing Orders, then we looked at the Agreement and the Cabinet Memorandum, which has some Executive approval. Mr Speaker, we believe that the Report and Agreement is compliant to our standards and with these few words, I second it.

Question proposed.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: We then move to consequential Resolution numbered 21.

RESOLUTION**Agreement Between Ghana and
Algeria on the Waiver of Visa
Requirements for Diplomatic and
Service Passports Holders**

**Deputy Minister for Foreign
Affairs (Mr James Gyakye Quayson):**
Mr Speaker, I beg to *move* that:

WHEREAS by the provisions of Article 75 of the Constitution any treaty, agreement, or convention executed by or under the Authority of the President in the name of Ghana is made subject to ratification either by an Act of Parliament or by a resolution of Parliament supported by the votes of more than one-half of all the Members of Parliament.

IN ACCORDANCE with the said Article 75 of the Constitution the President has caused to be laid before Parliament through the Minister responsible for Foreign Affairs, the Agreement between the Government of the Republic of Ghana (represented by the Ministry of Foreign Affairs) and the Government of the People's Democratic Republic of Algeria on the Waiver of Visa Requirements for Holders of Diplomatic and Service Passports.

NOW THEREFORE, this honourable House hereby resolves to ratify the said Agreement between the Government of the Republic of Ghana (represented by the Ministry of Foreign Affairs) and the Government of the People's

Democratic Republic of Algeria on the Waiver of Visa Requirements for Holders of Diplomatic and Service Passports.

Mr Dapilah: Mr Speaker, I beg to second the Resolution. It is for the consideration of the House.

Question put and Motion agreed to.

Resolved accordingly.

Mr Ayariga: We will take 49.

6:31 p.m.

Mr First Deputy Speaker: Exhausting similar Motion before? The Motion numbered 22 is on the same subject matter and that is the last.

Mr Ayariga: All right, we should take Motion numbered 22.

Mr First Deputy Speaker: Motion numbered 22, that is the Headquarters Agreement, Chairperson of the Committee?

Suspension of Order 104(1)

Vice Chairperson of the Committee (Mr Cletus Seidu Dapilah) *on behalf of the Chairperson:* Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a Motion shall not be debated until at least two sitting days have elapsed after the

notice to move the motion is given, the motion for the adoption of the Report of the Committee on Foreign Affairs on the Headquarters Agreement between the Government of the Republic of Ghana (represented by the Ministry of Foreign Affairs) and Afrobarometer.

Mr Kwame Owen Frimpong (NDC — Lower West Akim): Mr Speaker I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: Now the consequential Motion numbered 23.

Headquarters Agreement between Ghana and Afrobarometer

Vice Chairperson of the Committee (Mr Cletus Seidu Dapilah) *on behalf of the Chairperson:* Mr Speaker, with respect, I beg to *move*:

That this honourable House adopts Report of the Committee on Foreign Affairs and Regional Integration on the Headquarters Agreement between the Government of the Republic of Ghana (represented by the Ministry of Foreign Affairs) and Afrobarometer.

Mr Speaker, in so doing, I present your Committee's Report and invite *Hansard* to capture its entirety while I limit myself to just portions.

Introduction

On 3rd December, 2025, the request for the ratification of the Headquarters Agreement between the Government of the Republic of Ghana and Afrobarometer LBG was duly laid before Parliament by the Hon Minister for Foreign Affairs, Mr Samuel Okudzeto Ablakwa, in accordance with article 75 of the 1992 Constitution of the Republic of Ghana. The laying of the request was in fulfilment of the constitutional requirement governing the ratification of treaties, agreements, and conventions executed under the authority of the President.

Subsequently, the Hon Second Deputy Speaker referred the request to the Committee on Foreign Affairs and Regional Integration for consideration and report, pursuant to Order 245 of the Standing Orders of Parliament. This referral empowered the Committee to scrutinise the Agreement, engage the relevant stakeholders, and advise the House appropriately on the merits and implications of ratification.

Deliberations

The Committee met with the Hon Minister for Foreign Affairs, Mr Samuel Okudzeto Ablakwa, together with Officials of the Ministry of Foreign Affairs, to consider the Referral on the Headquarters Agreement. During the engagement, the Hon Minister and his team provided detailed explanations on the purpose, scope, and expected benefits of the Agreement, and addressed

all questions raised by Members of the Committee.

The Committee expresses its appreciation to the Hon Minister and the accompanying officials for their cooperation, candour, and the clarity of information provided in support of its deliberations.

Reference Documents

In the course of its deliberations, the Committee examined the following reference documents, which guided its analysis:

- i. The 1992 Constitution of Ghana;
- ii. The Standing Orders of Parliament;
- iii. The Headquarters Agreement between the Government of the Republic of Ghana and Afrobarometer LBG; and
- iv. The Cabinet Memorandum seeking Cabinet approval for Parliamentary ratification of the Headquarters Agreement.
- v. These documents provided the constitutional, legal, and policy context within which the Committee conducted its review.

Background Information

Afrobarometer, established in 1999 by three African political scientists, is a non-partisan, independent, and Pan-

African research network dedicated to amplifying the voices of ordinary citizens in public policymaking. Over the past twenty-six (26) years, the organisation has conducted surveys across forty-two (42) African countries, generating reliable, timely, and policy-relevant data on democracy, governance, economic conditions, social development, and other key national and continental priorities. Its operations have demonstrated that high-quality public-opinion research is feasible even in fragile and post-conflict environments.

Afrobarometer's survey rounds have expanded significantly since the first round conducted in 1999–2001, which involved twelve (12) countries. The latest survey round (January 2024–August 2025) covered thirty-eight (38) countries, producing nationally representative datasets on issues such as governance, human rights, poverty, climate change, gender equality, political trust, security, youth development, and public service delivery.

The organisation is legally registered in Ghana as a company limited by guarantee, with its Secretariat headquartered in Accra. The governance of Afrobarometer is entrusted to a distinguished Governing Board comprising notable leaders in governance, diplomacy, social justice, telecommunications, and academia. The Board provides strategic direction and ensures adherence to legal, financial, and operational standards.

In addition, Afrobarometer benefits from the guidance of an International Advisory Council, made up of prominent

figures in governance and public policy. The Council offers strategic foresight and supports connections with global partners, funders, and policymakers. Internally, the organisation operates through a robust management framework that facilitates effective leadership, coordination, and decision-making across its continental network.

Objectives of the Agreement

The primary objectives of the Headquarters Agreement between the Government of the Republic of Ghana and Afrobarometer LBG are as follows:

- i. To provide clear definition and certainty regarding the benefits, rights, and obligations arising from the Agreement, thereby ensuring a predictable and transparent operational framework for Afrobarometer in Ghana.
- ii. To affirm and highlight Ghana's role as the host country of the global headquarters of Afrobarometer, thereby strengthening the country's standing as a leader in democratic research and citizen-engagement initiatives on the African continent.
- iii. To promote alignment between Afrobarometer's operations and national, regional, and international efforts aimed at advancing democratic governance, accountability, and citizen participation, consistent with Ghana's foreign policy priorities.
- iv. To reinforce Ghana's image as a centre of research excellence, policy

innovation, and thought leadership in Africa, thereby enhancing the country's attractiveness for international partnerships, research collaborations, and capacity-building initiatives.

Key Provisions of the Agreement

The Headquarters Agreement between the Government of the Republic of Ghana and Afrobarometer LBG establishes the legal, operational, and administrative framework governing the organisation's presence in Ghana. The key provisions include the following:

Privileges, Immunities, and Protection of Assets

The Agreement affirms the inviolability of Afrobarometer's property and assets, ensuring that they are protected from search, requisition, or interference. Ghanaian authorities are required to exercise due diligence when accessing Afrobarometer premises, consistent with international practice. The Agreement further provides for tax and duty exemptions, and related privileges, as accorded to comparable international research institutions.

Freedom of Access and Residence

The Agreement guarantees unrestricted access to Afrobarometer premises for its staff, Board members, consultants, and other authorised representatives. It also protects the legal residence status of Afrobarometer personnel lawfully present in Ghana for official duties, thereby facilitating

seamless movement and operational continuity.

Financial and Operational Autonomy

Afrobarometer is granted the right to hold, manage, and transfer funds, and to operate bank accounts in any currency, in accordance with Ghanaian law. This ensures the organisation's financial autonomy and its ability to receive, disburse, and manage donor funds efficiently.

Cooperation with the Government of Ghana

The Agreement establishes a framework for cooperation between Afrobarometer and the Government, including collaboration with appropriate authorities in matters that support the administration of justice, public accountability, and national development priorities.

Official Communications

Afrobarometer is guaranteed the same privileges for the transmission of official documents and correspondence as those granted to international organisations operating in Ghana. This ensures confidentiality, security, and efficiency in the organisation's communications.

Waiver of Immunity

The privileges and immunities conferred under the Agreement are granted strictly for official purposes and not for personal benefit. The Agreement

provides guidance on the circumstances under which immunity may be waived, thereby safeguarding accountability while preserving organisational independence.

Application of Ghanaian Law and Jurisdiction

The Agreement affirms that the laws of the Republic of Ghana apply to all matters arising under the Agreement. Ghanaian courts retain jurisdiction over acts and transactions occurring within Afrobarometer premises, ensuring legal clarity and consistency.

Duration and Renewal

The Agreement remains valid for five (5) years and is automatically renewable for subsequent five-year terms unless terminated by either party through formal notification.

Justification for Ratification

The Committee is of the view that ratification of the Headquarters Agreement is both necessary and beneficial to the Republic of Ghana for the following reasons:

First, Afrobarometer is a credible, independent, and African-owned research organisation whose work significantly contributes to strengthening democracy, good governance, inclusive development, and the amplification of citizen voices, including those of marginalised groups. Its presence in Ghana aligns with national priorities and enhances the country's evidence-based policy environment.

Second, the Agreement is consistent with international best practices governing headquarters arrangements for research and policy institutions. It complies fully with the 1992 Constitution, particularly Article 75, and conforms to provisions of the Exemptions Act, 2022 (Act 1083), thereby ensuring legal certainty.

Third, Afrobarometer mobilises substantial donor funding, and its development partners view governmental endorsement as a key indicator of national support. Ratification will therefore boost partner confidence, attract enhanced funding flows into Ghana, and strengthen Afrobarometer's capacity to implement programmes that support national development.

Finally, ratifying the Agreement will signal Ghana's recognition of Afrobarometer's longstanding contributions to governance research. It will further deepen cooperation between the organisation and state institutions, enhance policy dialogue, and reinforce Ghana's reputation as a regional hub for research excellence and democratic innovation.

Implications and Impacts

The Committee examined the implications of the Headquarters Agreement and is satisfied that its ratification will generate significant operational, socio-economic, global, and legal benefits for Ghana. The Agreement will consolidate Afrobarometer's presence in the country and deepen its contribution to national development.

Impact Assessment

The ratification of the Agreement will strengthen and expand the impact of Afrobarometer's work in Ghana. The organisation already provides extensive support to Government and national institutions through data-driven insights, capacity building, and public-engagement initiatives.

Socio-economic Impact

Afrobarometer's operations yield substantial socio-economic benefits. The organisation produces timely, reliable, and policy-relevant data on citizen priorities, democratic attitudes, and social well-being. This evidence base supports Government ministries, Parliament, civil society, and development partners in formulating policies that reflect public needs.

The organisation also promotes an evidence-based policymaking culture, strengthens research capacity among emerging Ghanaian scholars, and equips journalists, analysts, and institutions to engage in informed democratic discourse. Its work reinforces good governance, accountability, and citizen participation, thereby supporting national stability and inclusive development.

Global Development Impact

Afrobarometer's datasets and analyses have evolved into a global public good, widely used by international organisations, research institutions, and development agencies. The data

enhances the evidence base for Africa's economic, social, and governance policy processes.

Its findings support:

- i. Global assessments, including reporting on the Sustainable Development Goals (SDGs);
- ii. Comparative governance and development studies;
- iii. Transparency and anti-corruption initiatives;
- iv. Climate change adaptation and resilience assessments; and
- v. Reframing global narratives about Africa, contributing to the decolonisation of knowledge production.

Locating the Afrobarometer global headquarters in Accra will significantly enhance Ghana's visibility as a regional centre for data-driven governance, policy innovation, and research excellence. The presence of network partners from 42 countries will stimulate high-level engagements, academic exchange, and regional cooperation, aligning with Government's commitment to strengthen continental integration.

Legal Impact

The Committee notes that the Agreement is fully consistent with the

laws of Ghana. Its provisions comply with the 1992 Constitution, relevant statutes, and international conventions. Accordingly, the Agreement requires no new legislation or statutory amendments. All processes leading to its ratification conform to constitutional and parliamentary requirements.

Options and Impacts Considered

The Committee reviewed two policy options:

Option 1: Cabinet Approves the Agreement for Parliamentary Ratification

This option would affirm Ghana's commitment to the Vienna Convention on the Law of Treaties and formally recognise Afrobarometer's contribution to Ghana's governance ecosystem. Approval would also:

- i. Strengthen development partner confidence;
- ii. Enhance Afrobarometer's ability to attract and manage donor funds;
- iii. Support national institutions with expanded research outputs;
- iv. Create employment opportunities and capacity-building avenues for Ghanaians; and
- v. Increase high-level international visits, contributing indirectly to

Option 2: Cabinet Declines Approval of the Agreement

Declining the Agreement would leave no legal framework governing Afrobarometer's operations in Ghana. The absence of such a framework may:

Hinder effective collaboration between Afrobarometer and Government;

- i. Create potential gaps in monitoring and coordination;
- ii. Lead to duplication of efforts and inefficient resource use;
- iii. Reduce confidence among development partners; and
- iv. Risk diminished financial support for national research, governance, and democracy-strengthening programmes.

Recommended Option

The Committee strongly recommends Option 1. Ratification will provide a clear legal foundation for Afrobarometer's operations in Ghana, formalise Government support, and reassure development partners of the country's commitment to transparent, data-driven, and inclusive governance. This will encourage sustained investment in Afrobarometer-led initiatives that benefit national and regional development.

Observations

The Committee, having thoroughly examined the Headquarters Agreement and engaged with the Hon Minister for Foreign Affairs and officials of the Ministry, makes the following key observations:

Endorsement of Reliability and Credibility

The Committee expressed strong confidence in Afrobarometer, acknowledging its reputation as a non-partisan, independent, and highly credible research network. Over the past two decades, the organisation has produced dependable, high-quality data across critical sectors such as education, health, poverty, agriculture, governance, and the economy.

The Committee further noted that Afrobarometer has become an indispensable knowledge resource, whose data is widely recognised by governments, development partners, academics, and civil society organisations across Africa. Its consistent track record demonstrates that Afrobarometer provides a level of rigour and reliability that any democratic government would find invaluable.

Contribution to National and Continental Development

The Committee observed that Afrobarometer plays a significant role in supporting national and continental development processes. By conducting comprehensive surveys and producing

citizen-centred data, the organisation amplifies public voices, strengthens democratic governance, and enhances accountability.

The Committee emphasised that Afrobarometer's work provides crucial evidence that informs policy formulation, legislative oversight, journalistic practice, and technical decision-making. The organisation's capacity-building initiatives also support emerging researchers, technocrats, and journalists to engage in evidence-based discourse, thereby enriching Ghana's democratic architecture.

Strengthening of Ties Between the Government and Afrobarometer

The Committee noted that the Headquarters Agreement represents a major milestone in deepening cooperation between the Government of Ghana and Afrobarometer LBG. By formalising the organisation's operations, the Agreement establishes a structured framework for collaboration, enables continuity in Afrobarometer's research activities, and strengthens institutional partnerships.

This formal recognition will support a more coordinated, data-driven approach to national development, ensuring that public-policy decisions benefit from high-quality empirical evidence.

Ghana as a Hub for Credible Research and Data Collection

The Committee further observed that hosting Afrobarometer's global headquarters will significantly enhance

Ghana's international reputation as a centre for credible research, data collection, and policy innovation. Afrobarometer's reputation for producing accurate, methodologically sound data will position Ghana as a preferred destination for research collaborations, capacity-building initiatives, and international investments in the knowledge and development sectors.

The Committee stressed that this development has the potential to catalyse a new era of research-driven policymaking, reinforcing Ghana's leadership in democratic governance and social development within the region.

Urgency for Approval

Finally, the Committee highlighted the urgent need for the expeditious ratification of the Agreement. Afrobarometer's Headquarters Agreement was categorised alongside other priority instruments such as the Visa Waiver Agreements and the Qatar Labour Mobility Agreement, which require prompt parliamentary action.

The Committee underscored that ratification is both necessary and overdue, and urged swift approval to secure the benefits associated with hosting Afrobarometer's global headquarters.

Conclusion and Recommendation

The Committee observes that Afrobarometer has, over the past two decades, established itself as a leading continental institution in the generation

of reliable, independent, and high-quality public opinion data. Its work has consistently amplified the voices of ordinary citizens and supported evidence-based policymaking at the national, regional, and continental levels. The organisation's presence in Ghana has contributed significantly to strengthening democratic governance, accountability, and inclusive development.

The ratification of the Headquarters Agreement between the Republic of Ghana and Afrobarometer LBG is therefore essential to providing a clear legal and operational foundation for the organisation's continued activities in the country. Ratification will enhance collaboration between Afrobarometer and state institutions, reinforce Ghana's commitment to data-driven public policy, and facilitate capacity-building programmes that directly support the nation's governance and development agenda.

Having thoroughly examined the provisions, objectives, and implications of the Agreement, the Committee is satisfied that it aligns fully with Ghana's constitutional and developmental priorities. The Committee therefore recommends to the House to adopt its Report and ratify the Headquarters Agreement in accordance with article 75 of the 1992 Constitution of the Republic of Ghana.

Respectfully submitted.

Deputy Ranking Member of the Committee (Nana Asafo-Adei Ayeh): Mr Speaker I beg to second the Motion.

I must say on record that agreeing to host Afro-Barometer will make the country a regional hub for credible, research-driven policy-making. It would make us look or become a global public good. It will help us inform our international policy processes because of hosting Afro-Barometer. It is also important that we cannot be critically or keenly measuring our Sustainable Development Goals (SDGs) without having the Afro-Barometer headquarters here, which is ably supporting us to be able to do all these things.

Mr Speaker, I believe strongly that your Committee did good work in hosting the Afro-Barometer headquarters. It is something that we must do as a nation. With that, I want to support or second this report.

Thank you, Mr Speaker.

Ms Zuwera Mohammed Ibrahim (NDC — Salaga South): Mr Speaker, in considering the Motion on the Floor of the House, I want to add that to a very large extent, Afro-Barometer has become synonymous with our democracy and our governance systems in Ghana. Annually, Ghanaians await the Afro-Barometer report in bated breath, especially the major stakeholders and key actors within our political space. They have been consistent in their output in enriching our democratic processes. Their contribution to the effort to fight and reduce corruption in this country cannot be discounted.

Mr Speaker, with these few words, I wish to support the Motion on the

establishment of the headquarters of the Afro-Barometer in this country. Thank you very much.

Question put and Motion agreed to.

Resolved:

That the House adopted the Agreement between the Government of Ghana and Afrobarometer.

Mr First Deputy Speaker:
Consequential Resolution numbered 24.

RESOLUTIONS

Headquarters Agreement between Ghana and Afrobarometer

Deputy Minister for Foreign Affairs (Mr James Gyakyé Quayson) (MP): Mr Speaker, I beg to *move*:

WHEREAS by the provisions of Article 75 of the Constitution any treaty, agreement, or convention executed by or under the Authority of the President in the name of Ghana is made subject to ratification either by an Act of Parliament or by a resolution of Parliament supported by the votes of more than one-half of all the Members of Parliament.

IN ACCORDANCE with the said Article 75 of the Constitution the President has caused to be laid before Parliament through the Minister responsible for Foreign Affairs, the Headquarters Agreement between the Government of the Republic of

Ghana (represented by the Ministry of Foreign Affairs) and Afrobarometer.

NOW THEREFORE, this honourable House hereby resolves to ratify the said Headquarters Agreement between the Government of the Republic of Ghana (represented by the Ministry of Foreign Affairs) and Afrobarometer.

Vice Chairperson of the Committee (Mr Cletus Seidu Dapilah): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: Motion numbered 25.

Suspension of Order 104(1)

Vice Chairperson of the Committee (Mr Cletus Seidu Dapilah) on behalf of the Chairperson: Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a motion shall not be debated until at least two sitting days have elapsed after the notice to move the motion is given, the motion for the adoption of the Report of the Committee on Foreign Affairs and Regional Integration on the Agreement under the United Nations Convention on the Law of the Sea (UNCLOS) on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction.

Ms Zuwera Mohammed Ibrahim (NDC —Salaga South): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: Consequential Motion Numbered 26?

Agreement under the United Nations Convention on the Law of the Sea (UNCLOS) on the Conservation and Sustainable Use of Marine Biological Diversity

Vice Chairperson of the Committee (Mr Cletus Seidu Dapilah) on behalf of the Chairperson: Mr Speaker, with respect, I beg to *move*:

That this honourable House adopts Report of the Committee on Foreign Affairs and Regional Integration on the Agreement under the United Nations Convention on the Law of the Sea (UNCLOS) on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction.

In so doing, I present your Committee's Report and invite *Hansard* to capture its entirety while I limit myself to just portions.

Introduction

On Wednesday, 3rd December, 2025, the Hon Minister for Foreign Affairs laid before Parliament the United Nations Agreement on the Conservation and

Sustainable Use of Marine Biological Diversity in Areas Beyond National Jurisdiction (BBNJ Agreement) for ratification in accordance with article 75(2)(b) of the 1992 Constitution.

The Rt Hon Speaker subsequently referred the Agreement to the Committee on Foreign Affairs for detailed examination and report.

Deliberations

During its deliberations, the Committee engaged officials from the Ministry of Foreign Affairs. The Ministry provided comprehensive explanations on the historical evolution of the BBNJ Agreement within the framework of UNCLOS, the scientific, environmental and economic justification for enhanced protection of marine biodiversity, Ghana's obligations and opportunities under the Agreement, and the proposed governance architecture, particularly the role of the Conference of Parties. Further clarifications were offered on anticipated national benefits, including capacity-building, technology transfer, and the institutional arrangements required for effective monitoring and implementation.

The Committee sought additional clarification on Ghana's rights under UNCLOS and whether these would be affected, the extent of any potential financial commitments, the country's readiness to conduct environmental impact assessments in the High Seas, the implications for coastal communities, and opportunities available to fisheries and maritime research institutions. In response, the Ministry assured the

Committee that the Agreement does not diminish Ghana's sovereign rights over its territorial waters, imposes no direct financial liability, expands access to scientific, technological and capacity-enhancing resources, and further strengthens Ghana's broader blue economy agenda. The Committee expressed satisfaction with the submissions received.

Reference Documents

The Committee relied on:

1. The 1992 Constitution of Ghana;
2. Standing Orders of Parliament;
3. United Nations BBNJ Agreement (2023);
4. UNCLOS (1982);
5. Cabinet Memorandum requesting ratification; and
6. Technical presentations and national briefs from the Ministry of Foreign Affairs and partner agencies.

Background

The BBNJ Agreement was adopted following more than two decades of negotiations under the auspices of the United Nations, aimed at responding to the growing threats confronting marine ecosystems beyond national jurisdiction. These threats include overfishing, marine pollution, the emergence of new biotechnologies affecting marine genetic resources (MGRs), climate change impacts, deep-sea mining activities that

destroy fragile habitats, and the proliferation of unregulated marine scientific research. The High Seas areas lying beyond the sovereign authority of individual States constitute approximately half of the Earth's surface and 90 percent of its liveable habitat. Despite their ecological significance, these areas lacked a coherent global governance framework for the protection and sustainable use of biodiversity until the adoption of the BBNJ Agreement.

As a coastal and maritime State, Ghana has a substantial interest in strengthened global ocean governance. The Agreement aligns closely with Ghana's national priorities, including its marine conservation agenda, fisheries management strategy, blue economy development framework, climate resilience obligations, and ambitions to expand marine scientific research. Ratification of the Agreement will therefore reinforce Ghana's role and influence within regional and international governance mechanisms relating to the ocean, while advancing national efforts to sustainably manage and protect marine resources.

Objectives of the Agreement

The Agreement seeks to:

1. Establish a legally binding framework for the conservation and sustainable use of marine biodiversity in the High Seas;
2. Regulate access and benefit-sharing of marine genetic resources (MGRs);

3. Implement Area-Based Management Tools (ABMTs) including Marine Protected Areas (MPAs);
4. Strengthen obligations relating to Environmental Impact Assessments (EIAs);
5. Provide structured support for capacity-building and marine technology transfer;
6. Promote equity, fairness, and science-based decision-making in ocean governance; and
7. Reinforce cooperation among States on marine research and ecosystem protection.

Key Provisions of the Agreement

The Agreement includes four inter-linked pillars:

Marine Genetic Resources (MGRs) and Benefit Sharing

The Agreement establishes clear rules for access to marine genetic resources (MGRs) found in the High Seas and ensures the fair and equitable sharing of both monetary and non-monetary benefits. It further supports the development and use of digital sequence information sharing mechanisms, promoting transparency and scientific collaboration.

Area-Based Management Tools (ABMTs)

The Agreement's provisions on Marine Protected Areas (MPAs) enable the designation of MPAs in the High

Seas, ensuring that such designations are grounded in scientific justification and implemented with full transparency. It also introduces regulatory measures to control or prohibit activities that may harm marine biodiversity, thereby supporting long-term conservation and sustainable use of ocean resources.

Environmental Impact Assessments (EIAs)

The Agreement requires States to conduct Environmental Impact Assessments (EIAs) for activities that are likely to affect marine biodiversity, ensuring that potential impacts are identified and addressed in advance. It also mandates continuous monitoring, transparent reporting, and meaningful public participation throughout the assessment process, thereby strengthening accountability and environmental governance.

Capacity-Building and Marine Technology Transfer

The Agreement provides developing countries, including Ghana, with access to training, technology, equipment, oceanographic data, and financial resources essential for strengthening national capacity in ocean governance. Under this pillar, Ghana stands to benefit significantly, particularly in advancing marine research, enhancing institutional capabilities, and supporting sustainable ocean-related development.

Legal Implications

The Committee notes that the Agreement is fully consistent with the

United Nations Convention on the Law of the Sea (UNCLOS), to which Ghana is already a Party. Ratification is therefore necessary to enable Ghana to participate effectively in the Conference of Parties (CoP), the principal decision-making body under the Agreement. The Committee further observes that no amendments to Ghana's domestic laws are required for implementation, and that ratification in no way diminishes Ghana's sovereign rights over its territorial waters or Exclusive Economic Zone.

Justification

The Ministry justified Ghana's ratification on the following grounds:

Protection of Marine Ecosystems

The Ministry submitted that the High Seas play a critical role in sustaining global ecological balance and directly influence Ghana's marine environment. Although these areas fall beyond national jurisdictions, activities such as overfishing, marine pollution, and habitat degradation have far-reaching effects on coastal States, including Ghana. Ratifying the Agreement allows Ghana to support a legally binding framework that reinforces conservation measures, strengthens environmental safeguards, and enhances Ghana's ability to participate in global efforts to protect marine ecosystems that ultimately impact the nation's coastal fisheries, weather patterns, and climate resilience.

Benefits to Ghana's Blue Economy

The Committee was informed that ratification provides Ghana with expanded opportunities to advance its Blue Economy agenda. Specifically, the Agreement facilitates access to marine technologies, capacity-building programmes, scientific data, and shared financial and technical resources. These benefits will enhance Ghana's ability to explore, develop, and sustainably utilise marine resources. Such support is particularly essential for improving fisheries management, supporting coastal livelihoods, modernising scientific research institutions, and strengthening regulatory frameworks for sustainable ocean-based economic activities.

Enhanced Global Influence

The Ministry explained that Ghana's ratification positions the country as an active participant in shaping global ocean governance. Through participation in the Conferences of Parties (CoP) and other decision-making bodies established under the Agreement, Ghana will have the opportunity to contribute to the formulation of rules, standards, and technical guidelines governing the conservation and sustainable use of marine biodiversity. This enhanced presence on the global stage reinforces Ghana's reputation as a responsible maritime State and strengthens its voice in international negotiations on marine resources, climate change, and sustainability.

Regional Leadership

The Ministry further justified ratification on the basis that Ghana has the potential to assume a leadership role within ECOWAS and the African Union on matters relating to ocean governance. As a prominent coastal State with a strong maritime tradition, Ghana is well-positioned to guide regional cooperation, coordinate common African positions, and facilitate capacity-building for neighbouring States. Ratification therefore enhances Ghana's credibility and influence in promoting regional strategies for marine conservation, maritime security, and sustainable resource utilisation.

No Financial Burden

The Ministry pointed out that implementation of the Agreement will not impose any direct financial burden on the State. Existing national agencies including the Fisheries Commission, Environmental Protection Agency (EPA), Marine Police, and the Ghana Maritime Authority already perform functions that align with the Agreement's requirements. Moreover, the BBNJ framework provides support mechanisms, including inter-national funding, technology transfer, and capacity-building assistance, which Ghana can leverage. As such, the obligations under the Agreement can be fulfilled using current institutional structures and available international resources, ensuring cost-effective implementation.

Options and Impact

Option 1 – Ratify the Agreement

Ratifying the Agreement would enable Ghana to benefit from the capacity-building and technology-transfer provisions, thereby strengthening domestic fisheries, environmental, and maritime governance. It would also allow the country to participate fully in the Conference of Parties (CoP) and contribute meaningfully to global decision-making processes. Furthermore, ratification would support Ghana's national sustainable development goals while enhancing its international reputation as a responsible maritime State committed to the protection and sustainable use of marine resources.

Option 2 – Defer Ratification

Deferring the Agreement would exclude Ghana from early decision-making processes and limit the country's access to new technology and capacity-building opportunities. Such a delay would also place Ghana behind peer States in advancing blue economy initiatives and reduce its ability to influence global ocean governance. For these reasons, the Committee found Option 2 undesirable.

Financial Impact

The Committee notes that the Agreement imposes no immediate financial cost, as participation in the Conference of Parties (CoP) and related activities will be funded through existing Ministry

budgets. Additionally, Ghana stands to gain substantial financial and technical benefits through international funding mechanisms and capacity-building initiatives associated with the Agreement.

Socio-Economic Impact

Ratification is expected to yield significant national benefits, including improved fisheries sustainability and strengthened marine conservation efforts. It will also open new opportunities for marine scientific research and enhance the country's climate resilience. Additionally, ratification will create increased prospects for youth engagement in marine science and technology, while supporting growth in key blue economy sectors such as aquaculture, marine biotechnology, and maritime tourism.

Observations

During deliberations, the Committee observed that:

Alignment with Ghana's Environmental, Maritime, and Development Priorities

The Ministry highlighted that the BBNJ Agreement directly supports Ghana's national development agenda, particularly in the areas of environmental protection, maritime governance, and sustainable development. By ratifying the Agreement, Ghana reinforces its commitment to conserving marine biodiversity, mitigating climate change impacts, and promoting responsible utilisation of ocean resources. This

alignment ensures that national policies on fisheries, coastal management, and the blue economy are consistent with internationally recognized standards, creating a coherent framework for sustainable development that benefits both the environment and economic growth.

Benefits to Ghana's Scientific Institutions

Ratification presents significant opportunities for Ghana's scientific community. Universities, research institutes, and marine laboratories will gain access to global data, collaborative research networks, and cutting-edge marine technologies. These resources will enhance Ghana's capacity to conduct environmental assessments, monitor marine biodiversity, and engage in high-quality marine research. Over time, this will strengthen the country's human capital in oceanography, marine biology, and environmental sciences, positioning Ghana as a centre of excellence for marine research in West Africa.

Benefits to Coastal Communities

While the Agreement primarily addresses high seas governance, its implementation will have downstream benefits for coastal communities. Improved management of marine resources, particularly through sustainable fisheries practices and ecosystem conservation, will help ensure the long-term productivity of fish stocks, upon which many communities depend for livelihoods and food security. Access to capacity-building programmes and

technology for local fisheries management will empower communities to participate in sustainable practices, enhancing their economic resilience and social well-being.

Enhanced Global Ocean Governance Position

The Ministry emphasised that ratification strengthens Ghana's standing in the international maritime arena. By actively participating in decision-making processes such as the Conference of Parties (CoP), Ghana can influence global rules on marine biodiversity conservation, sustainable resource use, and environmental protection. This enhanced global profile not only projects Ghana as a responsible maritime State but also opens avenues for technical cooperation, funding, and partnerships that can support national and regional ocean governance initiatives.

Conclusion and Recommendation

The Committee therefore recommends to the House to adopt this Report and approve, by resolution, the ratification of the United Nations Agreement on the Conservation and Sustainable Use of Marine Biological Diversity of Areas Beyond National Jurisdiction (BBNJ Agreement), in accordance with article 75(2)(b) of the 1992 Constitution.

Respectfully submitted.

5:51 p.m.

Mr First Deputy Speaker: Hon Members, the Motion has been moved. Any seconder?

Mr Ayeh: Thank you Mr Speaker. I rise to second the Motion.

Mr Speaker, clearly page 5 of 15 takes us through the objectives of agreement and as the Report has captured, there are seven key agreements. Apart from these seven key agreements, your Committee also considered a few things. We looked at the marine generic resources and its benefits. We also looked at the area-based management tools that we can have access to as a country. We also considered the environmental impact assessment. That is very important because of the global environmental issues that we are looking at.

Mr Speaker, we also looked at some capacity building that the marine technology would transfer to the people of this country when we signed this agreement. We also looked at the legal implications, and we believe strongly that your Committee did a very good job.

So, Mr Speaker, with this, I want to second the Motion that this Report be adopted as a report of the House.

Thank you, Mr Speaker.

Question proposed.

Question put and Motion agreed to.

Mr First Deputy Speaker: Consequential Resolution numbered 27, Deputy Minister for Foreign Affairs.

RESOLUTION

Agreement under the United Nations Convention on the Law of the Sea (UNCLOS) on the Conservation and Sustainable use of Marine Biological Diversity

Deputy Minister for Foreign Affairs (Mr James Gyakyé Quayson) on behalf of the Minister for Foreign Affairs: Mr Speaker, I beg to *move*:

WHEREAS

1. By the provisions of Article 75 of the Constitution any treaty, agreement, or convention executed by or under the Authority of the President in the name of Ghana is made subject to ratification either by an Act of Parliament or by a resolution of Parliament supported by the votes of more than one-half of all the Members of Parliament.
2. In accordance with the said Article 75 of the Constitution the President has caused to be laid before Parliament through the Minister responsible for Foreign Affairs, the Agreement under the United Nations Convention on the Law of the Sea (UNCLOS) on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction.

NOW THEREFORE, this honourable House hereby resolves to ratify the said Agreement under the United Nations

Convention on the Law of the Sea (UNCLOS) on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction.

Vice Chairperson of the Committee (Mr Cletus Seidu Dapilah): Mr Speaker, I second the Resolution.

Question put and Motion agree to.

Resolved accordingly.

Mr First Deputy Speaker: Hon Members, Motion numbered 49, Ghana Education Trust Fund (Amendment) Bill, 2025, be now read a Second time.

Yes, Deputy Minister for Finance?

BILL — SECOND READING

Ghana Education Trust Fund (Amendment) Bill, 2025

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) on behalf of the Minister for Finance: Mr Speaker, I *move*:

That the Ghana Education Trust Fund (Amendment) Bill, 2025 be now read a Second time.

Vice Chairperson of the Committee (Mr Richard Acheampong) on behalf of the Chairperson of the Committee: Mr Speaker, thank you very much for the opportunity to present Report of your Committee. I call on the *Hansard* to capture the entire report as having been read while attached on the rationale for the proposed amendment.

Introduction

The Ghana Education Trust Fund (Amendment) Bill, 2025 was presented to Parliament by Hon Minister for Finance, Dr Cassiel Ato Baah Forson, in accordance with Article 174 of the 1992 Constitution and read for the first time on Thursday, 13th November, 2025.

Subsequently, the Bill was referred to the Finance Committee for consideration and report in accordance with Article 106(4) of the 1992 Constitution and Standing Order 226 of Parliament.

Deliberation

The Committee, in considering the Bill met with the Hon Minister for Finance, Dr Cassiel Ato Baah Forson; Hon Minister for Education, Mr Haruna Iddrisu; Hon Deputy Minister for Finance, Mr Thomas Nyarko Ampem; Hon Deputy Minister for Education, Dr Clement Abas Apaak; officials from the Legislative Drafting Division of the Ministry of Justice and Attorney-General's Department, the technical team from the Ministry of Finance, Ministry of Education and Ghana Revenue Authority.

Reference Documents

The Committee referred to the following documents in the consideration of the Bill:

- i. The 1992 Constitution;
- ii. The Standing Orders of Parliament;

iii. The Ghana Education Trust Fund Act, 2000 (Act 581);

iv. Earmarked Funds Capping and Realignment Act, 2017 (Act 947)

Rationale

Act 581 establishes the Ghana Educational Trust Fund with the object of providing finance to supplement the provision of education at all levels by government, including the development and maintenance of essential academic facilities and infrastructure. The Fund is however inadequate in the face of expanding educational programmes and the need for additional infrastructure.

The Bill therefore seeks to amend the Ghana Education Trust Fund Act, 2000 (Act 581) to expand the object of the Fund to include the financing of free secondary education, free education for persons with special needs, free tertiary education for persons with disability and to make the Ghana Education Trust Fund Levy input tax deductible.

The amendment is expected to encourage more students with disability to pursue tertiary education, reduce the financial burden on families and affirm the unwavering commitment of government to inclusivity, equal opportunity and social equity in education. The amendment is also expected to improve attendance, concentration and learning outcomes for learners with special needs and advance inclusive and accessible education for persons with special needs.

Object of the Bill

The object of the Bill is to amend the Ghana Education Trust Fund Act, 2000 (Act 581) to provide financing for free secondary education, free tertiary education for persons with disability and free education for persons with special needs and to allow for the deductibility of the Ghana Education Trust Fund Levy.

Content of the Bill

The Bill contains two clauses:

Clause 1 of the Bill amends section 2 of Act 581 to expand the permitted uses of the moneys of the Ghana Education Trust Fund to include the funding of free secondary education, free tertiary education for persons with disability and free education for persons with special needs.

Clause 2 amends section 3A of Act 581 by deleting the provision that renders the Ghana Education Trust Fund Levy non-deductible as an input tax.

Observations and Recommendations

The Committee observed that the absence of a dedicated source of funding for the Free Senior High School Programme initiated in 2018 has raised concerns about the sustainability of the Programme. Government has also resolved to strengthen social protection through the implementation of the Policy on Free Tertiary Education for Persons with Disability and free education for persons with special needs. Government has also amended the Earmarked Funds

Capping and Realignment Act, 2017 (Act 947) to uncap the Ghana Education Trust Fund to make available dedicated funds for the financing of free secondary education and free tertiary education for persons with disability.

The Committee noted that there is the need to expand the objects of the Fund to include the financing of free secondary education, free tertiary education for persons with disability and free education at all levels for persons with special needs.

The Committee also observed that the Levy is charged on the supply of goods and services other than exempt supplies and the import of goods and services, other than exempt imports and is also applied in addition to the standard rate of the Value Added Tax. The Levy is currently not creditable as input tax, which contributes to a cascading tax burden on consumption in the same vein as the National Health Insurance Levy.

The Hon Minister for Finance made it known to the Committee that while the Levy has been instrumental in funding educational infrastructure and programmes, the non-deductibility of the Levy has added to the cost of doing business and has created compliance complexities for taxpayers. He also stated that in the 2025 Budget Statement, government outlined its commitment to making the Value Added Tax system more efficient and business-friendly by harmonising consumption taxes and allowing input tax credit for earmarked levies.

Proposed Amendment

Amendments proposed by the Committee during the consideration have been compiled and is attached as appendix.

Conclusion

The Committee is of the view that the Bill, when passed, will improve compliance, reduce tax-induced price distortions, improve the profitability of businesses and foster a more transparent and growth-supportive Value Added Tax regime, while continuing to safeguard the resources needed to finance the education sector.

The Committee accordingly recommends to the House to adopt its report and pass the Ghana Education Trust Fund (Amendment) Bill, 2025.

Respectfully submitted.

Mr Speaker, I conclude by calling on all Hon Members to support this amendment so that we can have a dedicated source of funding for free senior high school education and support people with special needs and people with disability.

I also submit, Mr Speaker, thank you very much.

Question proposed.

Mr First Deputy Speaker: Yes, Hon Dr Tiah Abdul Kabiru Mahama?

Dr T. A. K. Mahama: Mr Speaker, I say that the proposed amendment is at the heart of social inclusion and equitable distribution of our resources. I recall that as a principle, as a policy, in the lead up to the 2024 Elections, at the centre of the discussion in this country was how we would make sure that we sustain the free senior high school education, how we would ensure that people with disability are catered for under our educational system. I also recall that the former Vice President, Dr Mahamudu Bawumia, promised clearly that he wanted to ensure that persons with disability enjoy free tertiary education. It was a black and white promise of the then presidential candidate for the New Patriotic Party. Then National Democratic Congress had the opportunity and the mandate of the good people of Ghana to lead. Under this leadership, the President, H. E. John Dramani Mahama, has appointed Hon Haruna Iddrisu as the Minister for Education. And seeing him wanting to implement the vision of Dr Mahamudu Bawumia, in terms of free education for persons with disability, is something noble; it is something commendable. This is the essence of governance, that a candidate promises something, another political party sees the rationale and the reasoning in that, and decides to implement. I think that it is very commendable. I have to commend the Minister for Education, and the President, for actually listening to the promise of Dr Mahamudu Bawumia, and delivering on it. The education for persons with disability and persons with special needs is something that we all need to support.

Mr Speaker, without much ado, I think it is a commendable initiative. I think this one should not even spend much time on this Floor, because there seems to be consensus that people who are vulnerable, people who are down-trodden, people who are actually suffering, are covered under this particular problem.

Mr Speaker, within a few words, I want to commend the Minister and the President, and also commend the former Vice President, Dr Mahamudu Bawumia, for thinking and for having a vision that supports inclusivity.

Thank you very much, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Member?

Prof Titus Kofi Beyuo (NDC — Lambussie): Mr Speaker, thank you for the opportunity to contribute to the debate on this Bill. I think this is the first time that we are having a Bill that specifically protects the free SHS, and that must go on record.

6:51 p.m.

Mr Speaker, when we made comments that the Free SHS policy had no dedicated funding, there were others who argued. This Bill goes to vindicate the real intention of His Excellency the President. *[Hear! Hear!]* During the campaign, it was alleged that when His Excellency comes, he would cancel the Free SHS policy. But we are seeing an amendment to the GETFund which caters for financing for the Free SHS policy.

Mr Speaker, this amendment also caters for persons with disability. The conscience of any society is judged by how that society cares for the vulnerable. And this Government has demonstrated that it cares for persons with disabilities. For the first time, we noticed an increase in allocation in the district assembly to persons with disabilities. Not only that, the promise of H. E. John Dramani Mahama to provide free tertiary education to persons with disability is now being enshrined in the amendment of this Act. If we cannot support this, what else do we support?

Mr Speaker, I want to commend the Minister for Education, His Excellency the President, and all others who have made efforts to ensure that Ghana considers persons living with disabilities and that the Free SHS policy is also properly funded.

Thank you very much, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Member, you have the floor.

Mr Akwasi Gyamfi Onyina-Acheampong (NPP — Kwabre East): Thank you, Mr Speaker.

Let me first commend the Minister for bringing this Bill to us. The Free SHS policy has always been an important subject. And getting a dedicated source of funding so that this policy is secured and has sustainability is a really good move.

Mr Speaker, paragraph 4 of this Memorandum finally puts to bed the

question of who initiated the Free SHS policy. If you will indulge me, paragraph four,

“The Government, realising the absence of a dedicated source of funding for the Free Senior High School programme initiated in 2018, has raised concern about the sustainability.”

Mr Speaker, this puts to bed and definitely answers the age-long question of who initiated the Free SHS policy. When we look at the clause, the object of the fund in 2(b), there is something that we need to clarify. It says,

“It seeks to provide supplementary funding to the scholarship secretariat, to grant scholarships to gifted but needy students for studies in the second cycle and accredited tertiary institutions.”

Mr Speaker, the definition of the second cycle in Ghana is Secondary School and free SHS. The import of this is that if we already have a scholarship scheme for Free SHS and the same Bill seeks to get a scholarship to sponsor second-cycle education, so we need to look at that clause again. Because it means that even though we are providing a scholarship, we are providing dedicated funding for Free SHS, and also making provision for scholarships for the second cycle. It does not add up. We need to look into that.

With these few words, I will say that this is a good thing; this is a good

initiative by this Government, and I highly commend them for it. Thank you.

Mr First Deputy Speaker: Yes, Hon Minister for Education.

Minister for Education (Mr Haruna Iddrisu) (MP): Mr Speaker, thank you for the opportunity to contribute to the Motion on the amendment of the Ghana Education Trust Fund Bill, 2025.

Mr Speaker, I urge Hon Members of Parliament on both Sides of the House to support the Motion; because when we pass it, it will give assurance to the continuation of the Free Senior High School policy initiated by President Nana Addo Dankwa Akufo-Addo in 2018, but probably did not provide for a dedicated funding source for free senior high school. The Minister for Finance, Hon Ato Forson, decided to uncap the GETFund and dedicate financing so that additional resources are made available to finance education.

Mr Speaker, what this House needs to note is that when this law passes, we are also assuring persons with disability of free tertiary education. This means that any person with disability who gains admission to pursue higher education will receive support from the Government of Ghana, from President John Dramani Mahama. They are assured that they can go through their studies at the higher education level with support from the state. What it also means is that we are not all too satisfied with the quality of secondary education in Ghana, but, Mr Speaker, hitherto, our Colleagues on the other Side used to ask

primary questions in 2016/2017: “John Dramani Mahama and NDC, show us your social intervention policy”.

President Mahama is responding appropriately, not just with policy, but with guaranteed funding through legislation—[*Hear! Hear!*—]—to give meaning to free senior high school. So, what the President is doing is giving meaning to their initiative of the Free Senior High School by guaranteeing sustainable, adequate funding for it, including quality improvement, which will improve the quality of secondary education provision.

Mr Speaker, a significant portion of this amendment, and I want Hon Colleagues to join me in celebrating this special initiative of President John Dramani Mahama, is the free education for persons with special needs. There are about 39 special-needs and integrated schools in Ghana, serving about 9,000 learners, including the Akropong School for the Blind and several other basic schools across the country. Currently, under the Free Senior High School, we have a population of 473,000 in year one, 481,000 in year two, and 507,000 in year three. It is the President’s vision to encourage day schools in urban areas, and then in rural areas, we can do boarding schools for them. That is President Mahama’s new policy directive. And for feeding, every student in a boarding school is assured of feeding.

Mr Speaker, I was concluding on schools with special needs. There are several across Ghana, including the Akropong School for the Blind. We need

to support them. They are the most vulnerable. So, this is the most inclusive initiative of President Mahama. He thinks that marginalised, vulnerable persons who are in need—They need food, even for their emotional and psychological development. He is saying that once this is done, all of them will have access to free education, including assistive devices. They will be given assistive devices. Maybe somebody has a hearing impairment. This will provide free education for learners with special educational needs.

So, Mr Speaker, President Mahama is walking the talk, and he is coming in with those interventions. MahamaCares is another signature of President Mahama to improve access to medical care and to respond to the question on what President Mahama’s social intervention is, he has appropriately responded to that.

7:01 p.m.

Mr Speaker, more important is the No-Fees-Stress Policy which is also providing financial support to young graduates who are entering university, who, otherwise, as a result of their financial standing, may be denied the opportunity. Members of Parliament are the best to give testimony to this. There is no MP here who does not receive a call or a text message that “help me pay my school fees”. President Mahama is taking that burden off us and saying that through GETFund, he will provide dedicated funding to it.

Mr Speaker, let me assure this House that this is not to take away the power of Parliament in approving the formula of the GETFund. All this will be subject to parliamentary scrutiny and approval. But if one wants to finance special needs education, one needs to do it through the Special Needs Education unit of the Ghana Education Service. If one wants to do No-Fees-Stress, maybe GETFund will provide additional funding to the Student Loan Trust Fund to be able to provide for that. Mr Speaker, so I urge Hon Colleagues.

The second part of it is the tax levy of 2.5 per cent and the tax deductible. What the Minister for Finance have done is that in the past, GETFund will wait and wait. Now he is saying that when the deductions are done, it goes straight to GETFund subject to the approval of Parliament in its formula.

In concluding, when the GETFund formula comes to this House, we will insist that some special accounts be catered for in the formula. First, we will need about GH¢65 million to GH¢100 million to support Free Education for learners with special needs, which will include assistive devices. When the GETFund formula comes, there will be dedicated support to support the Student Loan Trust Fund in order to deal with the No-Fee Stress initiative of President Mahama. Overall, this Bill is to assure our Colleagues that President Mahama and the National Democratic Congress (NDC) is not abandoning or reviewing Free Senior High School (Free SHS). He is only seeking to improve the quality of its delivery as we are all concerned.

West African Senior School Certificate Examinations (WASSCE) results have come, and we are involved in political blame games as to whether students have done right or they have done wrong. What is important, both government and parents, is to pay attention to our wards in school to make sure that they are fed well and fed on time, fed with quality food, and then quality improvement.

Regrettably, Mr Speaker, many of the schools did not benefit from infrastructure support. We see an educational institution with probably 1,800 students, today it has 4,800 students with the same dormitory and classroom. I am told that, Presbyterian Boy's Senior High School (PRESEC) and even Mfantseman Senior High School, some go to assembly at 8 a.m. and others at 9 a.m. because of the lack of infrastructure. Mr Speaker, President Mahama intends to invest in infrastructure. We have gotten approval from the World Bank for about US\$200 million. As I indicated, 30 Category C schools will be converted to Category B schools, 10 Category B schools will be converted to Category A, and all the 10 Category A schools in Ghana will receive their share of infrastructure by way of classroom and dormitory and quality improvement.

Mr Speaker, I beg to Hon Members to support the approval of this so that we give meaning to free secondary education. What the previous Government did is a redefinition of basic education. For our purposes in Ghana now, basic education includes secondary education. History will vindicate President Mahama tomorrow

that he has invested more in basic education, but the emphasis should be on foundational learning, from kindergarten through primary six to junior high school, now extended to free secondary education.

I want to thank our Colleagues and to assure Members that their financing for free secondary education will come to stay. Financing for free tertiary education for persons with disabilities will come to stay, and financing for persons with special needs will come to stay when this legislation passes.

I thank you, Mr Speaker.

Second Deputy Minority Whip (Mr Jerry Ahmed Shaib): Mr Speaker, I thank you very much for this opportunity. I rise to contribute to the Motion on the Floor.

First of all, today we are here, and we are discussing Free Senior High School. Mr Speaker, when we were talking about Free Senior High School, the Hon Deputy Minister, who is walking out of this Chamber, was marching on the streets and singing, “Free SHS 419! Free SHS 419! Free SHS 419!”

Today, as we speak, when we go to Fumbisi, his Constituency, we have one of the highest enrolments. We come and sit in this Chamber and the conversation is that we are uncapping. If he did not have a car and he bought a battery, where was he going to put the car battery? Today, through H.E. Nana Addo Dankwa Akufo Addo, most of their children are now getting Free Senior High School.

Today, it is through oil money that we are funding—*[Interruption]*

They have never had patience. They never want to listen to anybody. Minister of Roads and Highways, please resume your seat. They have never had patience. Sit down and listen.

If they care to know, if they go to Komenda-Edina-Eguafo-Abirem (KEEA), the enrolment levels—

Mr First Deputy Speaker: Hon Members, I will give the opportunity to everybody who wants to contribute. So, take notes. Unless there is a breach of the Standing Order, Hon Members would interrupt strictly based on the Standing Orders.

Yes, Hon Jerry Ahmed Shaib?

Mr Shaib: Mr Speaker, I am very surprised that we have a Majority that is highly intolerant. When they were making their contributions, we sat down and listened to them.

The Hon Member should take off his shades; we are in the Chamber. How does he wear shades in the Chamber?

Mr Speaker, throughout this process of having Free SHS, the NDC’s stance and posture, has always been to oppose it. Today, Free SHS is working. It is active. Their children are going to school. As Members of Parliament, what they only get to do is to support them with trunks, mattresses and school bags. They have come to say that they are adding sanitary pads.

Today, if Nana Addo had not made Free SHS possible, they would not have had the enrolments they are having in their constituencies. Today, there is what we call the Science Technology Engineering Mathematics (STEM) school. Go to Weija-Gbawe, the STEM school is almost done. People are learning robotics. It is through the vision of Nana Addo Dankwa. Today, we are here. Technical and Vocational Education and Training (TVET) is working. TVET is working. They do not want to hear that TVET is working. It is working. It is just because Nana Addo made it possible.

They are here and they do not want to hear that TVET is working. If we look at the manifesto of the New Patriotic Party, the issue of people with disability is captured. What we need to do as a House is to agree that it is not just for them to come and say that they are giving access to people with disability. They have to make sure that they provide them with the necessary infrastructure. That is what is key. When we started, did they not say that we needed to build infrastructure before people can—We have built a lot of schools. What they have done is to depart from completing those schools. Wake up and finish those schools, and let us all understand that without Free SHS, they will not be where they are. We thank you.

Mr Speaker, I thank you very much for this opportunity. I want them to understand that the infrastructure gap for us is key. Whatever we need to finish, let us come together as a House to ensure that those schools which have not been completed, we will finish the construction

of those schools. If you come to Weija-Gbawe, you will see that the STEM school is almost completed. Let us complete it so that our children will not learn just the normal form of education. They can learn the robotics, and they can have other forms of education.

Mr Speaker, with this, I thank you for giving me the opportunity.

7:10 p.m.

Mr First Deputy Speaker: Hon John Darko, you know the rules, that after your Frontbench speaks, I do not look behind them.

Yes, Majority Leader?

Mr Ayariga: Mr Speaker, I think the Minister for Education has already said it all, and therefore, there is not much to add. It is important for us to appreciate the fact that if our society is to develop, if our economy is to develop, it has to be a knowledge-based society. We must make sure that basic and secondary education, or the set of knowledge that everybody who passes through basic and secondary education will acquire, is spread across board and everybody has it evenly. If this happens, it has a significant impact in the development of any society.

Over the years, we have all been struggling to ensure that there is universal access to basic education, and there is universal access to secondary education. It is the struggle for universality that led to the NPP attempting to redefine basic education to

include secondary education. So that in keeping with our constitutional obligation, that basic education shall be free, compulsory and universally accessible also applies to secondary education.

However, the challenge has always been infrastructure and, of course, financing of consumables. We faced the challenge of infrastructure for a very long time. Luckily, in 2000, we passed the GETFund. GETFund came as a major intervention to deal with the financing of education. At that time, GETFund was enacted focusing on tertiary education financing. That was really the underlying philosophy behind the establishment of GETFund. But over the years, GETFund has tended to finance education across all sectors.

The capping of GETFund dealt a deadly blow to the Fund and its capacity to deal with the financing challenges of the education sector. The uncapping of it now, clearly, and if we look at the amounts that are being allocated to GETFund, it is definitely enabling the financing of education in this country in a way that has never happened before.

Mr Speaker, the Minister for Education pointed to something we were probably not paying attention to, which is the question of where our focus should be. Should it be day education or boarding schooling? Because that has been the major bottleneck when it comes to access to education and the financing of education. Because in most jurisdictions, when they talk about secondary education, it is the teaching that has to be free. If we choose to go and

collect people's children and then come and keep, feed and house them, and we say we are doing free education, we will end up just burdening the rest of society unnecessarily.

And that is why the NDC, if one would recall, in the 2018, when we were having this debate between free secondary education, whether we should have day schools or boarding schools, opted for free secondary education but focusing on day schools. The idea is that when we do more day schools, we are able to finance it as an economy. But when we burden ourself with more boarding schools, then we have the burden of having to construct dormitories, having to construct dining halls, having to construct assembly halls, and then having to feed the children.

Those who insisted on boarding schools, what did we see? We saw a situation where they could not afford to feed the children. They were starving the children, schools were rampantly closing, schools were not reopening on time, and at the end of the day, the secondary education was collapsing. It was free, but it was only free in name because any time children were going to school, parents had to fund them. They had to buy food to feed their children, and in the process, they ended up mismanaging secondary education.

Indeed, it became a very important consideration in the minds of people when they went to vote. So even though they kept telling Ghanaians that they had done the impossible and they had given them free secondary education, they did

the unimaginable and they woefully voted them out of office. They voted them out because the one thing that they said you were giving them freely ended up not being free. That is how come they lost miserably in the elections. Because their so-called mantra of free secondary education, doing their mathematics and assuming that all the children who have gone through secondary education within that age bracket will vote for them. Those children queued and voted against them.

They voted to protest against the bad food that they were feeding them with. They voted to protest against them for running double shifts. They voted to protest against them for closing schools rampantly and they voted to protest against them because at the end of the day, they were not even providing them with textbooks. That is how they lost the election. The secondary school children voted against them because they had experienced free secondary education and they knew that it was anything but free. *[Hear! Hear!]*

Mr Speaker, the NDC promised them that when we come into office, all the social intervention promises that they had made or instituted, we will perfect them. We will reset it, and let it function properly. That is why today we are creating a dedicated funding source for free secondary education.

Mr Speaker, let me let me urge the Minister for Education that we should take the commitment to restructure secondary education so that the emphasis should be on secondary education.

Because as an economy, we are not at that point where we have enough resources to provide everything for free. So, let us focus on what is most essential. The most essential is tuition.

So, in the urban centres, let us populate the whole place with schools that are close to the homes of the children so that they can commute to school on a daily basis. So that we can pay teachers well, resource the schools with the necessary materials, textbooks, science laboratories, and well-motivated teachers so that we will have quality education.

We cannot continue to pretend that our education quality is satisfactory when all we are doing is spending money building dormitories, building hostels, and the teachers that we need to motivate remain unmotivated. The textbooks that they need to learn, we do not supply them with adequate textbooks. We want to run a scientific society and we are not investing in laboratories in the schools. How will we succeed in providing a society that is producing people with the necessary skills when all we are doing is just building dormitories, and when we go to the school, there is no laboratory, when we go to the laboratory, no materials, when we go to the library, no textbooks, we go to the computer labs, no labs.

7:21 p.m.

Mr Speaker, I am happy that today this Bill has come and we are reforming the financing of free secondary education. We will not abandon policies began by the NPP; we will perfect them.

Today stands as testimony to our commitment to perfect NPP policies. We will implement policies that they introduced, yet, could not implement properly.

On that note, Mr Speaker, I urge Colleagues to support the Motion. Thank you. *[Hear! Hear!]*

Mr First Deputy Speaker: Hon Members, I will give the opportunity to the Minister to give concluding remarks. Minister, please wind up.

Mr Ampem: Mr Speaker, I want to conclude by thanking Hon Members for speaking in support of this amendment Bill, and to just draw attention to one thing, that in 2018, this House amended the GETFund Act. The previous administration brought an amendment to this House, and we passed it. The object of that amendment in 2018 was to do one major thing. I read:

“AN ACT to convert the Value Added Tax component allocated to the Ghana Education Trust Fund into a Levy which is not subject to the input-output method of computation and to provide for related matters.”

Mr Speaker, clause 3(a), subclause 3, further stated:

“The levy is not subject to an input tax deduction”.

Mr Speaker, this particular Act led to the cascading effect of the GETFund

Levy and brought a serious burden on taxpayers. Today, the amendment is seeking to reverse this unfortunate amendment that we made to the GETFund Levy. By doing this, we are going to lose revenue. By decoupling this and removing the cascading effect, we are going to lose GH¢1.7 billion. By doing the same to the NHIL, we will lose another GH¢1.7 billion. But President Mahama says, do not worry, let us put back GH¢3.4 billion into the pockets of Ghanaians. *[Hear! Hear!]*

Mr Speaker, this is the intention of the President. A lot has been said about the other reforms that this amendment seeks to bring. One of them is providing dedicated funding for the free secondary education. For the naysayers, the doubting Thomases — I am an optimistic Thomas. I am not a doubting one — who suspected that President Mahama was going to cancel free secondary education, today, they have their answer.

Since the beginning of this year, when President Mahama took a bold decision to use GETFund to fund secondary education, we have not heard the Conference of Heads of Assisted Secondary Schools (CHASS) threatening to close down schools. Now, the students are eating well. The students are sleeping better. We do not want this to remain an administrative directive. We want to engrave it in the law, so that tomorrow, if unfortunately, some destroyers come to rule this country, they do not reverse these gains.

Mr Speaker, the NDC Government introduced GETFund, somebody came and capped GETFund, denied GETFund of their resources, and only God knows what they used the money for. Today, we have reversed the decision to cap GETFund and free it and use it to fund education as it was originally meant for.

Mr Speaker, I want to encourage us to support President Mahama, because he has pure and good intentions for this country. On this note, I thank you, Mr Speaker.

Mr Haruna Iddrisu — *rose* —

Mr First Deputy Speaker: Hon Minister, you know, you are my very good Friend. You had your time to speak on this issue, so why do you want a second chance?

Question put and Motion agreed to.

Ghana Education Trust Fund (Amendment) Bill, 2025 accordingly read a Second time.

Mr First Deputy Speaker: Yes, Majority Leader?

Mr Ayariga: The Motion numbered 50.

Mr First Deputy Speaker: Hon Members, Ghana Education Trust Fund Amendment Bill, 2025 at the Consideration Stage.

BILL — CONSIDERATION STAGE

Ghana Education Trust Fund (Amendment) Bill, 2025

Clause 1 — Section 2 of Act 581 amended.

Vice Chairperson of the Committee (Mr Richard Acheampong) *on behalf of the Chairperson:* Mr Speaker, amendment proposed 2(e) —

Mr First Deputy Speaker: Hon Member, before you can go to 2(e), (f) and (g), the proposed amendment in 2(a), (b), (c) and (d) should be withdrawn so that the existing rendition remains.

Mr Acheampong: Mr Speaker, I beg to *move* that 2(a), (b), (c), and (d) be abandoned.

Mr First Deputy Speaker: Yes, as well as 2(h).

Mr Acheampong: Yes, withdrawn.

Mr First Deputy Speaker: Very well. Minister?

Mr Haruna Iddrisu: Mr Speaker, we would abandon it, but it should reflect what is in the original Act 581. Now, when we get to (h)—I am just looking for it in the original Act. It may just be the alphabet which has changed. So, I agree with him that we do not need an amendment to clause 2. It can stay as it is. We are just adding (e), (f), and (g) as you guided him.

Thank you, Mr Speaker.

7:31 p.m.

Mr First Deputy Speaker: Yes. So, Hon Member, do the needful by deleting the clause 2(a), (b), (c), (d), and (h).

Mr Acheampong: Mr Speaker, respectfully deleted.

Mr First Deputy Speaker: Hon Members, the proposal is to *delete* clause 1, 2(a), (b), (c), (d) and (h). It is for the consideration of the House. Hon Members, by deletion means that the original rendition in the parent Act stands.

Yes, Hon Asamoah?

Dr Fred Kyei Asamoah: Thank you, Mr Speaker.

I would suggest that we take a second look at it, because I know the Hon Minister for Education has always been in favour of GETFund being able to work on its own, and not as an appendage of the Ministry. As such, I think the proposal was to amend 2(a), to *delete* “through the Minister”, and *insert* “to provide financial support to the agencies”.

Mr First Deputy Speaker: Hon Member, look at it this way. The original rendition has “through the Minister” in the second line in clause 2(a).

Dr Asamoah: Yes, I thought we were deleting “through the Minister” and to leave it as “to provide financial support”—

Mr First Deputy Speaker: No, the entire provision has been deleted to stand by the original rendition in the parent Act.

Dr Asamoah: Yes, I am pulling the original Act. But at the same time, we realised that we just passed the Scholarship Authority Bill into an Act, and here it is stating scholarship secretariat, which we do not have any more—

Mr First Deputy Speaker: Yes, by the Interpretation Act, the passage of the Scholarship Authority Act, changing it from Scholarship Secretariat to Authority, the transitional provision in the Scholarship Authority Act, therefore, takes care of the session, and wherever “scholarship secretariat” appears, it must be read as Scholarship Authority. That is the essence of transitional provision in every bill.

Dr Asamoah: Mr Speaker, I do agree with you, but we have the opportunity of amending the Act now, so—

Mr First Deputy Speaker: By implication of law, that has been amended, so you need not bring it forward for specific amendment.

Dr Asamoah: So, Mr Speaker, you are saying that we are abandoning the removal of “through the Ministry” and also abandoning—

Mr First Deputy Speaker: That is the proposal, (a), (b), (c), (d) and (h).

Dr Asamoah: Because this proposal is something that will help GETFund to be able to work very well. Mr Speaker, you would realise that GETFund was supposed to support even with textbooks and it is not been able to get—

Mr First Deputy Speaker: Hon Member, let us do some exercise. Look at (a), the original rendition, and then look at the proposed rendition and tell me whether there is a difference. If there is no difference and it is not broken, how do you fix it? Look at (b) and tell me the original rendition, what is the difference? If it is not broken, how do you fix it? Look at (c) and (d). The old Act and the new Bill.

Dr Asamoah: Yes, Mr Speaker, I agree with you, but I think laws are also supposed to be progressive and we need to allow the Fund to operate freely. We know when the formula also is done is brought to Parliament for it to be approved. So, for instance, if we are also abandoning (h), where it says “to provide money to support any other educational activities and programme for the promotion of education”, why can we not say that “as Parliament may approve” instead of as “the Minister may in consultation with the board—

Mr First Deputy Speaker: Look, that is the original rendition in (e). Let me read it for you.

“To provide money to support any other educational activity and programmes for the promotion of education determined by the Minister in consultation with the board.”

So, that is in (h). What are you amending?

Dr Asamoah: So, I am proposing that we amend it to state “as Parliament may approve” because the Formula is always brought to Parliament—

Mr First Deputy Speaker: So, you want to amend what they want to abandon because it is the same rendition in the existing law?

Dr Asamoah: Yes, I want to, instead of abandoning it, amend it to state “as Parliament may approve”.

Mr First Deputy Speaker: Yes, Majority Leader?

Mr Ayariga: Mr Speaker, let us have some clarity on what has happened here. We have a Bill that seeks to amend the Ghana Education Trust Fund Act. What does the Ghana Education Trust Fund Act say? It has a clause 2 which deals with the object of the Fund. This amendment Bill has a clause 1 which says that we are going to substitute clause 2. My understanding is that we are no longer substituting clause 2. We are now only inserting 2 or 3 additional sub clauses.

So, the procedure that we need to adopt now is to abandon clause 1 of this Bill completely. In which case, there is no substitution taking place. Then, when we come to clause 2 of the Bill, we will abandon clause 2(1), clause 2(a), (b), and (c). Then we proceed to introduce an amendment to clause 2(e) by now replacing it with a new rendition which

is “to fund free secondary education;” add another sub clause (f), which is “to fund free tertiary education for persons with disability.” Then, add another sub clause (h), “to fund free education for persons with special needs.” And to now bring what used to be sub clause (e) to a final clause (i), which will read what the original sub clause (e) read, which is “to provide monies to support such other educational activities and programmes for the promotion of education as the Minister in consultation with the board may determine”. This is what we should be doing.

Mr Speaker. I hope there is clarity.

Mr First Deputy Speaker: Yes, Hon Members, if you look at the Memorandum, page 2, if I may read:

“the Bill therefore seeks to amend the Ghana Education Trust Fund Act, 2000 (Act 581), to expand the object of the Fund to include:

- (1) the financing of free secondary education;
- (2) free tertiary education for persons with disability; and
- (3) free education for persons with special needs, and to make Ghana Education Trust Fund Levy input tax deductible”.

7:41 p.m.

So, the actual reason for this Amendment is to expand the object to include these three things, but never to

delete the object and substitute it. That is the reason for which the substitution is being abandoned to only take care of what the Memorandum of the Bill says we should do. That is the expansion to include funding for free secondary education, free tertiary education for persons with disability, and free education for persons with special needs. These are clearly what the Memorandum is telling us to do. We now intend to operate in accordance with the Memorandum. Once the Memorandum did not ask us to delete the entire clause 2, we want the entire clause 2 to stay, and we will do the expansion by adding these three.

That is what I understand the Chairman of the Committee to be doing.

Question put and amendment agreed to.

I will direct the drafters to address the wording and realign the numbers after implementing the proposed amendments.

Mr Acheampong: Mr Speaker, the amendment proposed for F will read, “to fund free secondary education”.

Mr First Deputy Speaker: I will direct the drafters to do the numbering.

Mr Acheampong: Should I read all of it?

Mr First Deputy Speaker: Yes.

Mr Acheampong: Clause (g) will read, “to fund free tertiary education for persons with disability.” The (h) will

read, “to fund free education for persons with special needs.” Then it will follow.

Mr First Deputy Speaker: Yes. Hon Members, this is the proposal, and it is for the consideration of the House.

Mr Shaib: Mr Speaker, I do not know if I am jumping ahead, but I mentioned to the Minister that it would be prudent to consider — I know this should be an interpretation, but just because we are discussing this now. So, when we look at (g), it says, “to fund through the Ministry and its agencies, free tertiary education for persons with disability.” And then (h) also comes with persons with special needs. But when we peruse the parent Act, persons with disability and persons with special needs have not been defined under the interpretation.

My submission, respectfully, is that we define them to clarify who the persons with disability and persons with special needs are.

Mr First Deputy Speaker: Very well.

Mr Haruna Iddrisu: Mr Speaker, before you put the Question, I have the understanding, as moved by the Chairman, that the Ghana Education Trust Fund Act 2020, Act 581, referred to in this Act as a principal enactment, is amended in subsection 2 of section 2 by the insertion of paragraph E. Is that the understanding I have with him? Then, after E, he provides for H.

Mr First Deputy Speaker: No, (e), (f) and (g).

Mr Haruna Iddrisu: All right, then, I support the proposed amendment by him.

Thank you.

Question put and amendment agreed to.

Mr First Deputy Speaker: Yes, Hon Jerry Ahmed Shaib.

Mr Shaib: Mr Speaker, I made the request for the House to consider (g) and (h), and ask that that should be captured in the interpretation. Persons with disability is defined.

Mr First Deputy Speaker: Is it not defined in the Disability Act?

Mr Shaib: Well, but, Mr Speaker, in reference to this particular. Then, what about special needs? If it is defined in the Disability Act—

Mr First Deputy Speaker: We have to check the Disability Act because it is a law that deals with—

Mr Shaib: Well, but, Mr Speaker, that is why I am asking about special needs.

Mr First Deputy Speaker: Yes, we can find out from the law.

Mr Shaib: Very well. It is a proposal. So, if it has been captured and we think that it does not come in here, I would abandon it.

Mr Haruna Iddrisu: Mr Speaker, if I have your indulgence. I have taken note of Hon Ahmed's concern. We are actually talking about learners with special educational needs. We cannot just limit it to persons with special needs. They must be in an educational institution, as I have observed. We have integrated schools, and they must be learners with special educational needs.

Where it is appropriate, Mr Speaker, you can ask the draft person to define the technical word. Thank you.

Mr First Deputy Speaker: Very well. Draft person, if it is not well captured in the Disability Act, you can provide a definition for it accordingly.

Mr Shaib: Mr Speaker, you see, the Minister actually even confirms my position.

Mr First Deputy Speaker: Yes, that is why I directed the draft person to take care of it.

Clause 2 ordered to stand part of the Bill.

The Long Title ordered to stand part of the Bill.

Yes, Hon Richard Acheampong. I saw you on your feet.

Mr Acheampong: Mr Speaker, I wanted to find out from you the issue raised by Hon Jerry in terms of the interpretation.

Mr First Deputy Speaker: Yes, I have directed the drafters.

Mr Acheampong: All right.

7:50 p.m.

Mr First Deputy Speaker: Hon Members, that brings us to the end of the Consideration Stage of the Ghana Education Trust Fund (Amendment) Bill, 2025.

Hon Majority Leader, we take the Motion numbered 51?

Mr Ayariga: Mr Speaker, we can take Motion numbered 51.

BILL — THIRD READING

Ghana Education Trust Fund (Amendment) Bill, 2025

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) on behalf of the Minister: Mr Speaker, I beg to move:

That the Ghana Education Trust Fund (Amendment) Bill, 2025 be now read the Third time.

Minister for Education (Mr Haruna Iddrisu): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Ghana Education Trust Fund
(Amendment) Bill, 2025 — *read the Third time and passed.*

Mr Ayariga: Mr Speaker, there is an important Statement that has been made. Mr Speaker, let us admit that Statement.

Mr First Deputy Speaker: Hon Members, we have a Statement standing in the name of Dr Tiah Abdul Kabiru Mahama. Hon Member, you have the Floor.

STATEMENT

Tribute to His Royal Highness Naa Prof. John Sebiyam Nabila, Wulugunaba (1940 - 2025)

Dr Tiah Abdul Kabiru Mahama (NPP — Walewale): Mr Speaker, I rise today on behalf of the people of the Walewale Constituency and indeed, the entire North East Region, to pay a solemn tribute to one of Ghana's distinguished sons — Naa Professor John Sebiyam Nabila, Wulugunaba of Kpasenkpe — a scholar, statesman, traditional ruler and a servant of the Republic whose life was devoted to the pursuit of knowledge, public service, and the preservation of our cherished customs and traditions.

Born on 15th December, 1940, Naa Professor Nabila rose from humble beginnings in the then Northern Region to become one of Ghana's foremost academics and traditional rulers. His journey from the classrooms of

Kpasenkpe, of Gambaga, of Pusiga, of Tamale, of Ghana's Premier University to the world's great universities stands as a shining testament to the transformative power of education and the unrelenting desire of Naa Prof to attain knowledge. He obtained his Bachelor of Arts with Honours in Geography from the University of Ghana, and proceeded to Michigan State University, U.S.A., where he earned both his Masters and Doctoral degrees in Geography, specialising in Population and Medical Geography.

For over four decades, Professor Nabila served with distinction at the University of Ghana, rising through the ranks to become Professor of Geography and Resource Development. He guided countless students and mentored generations of Ghanaian scholars. His intellectual leadership and pioneering research in population, health, and environmental studies influenced policy at national and international levels. In recognition of his academic excellence and dedication, he received the Best Teacher Award at the University of Ghana in 1998.

Mr Speaker, beyond academia, Naa Professor Nabila answered the call of public duty. He served as Member of Parliament and Minister of State for Presidential Affairs and Information during the Third Republic, contributing to the strengthening of our democratic governance. He later served as Vice Chairman of the National Population Council, three term Member of the Council of State, and subsequently, as two-term President of the National

House of Chiefs from 2009 to 2016. In that capacity, he distinguished himself as a bridge between tradition and modern governance, guiding the institution of chieftaincy with wisdom, integrity, and foresight. The idea of codifying chieftaincy especially with regards to lineage and succession and also establishing a research desk at the National House of Chiefs were his brainchildren. In the words of the National House of Chiefs, the late Wulugunaba was “distinguished statesman, academic and traditional ruler whose life embodied humility, wisdom, and commitment to national unit”

As Wulugunaba of Kpasenkpe, Naa Professor Nabila took the skin name “Naa Pugangsoa,” meaning “Chief of all people irrespective of tribe, status, or association.” Simply, a chief who does not discriminate. This name captured his heart and spirit — inclusive, compassionate, and profoundly human. Though a royal, he carried himself with striking humility. He was as comfortable in academic robes as he was among his people in the village — listening, guiding, and uplifting. His leadership was defined not by the distance of privilege, but by the closeness of service. He led his people with dignity and compassion, upholding peace and promoting education and development in his traditional area.

Mr Speaker, for his lifelong service to Ghana, he was awarded the Companion of the Order of the Volta, one of the nation’s highest honours. Naa Professor John Sebiyam Nabila exemplified the finest qualities of the

Ghanaian spirit — humility in leadership, integrity in service, and devotion to knowledge. He was a man who served with both the pen and the skin/stool — a scholar who never lost touch with his roots, and a chief who embraced the promise of progress.

As we mourn his passing, let us also celebrate a life that enriched our nation and strengthened the fabric of our democracy. He was one of our own — a pioneering legislator representing the Walewale Constituency. His passing is not just a loss to the North but the nation at large. Ghana has lost a bridge builder and a patriot.

Mr Speaker, we however take solace in his legacies. His legacy lives on in the institutions he built, the students he mentored, and the example he set for all who believe that service to one's people is the highest calling of all.

His Royal Highness was a towering symbol of traditional leadership, cultural preservation, and national service. His life’s work bridged the sacred and civic, leaving an indelible mark on the Mamprugu Kingdom, the Gbewa Chieftaincy fraternity, and the Republic of Ghana. As a pioneering figure of the Assemblies of God Church in Ghana, his deep faith and moral uprightness are virtues we take pride in.

Mr Speaker, may the soul of Naa Professor John Sebiyam Nabila, Wulugunaba of Kpasenkpe, rest in perfect peace, and may his life’s work continue to inspire generations of

Ghanaians to serve with wisdom, humility, patriotism, dignity and honour.

Rest well, distinguished son of Ghana; rest well, Naa; rest well, Prof; rest well, servant-leader. Your nation salutes you. Thank you very much, Mr Speaker.

8:00 p.m.

Mr First Deputy Speaker: Dr Kabiru, thank you very much for making that salient Statement. I would proceed to recognise the Hon Minister for Education to make his comment. Then I will come back to my left Side.

Mr Haruna Iddrisu (NDC — Tamale South): Mr Speaker, I should thank the Hon Member for Walewale for the befitting tribute to his Royal Naa Prof John Nabila, Wulugu Naba, a distinguished academic, an achieved politician and a sober personality. Indeed, Mr Speaker, I should add that the traditional royalty of Mamprugu have lost a towering personality whose influence in northern Ghana — in particular, he left an indelible mark at the University of Ghana when he was head of the Geography Department.

There were many who got to campus those days and did not know where to lay their heads because they were travelling. Mr Speaker, if you would recall, in our generation, there were many young students from the north who travelled to the University of Ghana, and probably on arrival in Accra and on the university campus, it was their first opportunity to be in Accra. Prof Nabila then helped

settle many of those young ones into the University of Ghana.

Mr Speaker, we benefited enormously as a country from him when he worked at the National Population Council on matters of reproductive health for young people. I did not even know the difference between adolescence and adulthood. I learned it from him when he gave the cohort of the age category; those who were adolescents and those who were adults and what was expected of their behaviour at that time.

Mr Speaker, he served the Provisional National Defence Council (PNDC) government very well and for many who knew him, he was very instrumental in resolving many conflicts using the influence of his traditional authority. I hope that, Mr Speaker, to his memory, we will work to revive the Wulugu Farms in honour of his memory. So, Mr Speaker, I join the Hon Member for Walewale in extending our profound sympathies and condolences to his family, the Wulugu Naba of Kpasenkpe. Kpasenkpe is one of the areas where we can easily get a Category A school. Whether from A to B or not. It has a befitting infrastructure for it.

May his soul rest in perfect peace. May his work continue to inspire more young people to be academics and along the line, if they have to be political, to serve with integrity and with purpose. *Allah Wa Ta'ala* grant and repose the soul of the Wulugunaba. Thank you, Mr Speaker.

Mr Mustapha Ussif (NPP — Yagaba-Kubori): Thank you so much, Mr Speaker, for the opportunity to also comment let me also use this opportunity to thank the Hon Member for Walewale for making this very important Statement.

The demise of Naa Prof John Sebiyam Nabila has left a very deep void in our country and in the hearts of many who knew him. His life was a remarkable gift to the people of Mamprugu and in fact, Ghana as a whole. He carried himself with dignity, wisdom and quiet strength that touched many lives across the nation and also generations.

Naa Prof John Sebiyam Nabila, as a traditional leader, served with real humility and authority. He guided his people with patience, compassion and unwavering commitment for peace. As an academic, he stood tall as one of Ghana's finest in Geography. His scholarship, dedication to research and lifelong devotion in pursuit of knowledge shaped countless students and strengthened our national institutions.

Mr Speaker, our revered chief, Naa Professor John Sebiyam Nabila, gave himself fully to the nation, never seeking the spotlight and never demanding recognition. Whether in the lecture hall or in national service or as a traditional tool, he remained steady, thoughtful and deeply principled. His legacy is one of integrity, discipline and love for Ghana. For us in the north and for me, his loss is very painful. He was a father figure to many, a custodian of our heritage and a source of guidance for leaders at all

levels. His counsel is always honest, calm and grounded with fairness.

On behalf of the people of Yagaba-Kubori Constituency, I wish to extend my heartfelt condolences to the family and to the royal family of Kpasenkpe and the entire Mamprugu Kingdom. May the almighty God grant him peaceful rest and strengthen all who are mourning him now. Naa Prof John Sebiyam Nabila's journey must have ended on earth, but his legacy will continue to guide and inspire many generations. Thank you so much, Mr Speaker.

Dr Clement Abass Apaak (NDC — Builsa South): Mr Speaker, I am grateful to you for giving me the opportunity to comment on the well-presented eulogy by the Hon Member for Walewale in the wake of the passing of a noble, well-respected, astute and humble Ghanaian intellectual, traditional leader and politician.

Mr Speaker, I got to know the late Naa Prof Nabila in person in 1992 when I gained admission to the University of Ghana. But even before then, I had known of him through my father, who is now late as well, because they were mates at the university. It was always my dream to be a geographer, and so when I gained admission to the University of Ghana, I was hoping to be in his department. He was the head of the Geography Department at the University of Ghana in 1992.

As fate would have it, I was not given geography as one of my three subjects. But I impressed upon my father, and I

cried severally, for him to take me to see Prof Nabila, the then head of the Geography Department, to change one of my courses, that was Archaeology, to Geography. Naa Prof Nabila agreed to take me as his student.

8:11 p.m.

Unfortunately for me, the then Dean of Social Sciences, the late Professor Anquandah, who happened to be an archaeologist, refused to sign the change form, arguing that if all students were allowed to leave archaeology, his discipline would come to an end.

Later, in my life, I got to meet him when he became the Chief, and I can recount his humility and how welcoming he was. In fact, he is one of those personalities who made people feel at ease and at home. Indeed, his demise is not just a loss to Mamprugu; it is a loss to academia, it is a loss to the Republic, and it is a loss to our traditional rulership. May he rest in perfect peace. Thank you.

Alhaji Mohammed Nurudeen Mumuni (NPP — Nalerigu/ Gambaga): Thank you very much, Mr Speaker. I would first of all want to use the opportunity to thank MP for Walewale, Dr Mahama, for making this Statement. Mr Speaker, the people of Mamprugu have lost a great son. The people of Ghana have lost a statesman. Mr Speaker, Chief Prof Nabila was not just an ordinary chief in Mamprugu. If you come to the Mamprugu tradition, he was the first son of the overlord of the Mamprugu traditional area, the Ti Dugma Nayiri.

Mr Speaker, Prof Nabila served his people as chief, and if one goes to the Wulugu traditional area, you will realise that a great man was occupying that school. Mr Speaker, he did not just occupy the school as a chief, but he also made sure that he lobbied for development to his traditional area, in the area of potable water, healthcare, provision of CHPS compound, and other health needs of the people. Mr Speaker, during the time of Prof Nabila, when he was the president of the National House of Chiefs, one of the things that he did at the National House of Chiefs that made a lot of chiefs in this country very happy, was when he authored the National House of Chiefs' Code for Chiefs. Mr Speaker, it was a great thing that he did at the National House of Chiefs.

Mr Speaker, in 2015, he also used his position as the president of the National House of Chiefs, when there was a dispute between striking doctors and the Government of Ghana at that time, it was the president of the National House of Chiefs, the late Chief Nabila, who helped in resolving the dispute between the striking doctors and the Government of Ghana. At that time, H.E. President John Dramani Mahama, was the President. Mr Speaker, he also used his position to serve this country in many ways. During his time as the president of the National House of Chiefs, at the time we were approaching elections, he used his position to bring preach the people of Ghana for peaceful elections.

Mr Speaker, in conclusion, I want to use this opportunity to send my condolences to the chief mourner, who is

the Ti Dugma Nayiri, HRM Naa Bohaga Abdulai Mahami Sheeriga, who is the overlord of the Mamprugu traditional area and the people of Mamprugu. May the soul of the good professor and the good chief rest in perfect peace.

Thank you very much, Mr Speaker.

Mr Ayariga: Mr Speaker, I also got to know Prof Nabila when I became a student of the University of Ghana. On one occasion, my mother mentioned to me if I knew my uncle, Prof Nabila. Subsequently, I got to meet him. I worked at the Human Rights Centre of the Faculty of Law which was then run by Professor Quashigah, and also a German NGO called Friedrich-Ebert-Stiftung. The NGO, in the transition days, when Ghana was transitioning from military rule to a democratic government, and we were trying to build our institutions, including the institution of chieftaincy and others, there were a lot of workshops and seminars that these NGOs funded. At several of them, I listened to Prof Nabila present one paper or the other.

Clearly, this man was a highly knowledgeable person, had great institutional knowledge about our country and how it should be structured. Later, as I got to delved deep into his background, I got to know that during the People's National Party (PNP) regime, he was indeed the Minister for Defence of the then Government led by Dr Hilla Limann. Then I connected, because my own father was also at that time the Member of Parliament for Bawku Central, on the ticket of the same party,

which is the PNP. So, Mr Speaker, it made us closer.

Subsequently, Prof Nabila's daughter took over from me as the head of an NGO that I had established with my colleague, Professor Raymond Atuguba, and up to date, she is the head of the NGO, which is the Legal Resources Centre. So, I have had a very long association with the Professor. I have had a long association with the family, and indeed, politically, we have had a long association in terms of our families and the parties in the 1970s and government in the early 1980s.

Mr Speaker, it is indeed sad that he has left us. Of course, he was very aged. And we all pray that we get to live such a life of service to our community, our society, our country, and our governments. The ceremony is at the Accra International Conference Centre, so I urge Colleagues to make time at 9 a.m. for us to join the family and his friends to pay tribute to such a glorious life, a life well lived, a life of service, a life of dignity, a very accomplished life. Even though whenever somebody passes, it is a sad moment. But when we know that a person passed through this earth and left an indelible mark, we should be celebrating that life.

8:20 p.m.

A lot has been said about his role in maintaining peace in the North, and I believe that first, we need more people like that in the North, especially at this critical juncture where the North is beset with a lot of unfortunate incidents of lack

of peace and security. We, those who come after them, must follow after their footsteps and work together and build on the legacy of building enduring peace which people like Professor Nabila have bequeathed to us.

Let me once again express my condolences to the family; express my condolences to the people of Wulugu; and express my condolences to the Mamprugu Kingdom.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Thank you so much. That brings us to the end of Statement.

Yes, Majority Leader?

Mr Ayariga: Mr Speaker, I think we have had a very productive day and at this stage, I believe we have done more than that.

Mr First Deputy Speaker: Yes, Majority Leader?

Mr Ayariga: Mr Speaker, there is a very critical Bill that is just a one-clause Bill, the Petroleum Revenue Amendment Bill, that we were hoping that we would pass today and we had asked for an *Addendum* to be printed to that effect.

Mr Speaker, we need to give the Clerk-at-Table a few minutes to see if he could put things in order for us. In the interim we have engaged. *[Laughter]* I am communicating engagement to him. This is constructive engagement. I am saying that this is constructive engagement.

Mr First Deputy Speaker: Hon Members, we will continue tomorrow.

Hon Members, I think we have done more than five hours. So, Order 56(2) should guide all of us.

ADJOURNMENT

The House was adjourned at 8.28 p.m. till Friday, 12th December, 2025, at 12:00 noon.

Editor's Note

This Official Report was corrected by the House on 18th December, 2025.